सत्यमेव जयते

मंत्रालयीन सेवा
जनहिताय सर्वदा

MAHARASHTRA MANUAL OF OFFICE PROCEDURE, 2023

eOffice
A DIGITAL WORKPLACE SOLUTION

ADMINISTRATIVE REFORMS, ORGANIZATION AND METHODS,
GENERAL ADMINISTRATION DEPARTMENT,
GOVERNMENT OF MAHARASHTRA

स्वातंत्र्याचा अमृत महोत्सव

सत्यमेव जयते

Eknath Sambhaji Shinde
Chief Minister
Maharashtra

Mantralaya
Mumbai-400 032
01 JUN 2023



MESSAGE

It gives me immense pleasure to announce the revised edition of Maharashtra Manual of Office Procedure, 2023. The Manual was first released in 1963 and later reprinted in 1994 in Marathi. This revised Manual will guide the officials to work efficiently and effectively in the era of e-Governance resulting in enhanced transparency and accountability.

The General Administration Department (A.R.,O.&M.) and IT Department has immensely focused on increasing work efficacy and speedy office procedures by adopting the process of e-Governance.

I am confident that the revised Maharashtra Manual of Office Procedure, 2023 will help officials in efficient decision making and strengthening the government processes. This will also help us to enhance trust with citizens due to transparency.

In this changing Information and Technology era, I am proud that Maharashtra has taken bold steps to adopt e-Office and other such digital initiatives. This Manual ensures way forward towards digital transformation.

(Eknath Sambhaji Shinde)

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Devendra Fadnavis
Deputy Chief Minister
Maharashtra

सत्यमेव जयते

Mantralaya
Mumbai 400 032



Date: 01 June, 2023

MESSAGE

It is my pleasure to note that the General Administration Department (A.R.O. & M.) releasing the upgraded edition of the Maharashtra Manual of Office Procedure, 2023. The new edition of the Maharashtra Manual of Office Procedure, 2023 focuses highly on technology driven administrative reforms initiated by the General Administration Department.

Technology is a leveller that ensures the administrative delivery system caters to all without bias, hence, this edition of Maharashtra Manual of Office Procedure, 2023 emphasizes on e-governance to achieve transparency, efficiency and accountability. And the benefits of data-driven decision making will ensure benefit to citizens and contribute to development.

I hope that the renewed guidelines on digital office work in the Maharashtra Manual of Office Procedure, 2023 will facilitate paperless governance and enhance administrative efficiency. With the new age reforms, the Departments will be able to dispose their pending matters in a time-bound manner and closely monitor the workflows. The Maharashtra Manual of Office Procedure, 2023 will serve as a tool to those in administration for guidance and reference and strengthen digital governance across the state.

(Devendra Fadnavis)

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Manoj Saunik
Chief Secretary



MESSAGE

I am immensely pleased to be part of the team in its efforts to bring out the revised and upgraded edition of 'The Maharashtra Manual of Office Procedure, 2023'.

The new Edition of The Maharashtra Manual of Office procedure promotes the Digital framework in administration through the use of e-office and adoption of Digitized Central Registry Unit. Adopting new technology will lead to Data driven governance which will increase efficiency in decision making in the Government. The new version of e-office will not only ensure timely disposal of cases but will also enhance transparency and accountability.

I am sure that the digital approach made in the Maharashtra Manual of Office Procedure, 2023 will help in laying down the guiding map for the existing and the new functionaries in the Government.

This Manual will help the Mantralaya processes to move from physical system to the electronic system which will be an important tool for e-governance.

(Manoj Saunik)

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MESSAGE

The Department of Administrative Reforms, Organisation and Methods, General Administration Department is the Nodal Department for prescribing procedures for functioning Mantralaya and its allied offices. The first Maharashtra Manual of Office Procedure was prepared in March, 1963 and was translated in Marathi language in 1994. For the first time in over sixty years, the Maharashtra Manual of Office Procedure, 2023 has been revised and made up-to-date to serve as an important tool of e-Governance and provide digitalised services to the people of the State.

I am very happy to share the second edition of Maharashtra State Manual of Office Procedure, 2023 (MSMOP). The new edition has incorporated the role of technology for achieving accuracy, efficiency and transparency in Administration. Use of e-Office is integral and important part of this process. The main features of the manual are as below:

Key Features

- Organizational Structure of the Government of Maharashtra.
- Officers, Employees and their functions.
- Decision Making Process in Government.
- Proposals for Legislation, Subordinate Legislation and Opinion Cases.
- Knowledge Management.
- Annual Action Plan & Citizen's/ Client's Charter.
- e-Office Digitalization Framework.

I hope that this manual shall become an important tool for all officers for the day to day working, training and reference.

(Sujata Saunik)
Additional Chief Secretary (A.R.,O.&M.),
General Administration Department,
Government of Maharashtra.

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CHAPTER- 1

INTRODUCTION

The prime objective to revise the Manual Office Procedure, 1963 is to increase efficiency, transparency, and accountability by adopting e-governance initiatives such as e-Office, file tracking system, etc. embarking digital governance in the State. The Manual aims to standardise office procedures, delayer processes, delegation of power, operationalization of the Desk Officer System, and to set the foundation for the creation of a robust knowledge management system at Mantralaya and other offices. It lays down the essential procedures for efficient information and file management i.e., processing, handling, and control of official information either on paper or in digital form in the Mantralaya across Minister's Offices and Departments.

2. Government effectiveness is primarily reliant on the development of proper methods and procedures, as well as the ability of its officials to adhere them. The efficiency of persons handling information in a department is judged by their ability to dispose of issues with speed and quality following the procedures prescribed for the purpose.

3. Meanwhile, officials responsible for the operation of that department must guarantee that public resources are managed with utmost care and prudence, in line with the laws and established rules and procedures. The procedures prescribed in this manual attempt to balance the conflicting consideration of speed, quality, transparency, and propriety. In a dynamic context, this balance cannot be rigidly or permanently fixed.

4. In order to create awareness about these processes and practices especially at the cutting edge level and to sensitize new entrants inducted at various levels in the Mantralaya, the General Administration Department 'Administrative Reforms, Organization and Methods', as a nodal agency in the field of 'Organization & Methods', has laid down various procedures for performance of Mantralaya work by the functionaries in various Departments of the Government of Maharashtra in the form of Manual of Office Procedure. Revision of this report is to be done biannually.

5. The procedures laid in this manual (relating to physical paperwork) have been dovetailed with the new e-Office applications that aims at paperless office. The procedures laid down in this new edition of manual have been adopted for use after careful examination of methods and procedure followed in Departments/Offices in Government of Maharashtra. While doing so, the organizational needs of operating functionaries at the initiating level have been the primary concern. The Departments are expected to proactively adapt and switch over to the e-Office.

6. To provide sufficient flexibility, the Manual suggests the issue of Departmental Instructions which could supplement or vary, within limits, the prescribed procedures to suit special conditions and requirements. Each department may devise suitable arrangements, including inspections to ensure compliance of provisions contained in this Manual and Departmental Instructions issued by it.

CHAPTER -2
ORGANIZATIONAL STRUCTURE OF THE GOVERNMENT OF MAHARASHTRA

2.1 Governor:

The executive power of the State formally vests in the Governor and may be exercised by him either directly or through officer's subordinate to him, in accordance with the Constitution.

2.2 The Council of Ministers:

1) In the exercise of his/her functions, the Governor is aided and advised by a Council of Ministers headed by the Chief Minister. In actual practice, the executive power of the State resides in the Council of Ministers.
2) The Council of Ministers consists of two categories of Ministers, namely:
   a) Cabinet Ministers.
   b) Ministers of State.
3) The Cabinet, which consists of Cabinet Ministers, is responsible for shaping the overall policies of the Government in discharging its responsibilities. A Minister of State with independent charge also attends a cabinet meeting when subject matter of his/her department is considered. The cabinet also functions through its committees.

2.3 Allocation/Transaction of Government Business:

The Maharashtra Government Rules of Business, 1975 issued by the Governor under Article 166(3) of the Constitution for the convenient transaction of the business of the Government.

1) The Maharashtra Government Rules of Business, 1975 allocates the government's business among its many departments, which are allocated to the charge of Ministers by the Governor on the advice of the Chief Minister. In relation to a Minister's business, these regulations allow the affiliation of another Minister to undertake such responsibilities as may be explicitly allocated to him/her.
2) Maharashtra Government Rules of Business, 1975 seeks to define the authority, responsibility, and obligations of each department in the matter of disposal of business allotted to it. While providing that the business allotted to a department will be disposed of by, or under the direction of, the Minister-in-charge. These rules also specify:
   a) cases or classes of cases to be submitted to the Governor, the Chief Minister, the Cabinet, or its committees for prior approval; and
   b) the circumstances in which the department primarily concerned with the business under disposal will have to consult other departments concerned and secure their concurrence / comments before taking final decisions.

2.4. Departments:

1) A Ministry/Department is responsible for formulation of policies/schemes of the Government in relation to business allocated to it and for their implementation, monitoring, and review.
2) For the efficient disposal of business allotted to it, a Department is divided into Desks/Sections.
3) A Department is normally headed by a Secretary/ Principal Secretary/ Additional Chief Secretary to the Government who acts as the administrative head of the Department and Principal Advisor of the Minister on all matters of policy and administration within the Department.
4) The work in a Department is divided subject wise into various Desks/Sections under the supervision of Deputy Secretary/Joint Secretary.
5) A Section or a Desk is the unit in a Department with a well-defined area of work. It consists of Clerk cum typist, Assistant Section Officer, Desk Officer /Under Secretary. Sections are supervised by a Desk Officer/Under Secretary or an equivalent officer. Initial processing and submission of cases through noting and drafting is primarily done by Concerned Officer of the level of Assistant Section Officer/Desk Officer/Under Secretary. However, there are instances where cases are to be initiated at higher level. Policy related files for the approval by the Chief Minister or concerned Minister have to be initiated at Joint Secretary/ Deputy Secretary level. Even in such cases, functionaries in the Desk will provide the required assistance. Concerned Officer may deal with cases independently with stenographic assistance and submit it to his/her next higher officer in the hierarchy.

2.5 Subordinate offices:

Where the execution of the policies of the government requires decentralization of executive action and/or direction, a department may have its executive agencies as Subordinate offices.

Subordinate offices provide detailed executive directions required in the implementation of the policies, as laid down from time to time by the Department to which they are attached. They also serve as a repository of technical information and advise the departments on various aspects of matter dealt by them. Subordinate offices generally function as field establishments or as agencies responsible for the detailed execution of the policies of the Government.

2.6 Constitutional Bodies:

Such bodies are constituted under the provisions of the Constitution of India, such as, State Election Commission of Maharashtra, Maharashtra Public Service Commission, etc.

2.7 Statutory Bodies:

Such bodies are established and work within the scope, mandate and powers legally provided to them by an Act of the Parliament/ State Legislature (e.g., State Information Commission, Maharashtra State Human Rights Commission, Maharashtra State Commission for Women, Maharashtra State Commission for Right to Services, Office of the Lokayukta and Up Lokayukta, etc.)

2.8 Autonomous Bodies:

Such bodies are established by the Government to discharge their activities/functions relating to execution/implementation of policies of the government. They are given autonomy to discharge their functions in accordance with the Memorandum of Associations and Articles of Associations, etc. However, the Government's overall control exists to the extent of its policy framework on the subject. Some of the programmes and activities are funded fully or partly by the Government of India/ Government of Maharashtra generally through grants-in-aid. They are registered under the various Acts. Example: CIDCO, MHADA, MPCB, MMRDA etc.

2.9 State Public Sector Enterprises:

State Public Sector Enterprises (PSE) is the Company/Corporations under the administrative control of State Government and wholly or partially owned by it. Example: MEDA, MAHAGENCO, SICOM etc.

CHAPTER – 3

OFFICERS, EMPLOYEES AND THEIR FUNCTIONS.

To maximize the Governance, it is necessary to delegate powers to various functionaries and their responsibilities in the Departments of the Mantralaya is as follows:

3.1 Chief Secretary:

Chief Secretary is an officer appointed as such by the Government and who is Secretary to the Cabinet and who shall be the head of the Civil Services in the State.

3.2 Additional Chief Secretary / Principal Secretary / Secretary:

Additional Chief Secretary / Principal Secretary / Secretary to the Government of Maharashtra is the administrative head of the Departmental Mantralaya. He/she is the Principal Advisor of the Minister on all matters of policy and administration within his/her Ministry/Department. He/she is the Chief Supervisory Authority of the respective Department.

3.3 Joint Secretary/Deputy Secretary:

A Joint Secretary / Deputy Secretary is an officer who works on behalf of the Secretary, is in charge of a Mantralaya Division, and is responsible for the disposal of Government business handled in that Division. He/she should normally be competent to handle matters in accordance with the authorities given or the Department's channel of submission. Joint Secretary/ Deputy Secretary can also sign Orders, Financial Sanctions and affirm affidavits in High courts/ Supreme Courts. Policy-related files shall be initiated at the Joint Secretary/Deputy Secretary level for approval of the Chief Minister or the concerned Minister.

3.4 Under Secretary:

An Under Secretary oversees one or more Sections/ Units/ Cells and exercises control both regarding the disposal of business and maintenance of discipline. As Under Secretary, he disposes off as many cases as possible at his own level, but he/she takes the orders of Deputy Secretary or higher officers on important cases. He/she is inter-alia responsible for development and maintenance of aids to processing as tools of manual and electronic knowledge management.

Note- *Some Departments where Under Secretary hold supervisory post have to do supervision in the Desk and some Department Under Secretary did not hold Supervisory post. In that situation he/she must do Desk Officer / Section Officers function.*

3.5 Desk Officer:

Desk Officer functions as Desk functionary depending on nature of the responsibilities attached to the Desk. He/she examines and submits cases independently to the next higher officer and has the power

of decision making as that of an Under Secretary. The Desk Officer can also sign Orders, Financial Sanctions and affirm affidavits in lower courts. A Desk Officer is in-charge of a multiple sections, the primary unit of a Department in the Mantralaya, comprising a team of Assistant Section Officers, and Multi-tasking Staff (MTS) as supporting staff. A Desk Officer has overall responsibility for supervising the activities and performance of each section with the help of dealing officers and clerical support besides.

a) distribution of work among staff, training, helping, advising them in the matter of work, maintenance of discipline and team spirit in the Section.
b) monitoring of efficient and expeditious disposal of cases.
c) timely submission of reports and returns to higher officers and other concerned units and.
d) managing effective person-independent information management and records management in the Section.

Detailed responsibilities of Desk Officer

A. General Duties:

a) Ensure e-file system is implemented and sustained.
b) Distribution of work among the staff as evenly as possible.
c) Training, helping, and advising the staff.
d) Management and co-ordination of the work.
e) Maintenance of order and discipline in the section.

B. Responsibilities relating to Tapal/ E-Tapal:

a) to go through the receipts.
b) to submit receipts which should be seen by the Desk Officer or higher officers at the E-Tapal stage.
c) to keep a watch on any hold-up in the movement of E-Tapal ; and
d) to scrutinize the section, register once a week to know that it is being properly maintained.
e) Ensure digital registration of E-Tapal
f) Review category of receipt and ensure correct labelling (Immediate/MP/MLA, RTI, Grievances, etc)

C. Responsibilities relating to issue of draft:

a) to see that all corrections have been made in the draft before it is marked for issue.
b) to indicate whether a clean copy of the draft is necessary.
c) to indicate the number of spare copies required.
d) to check whether all enclosures are attached.
e) to indicate priority marking.
f) to indicate mode of dispatch.

D. Responsibility of efficient and expeditious disposal of work and checks on delays:

a) to keep a note of important receipts with a view to watching the progress of action.
b) to ensure timely submission of arrear and other returns.
c) to undertake inspection of dealing officer table to ensure that no paper or file has been overlooked.
d) to ensure that cases are not held up at any stage.
e) to go through the list of periodical returns every week and take suitable action on items requiring attention during next week.

E. Independent disposal of cases:

Takeover / Hand Over after transfer in Mantralaya ; All Officers shall submit charge transfer certificate to establishment to the Officer accordingly procedure laid down of General Administration Department Circular No. Misc. 2022/C.R.45/Desk-18 (O&M), Dated 25.08.22

3.6 Personal Staff Members of Minister/ Minister of State (MoS)

Private Secretary/ Officer on Special Duty/ Personal Assistant

a) Preparing executive summary on the important issues/important files facilitating decision making, and summary of previously asked/replied to starred questions and briefing the Minister/ MoS accordingly.
b) Management of Personal Section, providing leadership.
c) International/National level liaison and networking, coordination with Assembly/ Council, Ministries/Departments, and other offices, handling visitors, facilitating meetings/conferences, etc.
d) Keep himself/herself aware of the key performance areas, vision, mission of the Ministry/Department.
e) Security of personal and official information of the officer with whom he is working with and facilitating grievance handling.
f) Maintaining engagement diary.
g) Managing tours including foreign and domestic tours/managing office while the **Minister/ Minister of State** is away from office in meeting, on tour or on leave.

3.7 Senior Personal Assistant, Personal Assistant and Stenographer (Mantralaya Staff)

Taking dictation/transcribing, handling telephone calls, receiving visitors, tour programme / travel arrangements, maintaining the papers required to be retained by the officer and maintaining engagement diary, etc.

Handling confidential and secret E-mail/letters/E-Tapal /files, handling assembly work, security of information, facilitating meetings/conferences.

3.8 Assistant Section Officer:

He/she works as Dealing Officer under the supervision of the Section/ Desk Officer and Under Secretary. Each Dealing Officer is allocated subjects out of the subject areas allocated to the Section and he/she is expected to deal with all matters allocated or any other work assigned to him/her from time to time.

3.9 Clerk cum Typist:

Provides miscellaneous support to the Section /Unit /Desk in carrying out day to day work like photocopying /record handling and maintenance, registration of E-Tapal , marking / sending Receipts / files and other associated tasks or any other work assigned by higher authority of the concerned Desk from time to time. He/she may be assigned case work of repetitive nature.

3.10 Multi-Tasking Staff (MTS):

Erstwhile Group 'D' posts of Peon, Daftary, Jamadar, Operator, Chowkidar, Safaiwala, etc. are now designated as **MTS**. An illustrative (but not exhaustive) list of duties of MTS are:

a) Physical maintenance of records of Section.
b) General cleanliness & upkeep of the Section/Unit.
c) Photocopying, scanning etc.
d) Other non-clerical work in the Sections/Unit.
e) Assisting in routine office work like diary, dispatch etc. including on computer.
f) Delivering of urgent papers (inside & outside the building)
g) Watch & ward duties.
h) Opening & closing of rooms.
i) Cleaning of rooms.
j) Dusting of furniture etc.
k) Cleaning of building, fixtures etc.
l) Driving of vehicles, if in possession of valid driving license.
m) Any other work assigned by superior authority.

CHAPTER 4

DECISION MAKING PROCESS IN GOVERNMENT

Efficient decision making is fundamental to a responsive and accountable governance. Accelerating the pace and efficiency of decision making is crucial for economic growth and enhancing the ease of living of citizens.

The Council of Ministers shall be collectively responsible for any advice tendered to the Governor as well as any decisions taken by the Cabinet.

4.1 The key features of the Maharashtra Government Rules of Business to be followed:

1) Allocation of business: -
   a) The Business of the Government shall be transacted in the Departments specified in the First Schedule of the Maharashtra Government Rules of Business.
   b) The Government shall with the approval of the Governor, by notification in the official Gazette, allot the subjects to different departments specified in the First Schedule of the Maharashtra Government Rules of Business.
2) The Governor shall on the advice of the Chief Minister allot among the Ministers the business of the Government by assigning one or more Departments or part of Departments to the charge of a Minister.
3) Provided that, nothing in the Maharashtra Government Rules of Business shall prevent the assigning of one Department to the charge of more than one Minister.
   a) Where a question asked by member of the Legislative Assembly or Legislative Council concerned Departments which are in charge of different Ministers, it shall be answered by the Minister-in-charge of the Department to which the question is sent by the Secretary, Maharashtra Legislature.
   b) Such Minister shall, before answering such question, consult Minister-in-charge of the other Departments concerned as to the reply to be given to those parts of the questions which concern such departments.

4.2 Powers have generally been delegated to the Secretary of a Department or Head of the Department:

1) In cases of matters delegated to the Secretary of a Department or Head of Department, the subject shall be processed by the office on an e-file to enable the competent authority to take a decision.
2) For decisions requiring approval of Committee of Secretaries, Group of Ministers, Sub-committee of the Cabinet or the Cabinet, guidelines issued by General Administration Department are to be followed.
3) Illustrative examples of cases where such Inter-Ministerial consultations are required are given in the table – 4.1. (*Rules of Business to be referred for more details)*

Table – 4.1: Illustrative list of cases where inter-Department consultations are required -

Sl. No.	Matters pertaining to	Ministry / Department to be consulted
1.	Financial matters	Finance Department
2.	Service matters	General Administration Department
3.	Matters relating to proposals concerning legislation, the making of rules and orders and preparation of important contracts to be entered into by the State Government etc.	Law and Judiciary Department
4.	Matters relating to plan schemes and allocation of funds.	Planning Department

(*Rules of Business to be referred for more details)*

(i) For matters delegated to an authority within a department, decisions are arrived at through noting from the initiating officer on a file which is submitted to the competent authority through the channel of submission.

(ii) Sections/Desks are encouraged to develop and update tools of knowledge management to develop and institutionalize a 'person- independent' information system for retention of knowledge and its transfer to the successors.

(iii) The process of decision making in Government depends on whether it needs approval of the Legislature or the Cabinet/Committee of the Cabinet or is within the powers of the Minister or Secretary. Thus, decisions made in Government may be categorized as under:

(i) Legislative proposals

(ii) Policy issues

(iii) Other than legislative proposals or policy issues under the delegated powers of the concerned Ministry/ Department.

4.3 Efficiency in Decision Making in the Government:

1) Efficient decision making is fundamental to a responsive and accountable governance. Accelerating the pace and efficiency of decision making is crucial for economic growth and enhancing the ease of living of citizens. Maharashtra Manual of Office Procedure, 2023 aims to bring simplicity, efficiency and transparency in Government processes and procedures. It has a guiding framework for effective functioning of all the State Government Departments.
2) Compliance of the following provisions of Maharashtra Manual of Office Procedure, 2023 will enhance efficiency, transparency and accountability in decision making.
3) Shall make available on the website of each Department, the channel of submission of cases, other

than the classified ones. Review, at least once in three years, the levels of disposal and channels of submission. Based on this, the Dealing Officer will act on the cases.

4) Each Department shall identify the work that could be handled in a more effective and efficient manner for optimal use of Desk Officer System.
5) E-Office platform should be optimally used by Ministries/Departments to bring more transparency, efficiency, and accountability in the Government transactions leading to increased promptness and productivity. For this, the reskilling/ upskilling of the officers and the staff shall be suitably addressed. Ministries /Departments shall be required to take action to update versions of e-office from time to time.
6) Every Ministry/Department as well as their attached and subordinate offices shall strengthen the Central Registry Unit (CRU) by meeting the human resources and infrastructure needs for the functioning of the Digital Governance.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER 5

RECEIPT, REGISTRATION AND DISTRIBUTION OF TAPAL/ E-TAPAL

5.1 Central Registry:

The Central Registry in each department will receive all communications addressed to the department and distribute them to the concerned Desks. The Registry should as far as possible be centrally situated so that it may serve all Desks with equal speed and efficiency.

5.2 Receipt of Tapal , E-Tapal during office hours on working days:

All Tapal , E-Tapal , local and postal, including registered and insured articles, addressed to the Department will be received during office hours by the receipt clerk. The receipt clerk should be posted for duty near the entrance of the Registry room.

Box-e.5.1

In eFile, all physical E-Tapal irrespective of whether the Department is working in physical or electronic mode will be received through eOffice in the Receipt inbox of Receipt Section.

5.3 Opening of Tapal/ E-Tapal at Central Registry:

Covers (received in ordinary postal tapal) addressed to an officer by name will be sent to him unopened forthwith. If the officer concerned is absent, on tour or on leave, such covers should be sent to the officer who is looking after his work.

a) Covers bearing security markings which are not addressed to an officer by name will be sent to an officer, designated for the purpose. These will be dealt with by him in accordance with the security instructions-vide Rules for handling and safeguarding of Top Secret, Secret and Confidential documents, which have been prescribed separately.

b) All other covers will be opened by a peon who will stamp it with a date stamp as in the facsimile in the margin in the following format and thereafter pass it on to the receipt clerk.

Department- _____ Received date-	
Department.... Received.... Serial No....	Date…

5.4 Marking of Tapal/ E-Tapal:

1) The receipt clerk will check the enclosures and make a note on the Tapal/ E-Tapal of the enclosures as well as the missing enclosures, if any. After checking the enclosures, he will mark the Tapal/ E-Tapal to the concerned Desk. To facilitate marking of Tapal/ E-Tapal an alphabetical index of the subjects dealt with in each Desk will be supplied to the Receipt Clerk. This list will be revised and kept up to date from time to time in consultation with the Desks. The receipt clerk will consult the

head of the registry when in doubt about the proper marking of the receipt.

2) If the head of the registry himself is in doubt, he will consult the establishment officer of the department as to the correct desk to which the receipt should be marked. When a receipt is marked to a desk in the registry and the Desk Officer of the desk considers that it is not for his desk, he should return the same with reasons why it is not concerned with the desk instead of merely returning the receipt to the registry with the remarks "not for desk". The Head of the Registry thereafter shall obtain orders of the Establishment Officer on such Tapal/ E-Tapal it shall be dealt with by the Desk as per order of the Establishment Officer.
3) Receipts bearing priority markings (i.e., immediate, Urgent, etc.) should be separated from the other Tapal/ E-Tapal and attended on priority basis.

5.5 Registration of E-Tapal in the Central Registry:

1) The Receipt Clerk will scan the receipts and upload to e-office for registration and distribution to desk. Every receipt will be registered by the Diary Clerk in a receipt e-register/ register which will contain the following columns:-
   a) Auto Generated Serial number.
   b) Communication number and date (as given by sender).
   c) From whom received.
   d) Subject
   e) Desk to which sent.
   f) Remarks.
   g) Contact number/ E-mail of the sender.
2) The Diary Clerk will first enter the above information in e-Office register at the beginning of each day. The Serial No. will be Auto generated simultaneously on the e-receipt.

5.6 Guidelines for handling and scanning of Tapal (According to following table):

TAPAL TYPE	REGISTRATION	SCANNING	HANDING PROCEDURE
Newspapers, Magazines, and periodicals.	NO	NO	Hand over to Library/ Concerned Desk or Departments Coordination Desk
Private TAPAL e.g., LIC reminders, personal bills.	NO	NO	Handover to addressee/PA/MTS.
Private Tapal by registered or Speed Post.	NO	NO	Receive in paper register, take signature of addressee/PA/MTS.

Tapal sent by office name.	YES	YES	Open Envelope, Scan, and register, electronically forward to Desk/ Section concerned. Write Registration number on original paper and send to respective Desk/ Section.
Tapal by office name with bulky enclosures. brochures etc.	YES	Scan Covering letter; Enclosures sent as hard copy.	Remarks about enclosures will be entered in the Registration. If documents are important, Officer/ Section/Personal Staff may scan them and keep in a file against registration number.
Tapal by officer's name or marked Private /Classified etc.	YES	NO	Will not be opened. However, it will be registered and electronically forwarded to the addressee. Registration number and date will be written on the unopened envelope, and it will be sent to concerned officer or his/her PA. It will be duty of the addressee or his/her PA to scan it and enter eFile against the concerned registration number.
Note: The above-mentioned guidelines are for reference purpose only. The departments need to have their own instructions depending on different types, nature, and importance of the Tapals received.			

5.7. Acknowledgement of E-Tapal:

The receipt of E-Tapal including files from other Departments, except ordinary postal Tapal , will be acknowledged by the recipient through the e-Office and it will be sent through e-office to the concerned departments.

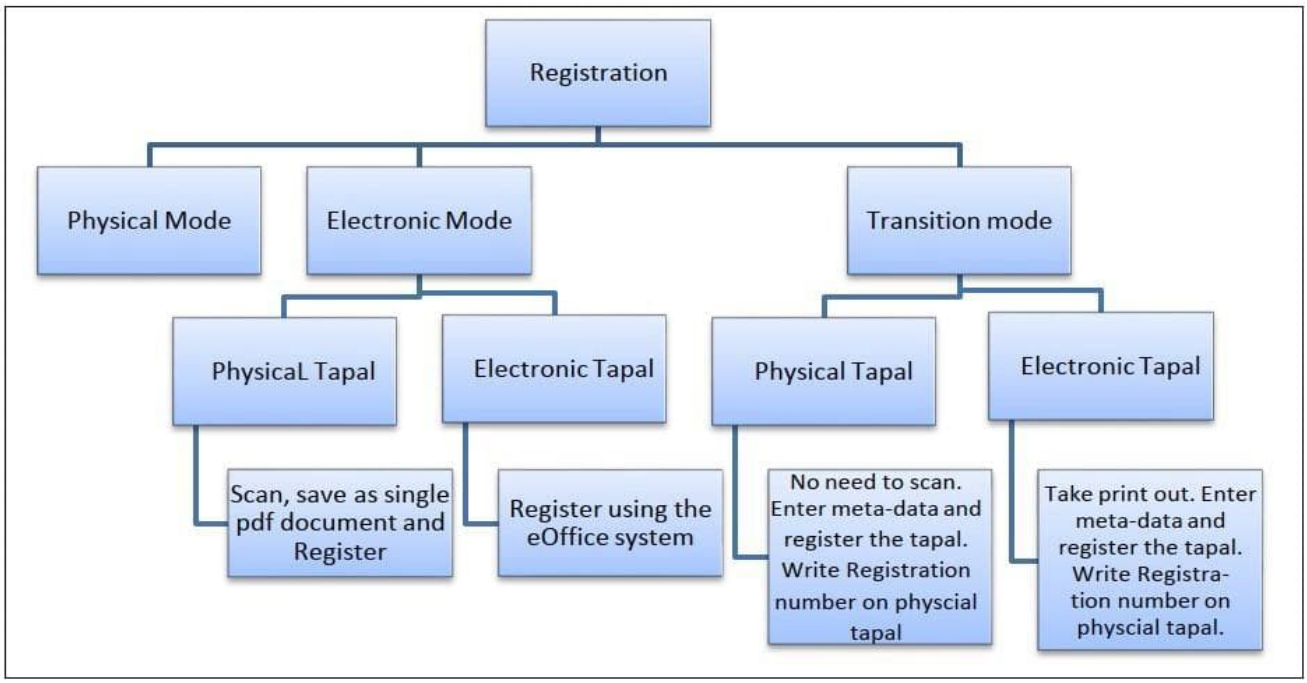
5.8 Distribution of E-Tapal to Desk:

a) The Registry will maintain automatically generated e-receipt book for each desk and the diary clerk will then send the registered e-receipts to the Desk officer of concerned Desk through e-office.
b) Unofficial receipts marked to officers either by name or by designation will be sent direct to the officers concerned.
c) Entries in receipt registers will be made on consecutive lines without leaving blanks.
d) Receipts will be distributed to desks at regular intervals. Other receipts bearing priority markings will, however, be sent to desks or officers as and when received. Ordinarily receipts received after 5-30 p.m. may be held over for distribution on the next working day.

Box-e.5.2

The receipt number generated is unique and is non-editable. It also is appended with Section code for easy identification. Date and time stamp of receipt generation, which is maintained in the system, is also available with the receipt in electronic mode.

5.9 Flow Chart of E-Tapal:



Box - e.5.3

Note:

Transition Mode means processing of Receipts and File is done physically andtracking is done electronically through eFile.

Electronic Mode means processing of Receipts and Files is done electronicallythrough eFile.

Log of movement details of files and receipts, electronic as well as physical, ismaintained in the system.

Box - e.5.4

In eFile, all E-Tapal are registered, the registration number thus generated is unique in nature and is a running numberthroughout the Department. Every time the CRU/ an officer accesses the eFile for registering a Tapal, a new number will automatically be generated against it. Registers maintained at various levels like CRU Register, Section register, and the Personal Section or Staff register etc. need not be maintained in the electronic environment as the system saves all the data and search and retrieval processes are done based on these data: computer number/receipt number/key word of subject.

Functions of CRU

APPENDIX 5.1

CRU "Process Flow":

1) Receipt of Tapal: The physical TAPAL for the department is received.

2) Scanning: The physical Tapals received is scanned & saved as pdf document. All papers of a single Tapal must be scanned and saved in a single document. Cases wherein voluminous books, papers etc. are sent as annexure, the sender may be requested to send a soft copy or indicate public website link from where the book, etc. may be downloaded.

3) Registration:
   a) The scanned copy of the E-Tapal is uploaded in the system along with its details (meta-data) if the processing of Receipt is completely electronic.
   b) If the processing on a Receipt is to be done in physical form, the registration is to be done using eFile. In order to provide ease of access & avoid any loss of letter at a later point of time, the E-Tapal should be scanned and uploaded during registration.
   c) If E-Tapal received is in the form of e-mail, following actions can be taken as per the processing nature in eOffice-
      - Electronic processing in eOffice: the mail can be converted into PDFs for further processing.
      - Physical processing in e-office: a print-out is to be taken.



- In both the processes, the meta-data must be entered, and registration/receipt number generated by the system, which is in serially for the entire Ministry/Department.

Storage of physical E-Tapals after scanning: After scanning and registration, the physical E-Tapals along with registration/receipt number is to be sent to the respective sections. This is done so as to retrieve and refer to, if required.

Distribution of Receipt: The receipt may be forwarded to the concerned desk/ section.

CHAPTER - 6
PERUSAL OF TAPAL/ E-TAPAL

6.1 Perusal of Tapal/ E-Tapal by Desk Officer/ Under Secretary:

The Clerk cum typist will place all the receipts in the "E-Tapal" through e-office to Desk officer/Under Secretary as and when they are received from the Central Registry. The Desk officer/Under Secretary will go through the E-Tapal immediately on receipt and will- determine priority for action on receipts and mark those calling for quick action "emergency" "immediate" "urgent" etc. as may be appropriate, marking being done in ink on the receipt itself; based on subject (e.g., Immediate, Assembly, Budget, Court matter, RTI etc.)

Notes-

1) Where the post/ tapal, e.g., demi-official letters or confidential letters are received by offices, the urgency of the communication should by indicated by them on the receipts to the desk.

2) The actual affixing of the label "Urgent" or "Immediate" etc. may be done by the Assistant Section Officer but their responsibility to deal with the cases in accordance with the priority indicated by the Desk Officer/Under Secretary or concerned officer will commence at once.

3) Sort out important receipts, reminders irrespective of their crucial worth and coming from any other types of receipts (to be specified in an office order to be issued under this sub paragraph) and indicate the designation of officers to whom they should be submitted for perusal at the E-Tapal Stage.

4) Check the enclosures and make a note on the receipt of papers if any, found missing; Spot out receipts, if any, which are mis-sent to the desk or the subject-matter of which does not pertain to it. If a Desk Officer/Under Secretary thinks that a receipt if marked to desk wrongly, he should refer the matter to the concerned officer and obtain his decision regarding correct making on the same day.

5) Mark all receipts other than those at (2) and (4) to the noting Assistant Section Officer (including himself) according to the subjects allotted to each; See if the subject matter of any receipt clearly pertains to another department and give instructions to the Assistant Section Officer concerned in his desk for its transfer to the department concerned.

6) Give instruction where necessary regarding the line of action on the receipts marked to noting Assistant Section Officer; and Make over the entire E-Tapal to the diarist.

7) (Note- Assistant Section Officer should be allotted definite subject by Desk Officer/Under Secretary and making of post should be consistent thereafter)

Box - e.6.1

In eFile, the marking of a receipt or a file is made to the officer concerned in pre-defined field, including self. In case of Receipt, there is a provision to mark a copy to other officers too. Direction may be given from the drop- down menu of 'Action'. Sender may use the 'Remarks' field to record his comments. Officers can set due date for submission in the 'Set due date' field.

6.2. Mis-sent and incorrectly marked receipts:

1) The diarist will first check-up if the Desk Officer/Under Secretary has given instructions for returning and of the receipts to the Central Registry. He will personally see that such receipts are handed over to the receipt clerk in the Registry. The latter will initial the desk receipt book in token of having received such receipts back.
2) If the Desk Officer/Under Secretary obtaining the orders of the concerned officer for the transfer of any receipt from his desk to another vide paragraph 5 (i) above, the Head of the Registry should see that necessary changes are made in the receipt register and the receipt is sent to the desk to which it is transferred.
3) If the reasons of expediency desk hands over a receipt to another desk directly instead of returning it to the Central Registry, the desk transferring the receipt will obtain the initials of the diarist in the receiving desk and inform the Central Registry of the transfer effected. The receiving desk will enter the serial number of the relevant receipt in the desk diary under the appropriate date.

6.3. Assignment of file numbers to receipts:

1) The file number is Auto generated in the e-Office
2) If a file number is quoted in the receipt itself (which is usually the case), the same file number will be inserted in reference.
3) If a subject head corresponding to the subject of the receipt is not traceable in the approved list, the position will be brought to the notice of the Desk Officer/Under Secretary who will obtain approval of the desk officer for opening a new subject head and assigning a file number to it. The Clerk Cum Typist will then enter the new subject head and the fie number in the list and simultaneously enter the file number in the stamp on the receipt concerned.

6.4. Diarising of receipts:

1) The Clerk Cum Typist will then 'diaries' i.e., enter the receipts in the e-register.
2) Unofficial references, i.e., cases received from the Departments in original for advice, views, etc. which will ultimately go back to them will be entered in a separate diary called diary of unofficial references in the same form as of the desk diary referred to above.
3) The date of entry of receipts in the desk diary will be written boldly across the page at the beginning of each day
4) Entries will be made on consecutive lines without leaving blanks.
5) Later references will be linked with the earlier diary numbers after indicating such linking clearly against each entry.

6) All movements of files, of a temporary nature (viz., submission to officer, resubmission, marking for issue section, await) should be entered in the index-cum-movement card, and the final filing orders only should be entered in the desk diary. Such index-cum-movement card should be maintained for each batch of current papers showing the original (first) serial number on it. All receipts received and added to the file till the case is finally disposed of should be linked in the desk diary with original (i.e., first) serial number. All further correspondence on the subjects should be carried only under the original (i.e., First) serial number and not on any subsequent serial number linked to it.
7) Particulars of communications from private individuals or non-official bodies will be entered in the Name Register.

Box - e. 6.2

In eFile when registration of Tapal is done electronically but processing on it isdone physically then the acknowledgement is done as above because the paper/receipt moves manually.

However, when registration and processing both are done electronically thenno register is required.

6.5. Types of receipts which should be diarised:

Subject to the exceptions enumerated in para 6.4, the following types of receipts will be automatically generated in e-register:-

1) All communications received from outside the department including unofficial references received from other departments or an attached office.
2) All independent minutes or notes received from any Ministry or Department.
3) Extracts from notes retained from files, or from minutes of meetings, tour notes, inspection reports, etc., on which action is necessary.
4) Copies of office orders, memoranda, etc., received from any other desk on which action is necessary.

6.6. Types of receipts which should not be diarised:

1) Unsigned communications on which no instructions have been recorded by officers and on which no action is called for.
2) Extra copies of one and the same representation by the same person addressed to the same or different authorities.
3) Copies of circulars, office memoranda, extracts, etc., which are received during circulation for general information (i.e., list of holidays, list of telephones, tour programmers, etc.).
4) Any other type of receipts specified in an office order, if any, issued by the department.

6.7. Submission or distribution of E-Tapal by Clerk

Receipts marked by the Desk Officer/Under Secretary for submission to officers at the E-Tapal stage will be sent to them by the Clerk as soon as diarized. Those marked for the noting assistants (Including the Desk Officer/Under Secretary) will be distributed to them simultaneously.

6.8. Perusal of E-Tapal by Senior officer – The officer will-

1) Go through the E-Tapal as soon as it is received from the desk or registry.
2) Initial every receipt in token of his having seen it.
3) Indicate whether copies of any receipt are required to be sent to the chief Secretary to Government and see that they are sent to the Chief Secretary/Secretary, accordingly.
4) Retain receipts which he would like to handle personally without the assistance of the office; and
5) Return the rest to the Desk Officer/Under Secretary with directions, where necessary, as to the course of action required to be taken or with instructions to put up only files or papers without noting by office.

6.9. Registration and distribution of E-Tapal received back from officer:

1. The receipts which were sent to the officer will, on their return, be marked to noting assistants and distributed to them after taking note in column (6) of the desk diary.
2. Files and papers asked for by the officer will be put up to him without loss of time.

Box – e. 6.3

eFile tracks every movement of a Receipt or a file.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER- 7
FILE NUMBERING

7.1 Explanation of certain terms regarding file numbering:

1) A "Case" consists of any single transaction of official business on a particular subject. It is comprised of a single 'receipt' or number of receipts added to it from time to time during its final disposal. A "File" may consist of a single case or several cases regarding a series of transactions on the same subject and to which the same file number is assigned. The "Title" of a file means the subject allotted to that file. The "Standard List of Titles" means the approved list of titles commonly used in a desk/department. The most important word used in the title is known as the "catch-word" from which are derived "trilateral."
2) File: means a folder consisting of related papers on a specific subject consisting of one or more of the following parts with a file number.
   a) Correspondence portion: Contains all incoming written communications that are inputs to take decision; and Office copy of the communication sent by office.
   b) Notes portion: Contains the process sheet i.e., how decision was taken on a case.

Box-e. 7.1

eFile mainly comprises of:

1) Notes
2) Correspondences
3) Draft communication
4) References
5) Linked files (actionable files)
6) Attached files (linked for reference purposes)

7.2 Title:

The title and the file number either singly or together help in the identification of a case or a file. As a rule, no papers should be in action in an office without bearing a title and a file number. The title should be divided into the following manner: -

a) **Head –** The important word that is placed first in the title by which its alphabetical position in the index is determined and on which primarily depends the probability of finding the title in the index is called the "Head". The head must be a word or words that will naturally occur to anyone who wants the papers. It must not be too wide.
b) **Sub-Head—**The head will be followed by a sub-head or sub-heads which should be more indicative of the precise subject of the file than the head. When it is necessary to have more than one sub-head for a title, the wider and more abstract should generally precede the narrower and more concrete.
c) **Content—**After the head and sub-head will come 'content' This must be as brief as compatible with clearly expressing the exact subject of the file. A content worded in general terms is of title

practical use, of, if it does not distinguish a file from others relation to closely similar but not identical subjects, time may be wasted for taking out and examining several files before what is wanted is found. Examples of titles, sub-titles and content are given below—

(i) **Subject dealt with**- Question whether merit should be regarded as the sole criterion in making promotions and confirmation in the selection posts.

(ii) Enquiry whether it is necessary to communicate adverse remarks in the confidential reports to persons concerned in the certain circumstances

Title, sub-title, and content

Selection of posts- Promotions and Confirmation Merit sole criterion—

Confidential Reports—

Adverse remarks—Circumstances in which Communication necessary—

(iii)In the both the above titles, the words in the first line are heads, those in the second line are sub-heads, and the rest of the title is content- The main head may be used alone if there is no sub-head under it, but a sub-head cannot be used without a main head. It is even possible that a main head, e.g., 'Budget' may be used as a sub-head under another main head, as for example 'place'. If a file or an order deal with more than one subject, two or more complete titles under different heads may be necessary. In such cases, the file should be indexed under the most important head only, while against the other heads a cross reference should be given, i.e., "see----"(mention here the most important head use for indexing the file). Thus in "government Servant's Conduct Rules" a cross reference may be given to the other.

G: "Government Servants Conduct Rules."

C: "Conduct of Government Servants" –see G"

(iv)Care in framing and use of titles. —The whole title head, Sub-head and content consists mainly of substantive adjective (where necessary) and participles. Minor parts of speech should be excluded as far as possible to make a strict alphabetical arrangement practical. The title should be articulated or broken up into members, each consisting of as few words as possible and each expressing and element in the subject-matter. Each will begin with a capital letter and separated from the proceeding one by a bold dash as in the examples given above.

(v) Two Titles. —Of two aspects of a question are very much interconnected and are dealt with one the same file, two or more complete titles may be necessary each being indexed separately duly cross referenced.

7.3 File Numbers:

1) File number consists of three portions, viz., trilateral representing the main head of title followed by a number consisting of four digits. The first two digits represent the sub-head, and the second two digits the year of the file. To the file number is added the designation of the desk, e.g., the title "Ceremonial-Republic Day" dealt with in the E Desk will be represented thus: "CER-1158-E". Here the trilateral represents the main head "Ceremonial" the first two digits of the number 1158 represent the sub-head "Republic Day" and the second two represent the year of the file, viz., 1958. The number is followed by the letter E which represents the desk to which the file belongs.
2) Each Sub-head under the title is given an appropriate number of two digits from 10-99. The first digit 10 may be conveniently reserved, if need be, for indexing the parent for dealing with general questions or points common to several sub-heads under the title.
3) In the case of questions, resolutions, etc., in the Legislature the indexing should be made under the main head "Legislative Assembly", or 'Legislative Council' followed by the 'Questions or 'Resolution,' i.e., LAQ or LAR or LCQ or LCR, the sub-head bearing the month and the year followed by the usual sub-head of the Question or Resolution. When a question or a resolution result in the issue of general orders the disposal should be indexed under the General Head with cross reference under the above heads.
4) File for Periodical Returns should be given bear serial numbers 1, 2, 3, etc., each number prefixed by the letter "P".
5) Miscellaneous correspondence, the contents of which are of an ephemeral nature and are not required to be preserved for more than a year should not bear any four-digit file number. It should bear only the trilateral and the serial No. (e.g., MSC-14083-Elec.). If it is later found that a major issue is involved in such correspondence, the entire should be brought over to a regular file number.

Box - e. 7.2

In eFile, the system appends the file number automatically with Receipt once it is put up on an e-file. Date of submission is reflected both on the notes and in the movement details automatically once the file is marked and sent.
Action on missing enclosures / attachments: Dealing officer is to use 'Standalone dispatch facility to obtain the missing enclosures / attachment. In case this responsibility is assigned to CRU, the missing enclosure/attachment can be obtained in shorter time. To achieve this, CRU must be provided with an authorized e-mail ID, as indicated in Appendix – 5.1

Box-e. 7.3

File numbering in eFile is based on the type of file numbering system adopted by the Department. In case of functional file system, eFile has a provision to include basic, primary, secondary, and tertiary heads in respect of the substantive functions of the Department. eFile also has provision for file numbering system based on subject classification. However, efforts are to be made by each Department to move from the file numbering system based on subject classification to the functional file numbering system.

7.4 Need for consistency in the use of Titles, etc.:

1) Consistency is essential in the selection of both titles and trilateral. For example, a file dealing with the question of PAY should be indexed always under PAY and not sometimes under 'Pay' and sometimes under 'Salary' and at other times under 'Emoluments'. The same applies to the selection of trilateral derived from the catch words of title, e.g., the title "Ceremonials" should always be represented by the trilateral CER and not sometimes by CER. and sometimes by CRM. It should be remembered that if the titles and the trilateral are inappropriately chosen, so long as there is consistency in their use, less difficulties will arise that if there are in themselves better but inconsistently chosen. It is also necessary that two desk in a department should not use the same trilateral, even if different titles used by them are capable of being reduced to identical trilateral, e.g., "Telegrams-avoidance of the use of-in non-urgent cases" and "Telephones-installation of" the former title can be changed to TLG (1159); however, the former title can be changed to TLG (1159) to avoid confusion.
2) The standard List of Titles. -Each desk should draw up un exhaustive list of titles, heads and sub-heads for files commonly used by it also indicating the files number to be allotted to each. The list should be prepared by the desk officer and approved by the Secretary of the department. The list should then be always adhered to and if any change is sought to be made in it, it should be brought to the notice of the Secretary, and with his permission the necessary changes made. This list will be known as the standard List of titles. Copies of the list should be supplied to the Registry, Superintendent, and all officers in the department before the beginning of the year to which it relates.
3) The preparation of the list would be facilitated by reference to the titles of current files dealt with in each desk and will usually comprise of titles, for recurring files. As far as possible, the standard Heads will be allotted the same file numbers year after year.

7.5 Opening of new Files:

1) For each title, a new eFile will be opened every year, the eFile of the previous year being closed as soon as possible.
2) If the subject-matter of a communicating received during the course of a year clearly falls outside the titles in the standard List, a new title should be framed and a file number allotted to it with the approval of the officer concerned, care being taken to see that the new title or the file number given

to it does not conflict with that allotted to a file by any other desk in the department. The same procedure may be followed if a desk is called upon to deal with a new subject not formerly handled by the department.

3) As a rule, there should be a separate e-file for each destined subject. If the subject of an e-file is too wide or too general, there will be a tendency to place all e-receipts dealing with different aspects of the matter which apart from making the e-file unwieldy will impede business. If the issues raised in receipt or in the notes or in the order passed thereon go beyond the original subject, relevant abstracts should be taken and dealt which separately on a new e-file which should be indexed in the appropriate manner. (This also applies to opening of the new cases under one and the same e-file).
4) A part e-file may also be opened if the main e-file is not likely to likely to be available for some time or when it is desired to consult simultaneously other desk/departments or officers. In such cases, copies of relevant notes, correspondence, etc., may be taken from the main e-file and kept in the part-e-file. A part-e-file thus opened should, however, be amalgamated with the main e-file as soon as possible if this can be done without affecting the sequence of the proceedings. Otherwise, it may just be added to the main file at the stage of recording.

7.6 Instances where new E-files need not be opened:

1) Normally, no new e-files will be opened for dealing with receipts of a purely routine nature (e.g., requests for supply of unclassified information, notices of holidays, miscellaneous circulars) which can be disposed of straightaway by noting the reply on the source receipts and returning them to the originators; or
2) Unlikely to generate further correspondence. Therefore, can be placed in a miscellaneous e-file to be destroyed at the end of the year, or placed in the folder of circulars, etc.; if any, on the subject. Departmental instructions may be issued on this.

7.7 Filing of e-papers:

1) Filing of e-papers means placing the PUC and / or FRs in the correspondence portion and the notes in the note portion of the file.
2) Papers required to be filed are to be punched in the center on the left-hand side leaving 1 inch each at left side and tagged onto the appropriate part of the file viz. notes, correspondence, appendix to notes and appendix to correspondence, in chronological order, top to bottom with the oldest at the top and latest reference at the bottom.
3) Both the ‘Notes portion’ and the ‘Correspondence portion’ of a file are to be separately page numbered. The first page of the correspondence shall be on the top while the last page shall be at the bottom of the correspondence portion.
4) Sometimes, the latest PUC or FR is kept on top for quick access by the senior officers. While doing so, it must be ensured that each such PUC and / or FR (s) is page numbered and referenced and docketed. After action thereon is decided, these PUC and / or FR(s) along with copy of the outgoing communication, if any, must be transferred to the bottom of the correspondence portion to ensure chronological sequence.

5) Both the `notes portion' and the `correspondence portion' are placed in a single file cover. Left end of tag in the note portion will be tagged on to the left side of the file cover and right end of the tag will remain as such i.e., untagged. In the case of correspondence portion, right side of the tag will be tagged onto the right side of the same file cover and left side of the tag will remain as such i.e., Untagged.
6) Earlier communications referred to as the receipt (R) or the issue (I) will be indicated in red ink by giving the position of these references on the file.
7) Routine receipts and issues (e.g., reminders, acknowledgments) and routine notes will not be allowed to clutter the file. They will be placed below the file in a separate cover and destroyed when they have served their purpose, unless these have an audit or legal necessity, in which case they are to be filed chronologically in the correspondence portion.
8) If the file is not bulky, correspondence may be kept along with the respective note portion or the correspondence portion respectively of the main file.
9) To facilitate easy handling of file, when the 'notes' plus the correspondence' portion of a file become bulky, it will be stitched and marked `Volume I' e.g. A – 11011/2/2019 – Est (Volume – I). Further papers on the subject will be added to the new volume of the same file, which will be marked `Volume II' e.g. A – 11011/2/2019 – Est. (Volume – II), and so on.
10) In Volume II and subsequent volumes of the same file, page numbering in notes portion and correspondence portion is to be made in continuity of the last page number in note portion/correspondence portion of the earlier volume.

7.8 Docketing:

"Docketing" means making entries in the notes portion of a file about the serial number assigned to each item of correspondence (whether receipt or issue) for its identification. After Docketing, if the Desk Officer or any higher officer has made any remark on the receipt, it is reproduced before recording the note.

7.9 Linking of files:

1) If the issues raised in two or more current files are so inter-connected that they must be dealt with together simultaneously. Such linking may also be resorted to, if a paper on one current file is required for reference in dealing with another current file, unless a copy of the paper can be conveniently placed on the first file.
2) Attaching a file is different from linking file(s). Linked file(s) is/are file(s) where decision is required; while an attached file is a file which is 'attached' only for reference purposes.
3) The linked files are to be stacked one above the other. The linked file(s) is /are to be displayed by placing a slip on the flap on the file board as under.
4) Specimen of slip to be attached on file board flap while linking files
5) On return of the file after completion of action, the linked and the attached files will be immediately delinked after taking relevant extracts and placing the extracts in linked files.

Box-e. 7.3.

In eFile, all electronic receipts including scanned copy of PUC and FRs are attached or uploaded to eFile. For electronic Files the need for creating a newvolume does not arise.

Box-e. 7.4 : Arrangement of papers in a file

How are papers to be arranged in a file?

The papers in a case will be arranged in the following order from topdownwards:

1. Acts/ Rules/ Instructions or Reference books.
2. Notes portion of the current file ending with the note for consideration.
3. Draft for approval, if any.
4. Correspondence portion of the current file ending with the latest receipt or issue or running summary of facts.
5. Appendix to notes and correspondence, if required to approve the proposal; else they may be kept in safe custody by the Dealing Officer.
6. Standing Guard File, Precedent Book, or Reference Folder, if any.
7. Other papers, if any, referred to, e.g., extracts of notes or correspondence from other files, copies of orders, resolutions, gazettes, arranged in chronological order, the latest being placed on the top. These too are page numbered and to be filed in the correspondence portion.
8. Recorded files, if any, arranged in chronological order, the latest being placedon the top; and
9. Routine notes and papers arranged in chronological order and placed na separate cover.

In eFile, papers are arranged in each part of the file as given in the box underpara 7.1. There is no need for Appendix to Notes or Appendix to Correspondence in eFile.

7.10 Transfer, reconstruction and renumbering of e-files:

1) Whenever work is transferred from one Department/Section to another, the former will promptly transfer all the related records including files, both current and closed to the latter. In case of transfer of files from one Department to the other a list will be prepared, and approval of Head of Department will be taken. The Department/ Section taking over the records will not reclassify or renumber the closed files transferred to it. In the case of current files, the endeavor should be to close them at the earliest possible stage and to open new files according to the Department's/ Section's own scheme of classification for dealing with the matter further.
2) A file will be reconstructed if it is misplaced. The file number and the subject will be obtained from the file register and the copies of correspondence will be sought from the corresponding Department. On receipt of all such papers they will be arranged in chronological order on the file and a self-contained note will be prepared based on the copies of correspondence and placed on the notes portion of the reconstructed file.

Box-e. 7.5

Similar transfer of files can take place in eFile by the eFile Administrator.

7.11 Movement of files and other papers:

1) Movement of files will be entered in the file movement register.
2) When current files are linked, the movement of the linked files will be marked in the space allotted in the file movement register for the file with which these are linked and individually in the space allotted in the file movement register for each of the linked files.
3) When recorded files are put up with a file, the movement of the recorded files will be marked in the space allotted in the file movement register for the file with which these are put up.
4) Movement of files received from other departments/ sections and other receipts which have not been brought on to a file in the receiving section will be noted in the `remarks' column of the section register.
5) No current file will be issued to other sections except against written requisition and after marking its movement in the file movement register.
6) Files and other papers marked by the Desk Officer/Under Secretary to other officers, sections or departments will be routed through the section for noting their movement.
7) When the files are handed over personally by the Under Secretary to other officers, he will inform the section officer accordingly who will ensure that the movement of such files is marked in the file movement register.
8) The personal staff of officers of the rank of Deputy Secretary and above will maintain the movement of papers received by their officers in the respective personal section register. Movement of any file handed over personally to a higher officer or to the Minister will similarly be noted by the personal staff. Papers/Files marked by them to other departments, however, will be routed through the section concerned, for noting their movements in the file movement register or section register as appropriate.

7.12 Annual General List of files:

1) The annual general list of a department is a consolidated list of files opened by its different sections during a year.
2) It should be compiled based on the File Register maintained by different Desk. The work of compiling the general list should be coordinated by the registry section in each department.
3) Entries in the general list should be made in the alphabetical order of the trilateral of the file number which should appear in column one and the titles of the files in column tow. The number and title of a sub-file should appear immediately below those of the main file.
4) Care should be taken to see that files which were expected to be opened based on the Standard List of Titles by were not actually opened during the year do not find place in the general list. Entries regarding individual cases complied in a file need not also find place in the general list.
5) The general list should be prepared by the end of February each year and copies thereof given to all desk and supplied to all departments.

Box-e.7.6

In case of electronic file or receipt its movement is recorded in the system automatically, as, and when a user sends it to another. However, when a physical receipt or file is sent using eFile, the user must make sure that the physical receipt or file is sent along with a movement entry made in the system. The receiver must acknowledge the receiving of the receipt or the file in the system as well.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER NO - 8
ACTION ON RECEIPTS-
NOTING, DRAFTING AND SUBMISSION OF CASES

8.1 Preparation of case of action:

1) **Note:**

a) A 'Note' is remarks recorded on a case to facilitate its disposal. It includes a precise of previous papers, analysis of issues requiring decision, financial, legal, or other implications, if any; suggestions with justifications; final decision along with the authority competent to take the decision.

b) 'Noting' is the process of recording a note on the notes portion of a file. Note is recorded by the 'dealing officer' and 'other officers' in the hierarchy to facilitate decision making by the 'competent authority.

2) **Draft:**

a) A draft may be submitted for approval without a note or with only informal marginal explanations. In such cases, a fair copy of the draft should invariably be put up in addition to the office copy, if there is reason to believe that the draft will be accepted as it stands.

b) A draft may be submitted with a note. A fair copy of the draft should also be put up if approval is anticipated. Care should be taken not to repeat in the note, matters which will be sufficiently explained in the draft itself.

c) The case may be submitted with a note for orders.

8.2 Guidelines for noting:

1) All notes shall be recorded on note sheet (Green Sheet).
2) A note is submitted either to seek approval of the competent authority or for information.
3) A note must be concise and to the point. Lengthy notes are to be avoided. 'Verbatim reproduction' of extracts from or paraphrasing of the paper under consideration, fresh receipt, or any other part of correspondence or notes on the same file, should also be avoided. Instead, a summarized version of the issues raised in PUC are to be brought on the note.
4) For effective noting and to decide the quantum of noting, guidelines given on functional approach to noting (Para 8.18) are to be adopted.
5) When passing orders or making suggestions, an officer will confine his/her note to the actual points he/she proposes to make without reiterating the ground already covered in the previous notes. If he/she agrees to the line of action suggested in the preceding note, he/she will merely append his/her signature. In case, he/she takes a decision different from the one suggested on file, he/she may do so giving reasons for his/her decision.
6) Any officer, who must note upon a file on which a running summary of facts is available will, in drawing attention to the facts of the case, refer to the appropriate part of the summary without repeating it in his/her own note.

7) Relevant extracts of the provisions of the Act, Rules and / or guidelines will be placed on the file and attention to it will be drawn in the note, rather than reproducing the relevant provisions in the note, unless such an extract on the note is essential to arrive at a decision.
8) Unless a running summary of facts is already available on the file or the last note on the file itself serves that purpose, a self-contained note will be put up with every case submitted to the Secretary or Minister. Such a note will bring out briefly but clearly the relevant facts, including the views expressed on the subject by other Departments, if any, consulted in the matter and the point or points on which the orders or decision of the Secretary or Minister is sought.
9) A self-contained note is prepared while seeking advice or opinion or concurrence of another Department. Such inter-Departmental references are to be made only with the approval of an officer not below the level of Deputy/Joint Secretary or the level specified by a nodal Ministry/Department through departmental instructions.
10) When a paper under consideration raises several major points which require detailed examination and respective orders, each point (or group of related points) will be noted upon separately in sectional notes; such notes will each begin with a list of the major point(s) dealt with therein and placed below the main note in a separate folder.
11) If apparent errors or incorrect statements in a case must be pointed out or if an opinion expressed therein must be countered, care should be taken to make observations in courteous and temperate language free from personal remarks.
12) While preparing/submitting Notes for the Cabinet/Cabinet Committees/Groups of Ministers & Committee of Secretaries, constitution/reconstitution of High- level Commissions/Committees, the format (as amended from time to time) prescribed may be followed.
13) Black or blue ink will be used by all categories of staff and officers.
14) A note will be divided into serially numbered paragraphs. In case of problem solving or policy cases, paragraphs may have brief titles, if necessary.
15) Handwritten notes shall be avoided. Notes shall be electronically printed if it is half a page or more. Notes are to be printed on both sides of a note sheet.
16) A small margin of about one inch will be left on all sides (left, right, top and bottom) of each page of the note sheet to ensure better preservation of notes recorded on the files as at times the paper gets torn from the edges making reading of the document difficult.

Box-e. 8.1

Creation of electronic file:

In e-File, electronic file or physical file* (*a file on which file number is created by the system but processing of the file is done physically) is created before recording a note,using appropriate Menu option.

Recording a note in an electronic file:

The inner page of a file has ‘Add Green Note’ option to record the note, and do the referencing, docketing, etc. ‘Yellow note’ option is selected to prepare a rough note, which may then be confirmed as a green note. Details of name etc. of the officer who confirms it will appear in green note.

It is mandatory for all officers of the rank of dealing officers and above or equivalent to use Digital Signature Certificates (DSC) or e-sign for electronically signing the eFile in eOffice system before forwarding. DSCs are to be procured by individual Ministries/Departments/Organizations.

Box-e.8.2

For using the e-sign, it is required that individual's mobile number is linked to his/her Aadhar Number. The how part of noting on eFile is available in the e-Office User Manual. There are provisions for **standardized one-line quick noting**.
eFile has the facility of delegating access of eFile of a user to another user with complete or restricted rights. There are different kinds of delegation as follows.

Box-e. 8.3

Sl. No.	Signatory Delegation	Secretarial Assistance	Authority Delegation
1.	User to whom charge is delegated have to login using his/her own e-Office account and DSC token.	User to whom charge is delegated have to loginusing his/her own e-Officeaccount and DSC token	User to whom charge is delegated have to login using his/her owneOffice account and DSC token.
2.	User has theRead /Write /Send rights of files belonging to the delegated account.	User has the Read (for both physical & electronic) /Write (for both physical & electronic) /Send (only forphysical) rights of files belonging to the delegated account.	User has theRead/ Write/ Send rights of files belonging to the delegatedaccount.
3.	Signature includes thename of both the users i.e., to **whom** charge is delegated and the user whose charge is delegated.	Signature includes the name of the user **whose** charge is delegated.	Signature includes the name of the user to **whom** charge is delegated.
4.	Movement History contains the name of the delegator as well as delegated person.	Movement History contains the name of the user whose charge is delegated.	Movement History contains the name of the delegator as well as delegated person.
5.	This delegation is always with respect to an officer and not staff. There should be departmental instructions relating to such a provision.	This delegation is with respect to the personal staff attached to the officers.	This delegation is with respect to the link officers designated by the concerned department.

8.3 Noting and Correspondence Sections in File:

1) Notes and correspondence should be so arranged as to form two separate units in a file of manageable size, i.e., notes should be complied at the beginning of the file and correspondence separately at the end of it. A docket sheet should be attached before the noting section to indicate movement of the file. A separator should be inserted between the noting section and correspondence section. Circulars, Resolutions, Orders, Notifications, letters, and all outgoing communications should form part of the correspondence section of the file. A draft for approval should also be included in the correspondence section. Demi-official correspondence and telegrams to or from officers or persons outside the Mantralaya should ordinarily be included in the correspondence section unless they are of routine or interest when they may either be treated as "Routine papers" or if required for reference included in the " noting Section". The pencil numbering of the pages in the file should be in the series one for the notes and the other for the correspondence. The notes and correspondence should be compiled in such a manner that one tag is inserted from the noting section up to and including the separator, and another tag from the separator to the correspondence section. When this is done, addition of notes at the end of noting section becomes easy.
2) Whenever any note is to be recorded in the noting section on a fresh receipt, the Central Registry serial number should be written prominently on the left-hand side at the beginning of the note. A reference to the relevant page number in the correspondence section should be quoted in the margin of the note against the relevant Central Registry serial number. When the correspondence is conducted in two or more different parts, the paging of each part underlying a separate docket sheet should be kept distinct and the sub-file should not be amalgamated until the case is filed.
3) If the inclusion of any detailed information in the noting section is likely to obscure the main point at issue or make the note unnecessarily lengthy, such information or details will be incorporated in a separate or self-contained summary or a statement which will be placed in the noting section before the office note along with which it is prepared and submitted for the first time. Similarly, if enclosures to a communication received or issued consist of a large mass of material, they should be placed in a separate cover called "Appendix to correspondence."
4) Drafts of notes or statements which are included for issue for circulation should be put in the correspondence section of the file and not in the noting section. When this practice is followed continuity in the noting section is not disturbed on account of such notes or statements.
5) Papers of a routine nature, e.g., reminders acknowledgement letters fixing interviews, etc. which have served their purpose the intermediate stages of preparation and are of no permanent importance may not form part of the substantive papers of the case. They may be kept separately at the bottom of the case in a provision cover marked "Routine papers".
6) In dealing with statistics, use should be made of tabular statements as far as possible.

8.4 Arrangement of previous papers in a case:

1) The case training the paper under consideration or the draft for approval be placed at the top and the previous papers, if any, below it. Previous papers should be put up in a chronological order, the latest being at the top and the earliest at the bottom.

2) The references put up should be restricted to those actually required to deal with the case. Where references to previous letters etc. occur in the document under consideration, the file containing those letters should be put up only if required, to elucidate the subject.
3) Where a copy of an order, etc. required for information of reference can serve the purpose, the copy should be put up and not the original or the file containing the original.
4) Books or Rules, etc. referred to need not be put up on a file if copies thereof are available with the officer to whom a case is submitted. This should, however, be indicated in the margin of the Notes in pencil.
5) Care should be taken to see that all earlier flags denoting urgency, paper under consideration, 'Draft for approval' as well as alphabetical slips are removed from a file before putting it up as previous papers with another case.

8.5 Linking of files:

1) Linking of files on which action is in progress will, as far as possible, be avoided. Linking is not permissible solely on the ground that a single set of previous papers is required for reference in the disposal of more than one case. If any papers on a current file are required for reference in connection with the disposal of another case, relevant extracts should be taken from the former and placed on the latter. As a general rule linking will be resorted to only when the files are interconnected, and order must be passed on them simultaneously.
2) When two or more cases are put up as linked cases and order in one case would dispose of the other cases, it is not necessary for the higher officers to note on or initial such other cases. The Desk Officer/ Under Secretary concerned should act on the other cases in the light of the orders passed on the main case. Repetition of notes by office on linked cases should be avoided.
3) When files are linked, strings of the file board of the lower file but not its flaps will be tied round the upper file. The string of the file board of the upper will be tied underneath it. Each file will thus be intact with all its papers properly arranged in its file-board.

8.6 Personal discussions:

1) Inter change of notes between officers within a department should be avoided. The purpose should be secured, as far as practicable, by personal discussion between the officers concerned.
2) The Secretary in each Department should as far as possibly encourage his subordinate officers to bring up cases for advice, discussion, or disposal.

8.7 Record of verbal discussions, orders, and instructions:

1) All points emerging from discussions between two or more officers and the conclusions reached, should be recorded on the relevant file by the officer authorising action. Similarly, all verbal orders or instructions given by any officer and, where necessary, the circumstances leading to such orders/instructions, should be recorded on the file.
2) The cases marked by officers to office for discussion should be brought up for discussion within 24 hours.

8.8 Examination in desk by Assistant Section Officer:

When the line of action on a receipt is obvious or is based on a clear precedent or practice, or has been indicated by a higher officer, and a communication must issue, a draft will be put up without an elaborate note. In other cases, the Assistant Section Officer, while submitting a note on a case, will:

1) See whether all the statements, so far as they are open to check, are correct.
2) Point out mistakes, incorrect statements, missing data, or information, if any.
3) Obtain the missing and / or correct information from the sources concerned either over phone or using correspondence handling category of functional approach to noting.
4) Furnish other relevant data or information available in the Desk / Department, if any.
5) Prepare a note based on functional approach to noting.
6) State the issues for consideration and bring out clearly the points requiring decision.
7) Draw attention, if necessary, to the statutory or customary procedure and point out the relevant provisions of the Act, rules, instructions to the given case.
8) Draw attention to precedent(s), if any.
9) Suggest the course of action to be taken with justifications along with alternative courses of action for consideration of the competent authority.
10) Indicate the authority competent to take decision along with the copy of the delegation of powers.
11) Affix full signature with complete date (dd/mm/yyyy) on the left below the note.
12) Leave space not less than one quarter of a page below the last recorded note in the note sheet of the file, especially when the file is submitted to the Secretary.

8.9 Examination by Desk Officer:

Examination by DO will include:

1) Check if technique of functional approach to noting has been adopted.
2) Consider possibility of using Standard Process Sheet either by using an existing Standard Process Sheet or developing a new one.
3) Evaluate adequacy and relevance of inputs provided.
4) Desk Officer and above are to simply sign on the right side below the note with date, month, and year (dd/mm/yyyy), if they agree with Section note. Else, they are to record their note.

8.10 Examination by Senior Officer:

1) Senior Officer will discuss, wherever necessary, with his team to decide the course of action to be taken on a case involving a new or a complex matter.
2) After discussion, the concerned officer is entrusted with preparing a comprehensive/self-contained note which will be put up to the decision-making level clearly indicating that it is a discussed note. Such discussed note shall also be a reasoned note based on the provisions of the relevant Act, rules, instructions, etc. The note will contain the background to the problem, issues arising out of its precedents, if any, analysis of all relevant facts with reference to the provisions

of the relevant Act, Rules or guidelines, the recommended course of action for approval by the competent authority.

8.11 Deviation from normal procedure or rules:

In every case where a material or substantial deviation of the existing procedure or rules, is sought to be made, it shall be the responsibility of the decision-making authority to ensure that reasons are recorded in writing, justifying such a deviation from the rules or procedures.

8.12 Running summary of facts:

1) To facilitate consideration and to rule out repeated synopsis, a running summary of facts will be prepared and updated. Each updated running summary of facts must be dated on right top corner. They will be filed in the correspondence portion and given page number. Such a summary shall be prepared in a manner to contribute to speedy disposal of the case.
2) It will also include the advice or views of other Departments consulted in the matter but not opinions of individual officers within the Department. It should be kept up to date, incorporating changes whenever further developments takes place through a newer version.
3) Previous version running summary shall not be destroyed. This is useful while framing new policy, amendments to a policy or Act or Rule, court cases, etc.

8.13 Oral discussions:

1) All points emerging from discussions (including telephonic discussions) between two or more officers of the same Department or from discussions between officers of different Departments, and the conclusions reached will be recorded on the relevant file by the officer submitting a note and get confirmed from the concerned.
2) All discussions, points which the officer recording them considers to be important enough for the purpose, should get confirmed by all those who have participated in or are responsible for them. This is particularly desirable in cases where the policy of the government is not clear or where some important deviation from the prescribed policy is involved or where two or more levels differ on significant issues or the decision itself, though agreed by all concerned, is an important one.

8.14 Oral instructions by higher officers:

1) Where an officer is giving direction (including telephonic, E-mail, SMS, WhatsApp/ electronic communication) for acting in any case in respect of matters on which he/she or his/her subordinate has powers to decide, he/she shall ordinarily do so in writing. If, however, the circumstances of the case are such that there is no time for giving the instructions in writing, he/she should follow it up by a written confirmation at the earliest.
2) An officer shall, in the performance of his/her official duties, or in the exercise of the powers conferred on him/her, act in his best judgment except when he/she is acting under instructions of an official superior to him/her. In the latter case, he/she shall obtain the directions in writing wherever practicable before carrying out the instructions, and where it is not possible to do so.

He/she shall obtain written confirmation of the directions as soon as possible. If the Officer giving the instructions is not his/her immediate superior but one higher to the latter in the hierarchy, he/she shall bring such instructions to the notice of his/her immediate superior at the earliest.

8.15 Oral orders on behalf of or from Minister:

1) Whenever a member of the personal staff of a Minister communicates to any officer an oral order on behalf of the Minister, it shall be confirmed by him/her in writing immediately thereafter.
2) If any officer receives oral instructions from the Minister or from his/her personal staff and the orders are in accordance with the norms, rules, regulations, or procedure it should be brought to the notice of the Secretary (or the Head of the Department where the officer concerned is working in or under a Non- Mantralaya Organization).
3) If any Officer receives oral instructions from the Minister or from his/her personal staff and the orders are not in accordance with the norms, rules, regulations or procedures, he/she should seek clear orders from the Secretary (or the Head of the Department where he/she is working in Non-Mantralaya Organization) about the line of action to be taken, stating clearly that the oral instructions are not in accordance with the rules, regulations, norms or procedures.
4) In rare and urgent cases when the Minister is on tour/ is sick and his/her approval must be taken on telephone, the decision of the Minister shall be conveyed by his/her Private Secretary in writing. In such cases, confirmation will be obtained on file when the Minister returns to Headquarters.

8.16 Confirmation of oral instructions:

1) If an officer seeks confirmation of oral instructions given by his/her superior, the letter should confirm it in writing whenever such confirmation is sought.
2) Receipt of communications from junior officers seeking confirmation of oral instructions should be acknowledged by the personal staff of the Minister, or senior officers.

8.17 Modification of notes or order:

1) The higher officers should record their own notes giving their views on the subject, where necessary, correcting or modifying the facts given in earlier notes. In any case, the replacement or modification of the notes which have already been recorded on a file, when the file has been further noted upon by others, should not be permitted.
2) Where a final decision already communicated to a party is found later to have been given on a mistaken ground or wrong facts or wrong interpretation of rules due to misunderstanding or otherwise, such replacement or modification of a note may also have legal implications. In all such cases, wherever necessary, review of the decision should be examined, and the revised decision shall be taken in consultation, if so required, with the Law and Judiciary and with the approval of an officer higher than the one who took the original decision. The reason(s) for the reversal or modification of the earlier decision shall duly be recorded on the file.

3) Under no circumstances a note shall be pasted over or removed from the file. In case of mistake in the note or disagreement with a previously recorded note, a new note shall be recorded, keeping the previously recorded note on the file.

8.18 Functional Approach to Noting:

1) Noting should be kept to an optimal level. Therefore, it should be systematic and functional. One of the points for consideration while preparing a note is the size of the note. Functional Approach to Noting helps in deciding the kind and size of note to be prepared.
2) It is a technique for more effective noting and facilitates the officer initiating a note to submit a more effective note; and the competent authority to take decisions quickly.

Table –8.1: Functional approach to noting at a glance.

Sl. No	Type or category of the case	Quantum of noting
1.	Ephemeral	No noting is needed
2.	Correspondence handling or Action in correspondence cases	Short note of a few sentences
3.	Repetitive case	Develop and use Standard Process Sheet
4.	Problem solving case	A structured and detailed note is prepared
5.	Policy /Planning case	Detailed note is prepared covering various aspects, implications and expected outcome of a policy to be developed or under review

3) Types of Cases, Quantum of Noting and Functional Approach:

The following approach could be adopted for noting on various categories of cases:

a) **Ephemeral Cases:** These cases are also known as "No-Noting" cases. The concerned Officer should record the reasons, in brief, why no action is necessary and file such cases at the E-Tapal stage itself.

b) **Correspondence handling or Action-in-Correspondence Cases:** These cases too do not require detailed noting. It would be sufficient if a brief note (a paragraph of three to four sentences) is recorded indicating the issue under consideration and the suggested action or submission of a fair communication to obtain further inputs, etc.

c) **Routine or Repetitive Cases:**

(i) In repetitive cases, e.g., sanctioning of leave, motor car advance, pension cases, release of grant-in-aid, 'a standard process sheet' will be devised by the respective department and will be prescribed through the Departmental instructions. A standard process sheet is a standard skeleton note, or a template. It is developed by indicating pre-determined points of check. The check list contains the parameters or points that are to be considered while processing a case often through the instructions, if any, contained in the standard operation procedure

issued by the department for examining a case. Against the check list, variables of a case are filled in to obtain approval of the competent authority on each case. No conventional note will be recorded in such cases. A fair reply is put up on file with the standard process sheet. Wherever possible, standard formats of communications should be prepared.

(ii) Standard process sheets will be developed by the Desk Officer concerned with the help of the Assistant Section Officers. It will be prescribed through Departmental instructions, if necessary.

(iii) Departments are to encourage developing templates to be used for cases of repetitive nature through issue of Departmental instructions.

(iv) It acts as training tool to new Assistant Section Officer /Desk Officer, as it gives points of check to process a case.

d) **Problem Solving Cases:**

In these cases, a detailed note providing all information on each aspect will be necessary. Even then, the note should be concise and to the point, covering the following aspects: -

(i) What is the problem?
(ii) How has it arisen?
(iii) What are the provisions of Act, Rule, Policy, or Precedent?
(iv) What are the possible solutions?
(v) Which is the best solution proposed and why?
(vi) What will be the consequences (implications) of the proposed solution?
(vii) Are any inter-departmental consultations needed? If so, with whom and how?
(viii) Who is the competent authority?

e) **Policy and Planning Cases:**

These types of cases would not be large in number and are normally dealt with at sufficiently higher levels of the organization. They require a thorough examination with maximum amount of noting developed systematically. A note in such cases should be structured in the following manner:

(i) **Problem:** State how the problem has arisen? What are the critical factors?

(ii) **Additional Information**: Obtain additional information to size up the problem. The information would be available on the files and other papers in the Section. If sufficient information is not available to enable thorough examination, it should be collected before preparing a policy note.

(iii) **Rule, policy etc.:** Refer to relevant rules, regulations, policy, standing orders practices. Analyze and interpret such rules etc. in a cohesive manner bringing out their bearing on the problem.

(iv) **Precedents:** Precedent cases having a bearing on the issue under consideration should be put up. If there are varying precedents or any precedent differs in certain respects from the case under examination, the difference should be brought out to arrive at a correct decision.

(v)**Critical analysis:** The case should then be examined on merit answering questions such as 'what are the possible alternative solutions/ which is the best solution? It should be ensured that views of other Divisions/Ministries etc. have been obtained where necessary. Attention should also be paid to other aspects like the financial and other implications, repercussions, and the modality of implementing the decision and the authority competent to take a decision.

(vi) **Concluding paragraph:** The concluding paragraph should suggest a course of action for consideration. In cases where a decision is to be taken by a higher authority like Committee, Board or by the Cabinet or a Committee of the Cabinet, the point, or points on which the decision of such higher authority is sought should be specifically mentioned.

Structure of a problem solving / policy note:

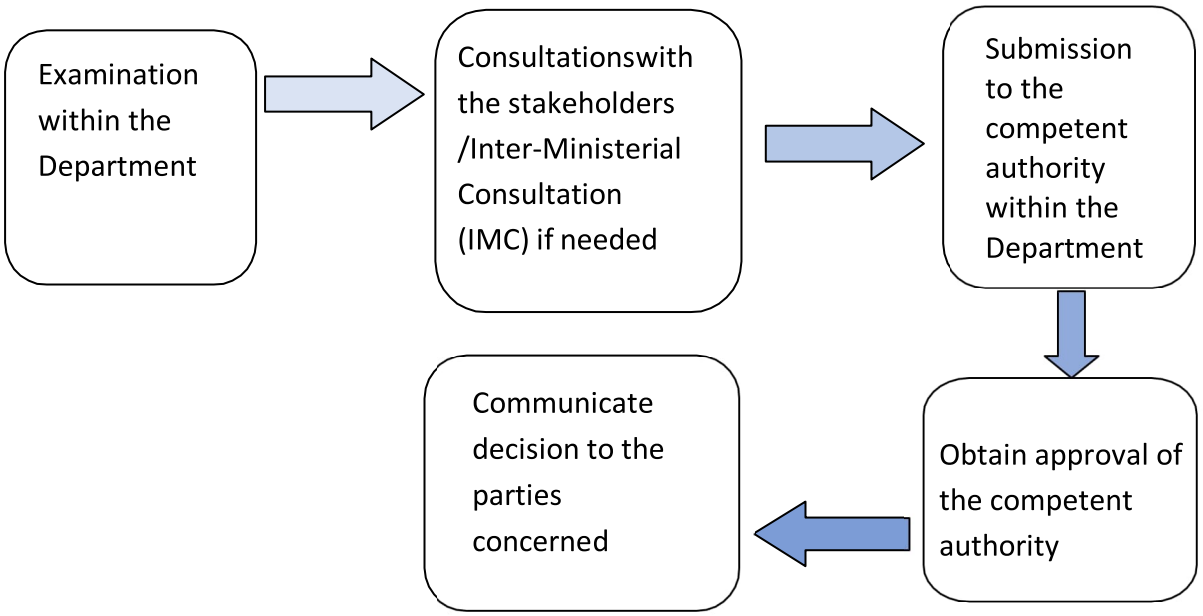
1. File Number on right top corner.
2. Subject of the case.
3. Profile of the problem / issue to be resolved [Introduction or the Context].
4. Apply provisions of the Act, Rules, Regulations, or guidelines relevant to the case.
5. Precedent(s), if any.
6. Analysis and sequence
7. Position of resources or financial implication including cost-benefit analysis, where required (also legal, social or gender implications, if applicable).
8. Reasoned conclusions reached (proposed course of action)
9. In case more than one course of action is suggested, approval must categorically be sought for a specific course of action.
10. Authority competent to approve the case.
11. Docketing & referencing.
12. Signature of the Dealing Officer submitting the note.

Box 8.4: Structure of a problem solving / policy note.

NOTE: However, this does not imply that each of the cases is a water-tight compartment. The kind of case may alter depending on the state of the lawsuit. Most issues solving and policy cases, for example, begin as correspondence handling cases to collect the necessary inputs. They are either issue solving or problem solving at the final phases.

8.19 Level of disposal and channel of submission:

Process of decision making in cases that are within the delegated powers of the Ministry



1) Dealing Officer will act on a case in accordance with the Departmental instructions prescribing the level of final disposal as per the Departmental instructions on channel of submission for each category of cases. Suitable instructions are to be issued for the channel of submission of files for each category of cases by each Department. The channel of submission of cases, other than the classified ones, must be made available on the website of the Department. Similarly, name, telephone number and e-mail ID of the officers dealing with various subjects must also be made available on the website.

2) Each Department will review the instructions on level of disposal and channel of submission at least once in three years keeping the number of levels to the minimum by delegating powers to lower formations. To facilitate quicker decision making, channels of submission should not be more than three. Powers are to be delegated to operationalize this principle. In case of files to be submitted to Minister in – charge, a case may be initiated at the level of Deputy Secretary or Senior Officer. However, the Section and the Desk Officer would provide assistance to obtain inputs for the case and to prepare draft notes and communications, etc.

3) For addressing cross cutting issues, the Secretary of the concerned Department should have the flexibility to create inter-disciplinary teams.

4) Wherever level jumping is done in respect of any category of cases, each such case on its return, will pass through all the levels jumped over who in suitable cases could resubmit the cases for reconsideration, if necessary.

Box-e. 8.5

In eFile, sending / marking of receipts / files are flexible. The system allows a user to send a receipt / file to any other user and the movement of record is maintained (who has sent, to whom has been sent and when has been sent).

Physical file which is marked to another officer has to be received by him/her by clicking appropriate button in his/her inbox indicating that the physical file has beenreceived at his/her end. The acknowledgement for the same should be obtained from the recipient.

Electronic file once marked to the next user goes to his/her inbox indicating that it has been received by him/her**.**

8.20 Routing of cases after orders are passed:

After orders have been passed by a competent officer, the case may go back to the desk which submitted it through concerned officers, if an intermediary stages, to keep them informed of the decision taken. In urgent cases, the papers may be shown to them after issue of orders.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER NO - 9
PROCEEDING OF INCOMING LETTERS- ACTION ON RECEIPTS INTERDEPARTMENTAL AND OTHER REFERENCES

9.1 How should Inter-Department references be made:

1) Inter- Departmental references shall ordinarily be made unofficially. The department referred to may, however, request that the reference and any subsequent references may be made officially.
2) It will be entirely within the discretion of the Additional Chief Secretary / Principal Secretary / Secretary concerned to dispense with inter-departmental references in matters of trivial importance except in cases involving the expenditure of money in which the Finance Department requires such reference.
3) Whenever possible, consultation of other departments shall be affected by personal interview between responsible officers of the department concerned. The results shall be recorded on the file by a note agreed between these officers and initialled by them.
4) Any file referred unofficially to another department shall have attached to it a note signed by the officer by whose direction it is referred, precisely specifying the points on which the opinion of the other department is sought or which it is desired to bring to the attention of that department. Wherever possible, the pro- proposals shall be embodied in the form of a draft.

9.2 References to the Finance Department:

1) Unofficial references to other departments shall ordinarily be made before submission of papers to the Minister-in-charge. Cases in which t
2) The Minister directs that any course should be followed which requires consultation with the Finance Department, should, however, be referred to that department for comments.
3) No case should be submitted to the Minister-in-charge of the Finance Department which has not been previously seen, with reference to the proposal under consideration, by either the Finance Department or its Secretary.
4) All cases submitted to the Minister-in-charge of the Finance Department should be marked to him through the Secretary of that Department, except in the following instances-
   a) where the advice offered by the Finance Department or as the case may be, by its secretary, is proposed to be accepted.
   b) where the advice proposed to be rejected is that of the Secretary, Finance Department, and there has been no departmental noting on the merits of the issue since he offered his advice.

9.3 Noting on inter departmental references:

1) Unofficial references to all departments except the Finance Department and the Law and Judiciary Department should be marked directly to the Under Secretary or Deputy Secretary/ Joint Secretary in charge of desk dealing with that subject in the department to be consulted.
2) The Under Secretaries and Deputy / Joint Secretaries in charge of desk should see that as far as possible all such references are disposed of by them directly and that only those which cannot be disposed of by them without reference to material available in the desk are sent to desk. Even

here, as much as feasible, conversation with the assistant should be held in order to shorten the time necessary for recording the choice.

3) Though the Desk / Section officer deals with the case himself, all such cases should be returned to the desk for taking note of their receipt and return in the desk U. O. R. diary.
4) While returning U. O. References to original departments, they should be marked to the Desk / Section officers directly.
5) When an unofficial reference is received, it should not be treated as a new case, but the discussion should be taken up from the point reached in the original department. Further notes, if any, should be confined to the points necessary to enable the officer to whom the case is submitted to deal with it from the point of view of the department consulted. Such notes, unless purely formal in character, should be written on separate sheets of paper attached to the file.
6) When a case has been referred to and returned from another department and a difference of opinion between the departments is disclosed, personal discussion shall, if possible, be substituted for further noting. Not more than one further note should be recorded in either department.

9.4 Files and papers having a bearing on inter-departmental references:

1) If the department consulted has a file of its own bearing on the case referred to it, such file may be put up when submitting the reference for orders, but it should be kept separate from the file referred.
2) When the unofficial reference has been noted on, the office is responsible for seeing that the papers of its own department are separated, and that only the papers noted in the docket sheet are returned to the department of origin. The department consulted may, if it considers necessary to do so, refer the papers unofficially to another department or to the General Administration Department (O&M) before returning them to the originating Department. In that case, a detention memorandum will be issued to the originating department, simultaneously with the reference to another department. Should a file be marked for more than one department by the originating department, the file should be circulated among the departments marked for consultation in the order prescribed by the originating department.
3) Should the Secretary in the department consulted refer in his note to papers in his department, the papers referred should be sent with the unofficial reference and a list of them should be entered on the docket sheet below the papers previously entered, the office taking clear note of the further papers sent.
4) The papers of the several departments interested must be returned to those departments immediately after orders have issued.

9.5 Orders on inter-departmental references:

1) Except in cases covered by special orders, when a question has been referred to two or more departments the final orders of Government should be taken in the department of origin; if it is decided, however, in the course of discussion that orders should issue in a department other than that of origin, the case must be sent back unofficially to the department of origin for transfer

officially to the other department. The original notes will then be sent with the papers, and the orders of Government will be issued in that department.

2) Whenever it is found impossible to dispose of a case entirely by an order from one Department alone, it should be stated in such order that orders in regard to the point not dealt with will be issued separately, the department concerned being always consulted before the issue of such order.
3) A copy of the order issued will be sent to each department consulted; and when a copy of the notes recorded in the case is not asked for by another department, a stamp of the following description "Orders issued after consultation with the concerned department. Notes remain with this department and can be seen when required." will be affixed in the margin.
4) But when a copy of the notes has been asked for, a stamp of the following description :- "Orders issued after consultation with the department. Copies of the notes on the case are sent herewith as desired". will be affixed in the margin. These stamps are to be affixed only to the copies issuing to the different departments of the Mantralaya and are not to be affixed to any other copies. The stamp should be similarly affixed to the copies of orders addressed to the General Administration Department (O&M), in cases in which that officer was previously consulted.
5) A department issuing an order in consultation with another should, in addition to affixing the usual rubber stamp, specify the designation of the concerned desk in the department consulted against the latter's name in the list of addresses below the order. If the case is examined by more than one desk in the consulted department the designation of the desk initiating the examination should be specified.
6) In cases involving expenditure, where previous reference to the Finance Department is required by rule 11 of the Maharashtra Rules of Business made under article 166 of the Constitution, the fact that such reference has been made should be mentioned in the order by addition of a separate paragraph in the order as below:- "This Resolution / Circular / Memorandum issues with the concurrence of the Finance Department on its unofficial reference No..... dated.....

9.6 Retention of papers after issue of orders:

1) The papers of a case should ordinarily remain on the records of the department from which the orders on the case issued.
2) When, however, a department considers itself more specially concerned in any case than the department from which the order issues, it may ask the latter department to return the papers to it for record.
3) For example, when cases are transferred to the Public Works Department or the Water Resources Department for the issue of orders, it should nearly always be possible to divide up the papers at the stage at which administrative approval is given to the preparation of plans and estimates. Papers prior to the stage should ordinarily remain with the originating department and sub-sequent to that stage ordinarily with the Public Works Department or the Water Resources Department, as the case may be.

9.7 References between the office of the Secretary to the Governor and the Mantralaya department:

1) Cases received in any department the subject of which clearly pertains to the office of the Governor's Secretary should be sent to that office for disposal, without previous unofficial reference. Such transfers should be made under the orders of the Secretary, Deputy Secretary or Under Secretary of the department concerned. If there is any doubt as to whether a case pertains to the office of the Secretary to the Governor, previous unofficial reference should be made to that office.
2) Reference from departments to the Office of the Secretary to the Governor shall ordinarily be made unofficially, but may, if the Secretary of the department so directs, be made officially. Unless the Secretary of the department otherwise directs in any case or with respect to any class of cases, all references to the office of the Secretary to the Governor shall be made under the orders of an officer not below the rank of Under Secretary.

9.8 References outside the Mantralaya:

1) When one department wishes to obtain opinions of officer's subordinate to another on a matter affecting both (e.g., a Bill), it may circulate papers to such officers after unofficial reference to the other department, which may designate the officers whom it desires to have consulted.
2) Any department may without unofficial reference consult an officer subordinate to another department on a matter not affecting or scarcely affecting the latter; but orders requiring executive action or controlling such action should not be issued to departmental officers without consulting the department to which they are subordinate.
3) The reports of the officers consulted shall be shown unofficially to their department which will then record its opinion on the case and may, when returning the papers, request to see the draft orders before issue.
4) If several departments are to be consulted in this manner, the references shall be made simultaneously in duplicate, accompanied only by the reports concerning those departments respectively.

9.9 Detention of papers by outside offices:

1) When a department consulted by unofficial reference wishes to consult any officer before replying, it may do so but should inform the department of origin that the reference is being detained for the purpose.
2) The report of the officer consulted, or a copy of it, may, if desirable, be appended to the departmental notes when the reference is returned.

9.10 Special instructions regarding unofficial references outside the Mantralaya:

1) Unofficial references to officers outside the Mantralaya are permitted, but should only be made sparingly, when an official reference would be inconvenient or cause undue delay. Before such unofficial references are made, notes by Ministers recorded in any department

should be removed from the file, unless the Secretary in the department making the unofficial reference in any particular case directs that they should be allowed to remain.

2) Memorandum received from and notes recorded in Departments other than that making the unofficial reference should also ordinarily be removed from the file, unless it is considered necessary that the officer consulted should see them before recording his opinion. No officer outside the Mantralaya to whom unofficial reference has been made shall allow the papers to pass out of his hands.

9.11 Movement of confidential or secret files:

Not with-standing anything contained in paragraphs 9.1 to 9.10 above, no secret file shall be sent to another department either officially or unofficially without the orders of the Secretary/ HoD of the Department.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER 10

COMMUNICATION FORM, CHANNELS AND PROCEDURE -

10.1 Forms of written communications:

For correspondence between Government of Maharashtra and organizations other than those which are not part of the Government of Maharashtra and for communication for certain specific purposes, different forms of written and electronic/ ICT communication should be used in appropriate manner mentioned below.

1) Ordinary letters addressed to the Government of India and other State Governments:

Ordinary letter addressed to the Government of India, other State Governments, to officers not immediately subordinate to the Government of Maharashtra, to the Registrars of Universities and to the High Court. The form used while addressing such letters is given in Appendix 10.1. Ordinarily, the letter to the Government of India is addressed to the Secretary of the appropriate Ministry and if the Ministry has Divisions or Departments under it, the name of the Division or Department is also written below the name of the Ministry. In the case of other State Governments, the letter is addressed to the Secretary of the Department concerned or to the Chief Secretary, if the name of the Department is not known. Generally, letters to the Government of India or the other State Governments are to be signed by officers of the rank of Deputy Secretaries and above, although routine communications and reminders may be signed by Under Secretaries also the subject should be written in clear terms, it should be brief, and it should indicate generally the contents of the letter. In case the communication is sent in reply to a previous reference, the correct number and date should be mentioned in the beginning . If a number of letters have already been exchanged, the reference to the latest main communication on the subject should be given.

2) Ordinary letters addressed to the Seating/ Former MP, MLA, MLC, or to private individuals or institutions, business firms, etc.:

The specimen form of the letter sent to Seating/ Former MP, MLA, MLC, or a private individual is given in Appendix 10.2. It shall be remembered that letters to following individuals be worded very carefully, brief, and courteous.

3) Ordinary letters addressed to other Government officers under the State:

When other forms of communication, such as Circulars, Resolutions, and so on, are not clearly stated, and especially when the communication is to be directed to one Government official only, messages are communicated to other Government officers in the letter, Appendix 10.3 contains the format for such a letter. This form omits numerous formalities that may be unnecessary, and the text is also straight forward.

Note –

Letter: Letter being a formal form of communication is addressed on behalf of a department or Government to the Head of the Government/ organization by designation, beginning with the salutation "Sir / Madam"; and ending with subscription "Yours faithfully."

1) Office Memorandum:

A specimen form of the memorandum is given in Appendix 10.4. This form is used

a) when the formal sanction of Government is to be communicated to another Government officer of equal or lower status or

b) a formal order of sanction issued by order or in the name of the Governor of Maharashtra is to be conveyed to him. This form and the letter form mentioned above are the usual normal forms used in correspondence between two Government officers.

2) Circular:

A specimen form of a Circular is given in Appendix 10.5. Whenever certain instructions are to be communicated to a large number of officers or departments, or whenever certain information is to be called for from a large number of officers or Departments, this form is generally used. This is one of the forms most commonly used by Mantralaya Departments while addressing Heads of Departments and offices.

3) Resolution:

The specimen form of a Government Resolution is given in Appendix 10.6. This form is used generally when formal sanction of Government is to be conveyed for starting a scheme or establishment for the scheme or when the decision of Government has to be communicated to other officers in pursuance of some statutory provisions. This form is also used for conveying important decisions of Government.

4) Notification:

A specimen form of the notification is given in Appendix 10.7. This form is used when orders of Government are required to be issued in exercise of the powers vested in accordance with Acts of the Legislature. This is the common form, which is used, when decisions of Government affecting members of the public are to be made known to them. The notifications are published in the appropriate part of the Maharashtra Government Gazette. The notifications which are of an urgent nature, are published in the extraordinary issues of the Maharashtra Government Gazette. Ordinary gazette is published on every Thursday and extraordinary gazette on any day including Sundays and Public Holidays. Care should, however, be taken not to publish a notification in the extraordinary issue, if it can be published in the ordinary gazette also. While sending notifications to the Press for printing, the appropriate part of the ordinary /extraordinary Gazette in which it is to be published should be mentioned clearly. The number of spare copies required should also be mentioned simultaneously.

5) Endorsement:

A specimen form of the endorsement is given in Appendix 10.8. This form is used while copies of communications received from Government of India, other State Government, or other Government officers in the State, are to be sent to Government officers. When letters are sent to private individuals, copies of such letters are also sent to other Government officers under such endorsements. Such endorsements are to be used when copies are to be sent "for information", "for information and guidance" or "for necessary action " as the case may be.

6) E-mail, fax, speed post, registered post, telephonic communications, etc.:

a) Government domain E-mail services must be utilised for official correspondence.
b) Fax, speed post, registered post, special messenger, etc. are other modes of sending communication.
c) Appropriate use of the medium of telephone may be made by departments for intra and inter-Departmental consultation and for communication of information between parties situated locally, and in matters of urgency with outstation offices.
d) Telephonic communications, wherever necessary, may be followed by written communications for confirmation.

Even if classified material is disseminated, it can be broadly utilised. Such confidential material should only be delivered in encrypted form. Guidelines for E-mail may be followed according to the Government's E-mail Policy, which is established and maintained from time to time by the Information Technology Department.

7) Demi-official letter:

This form is generally used in correspondence by one Government officer with another with the purpose of drawing his/her personal attention in an official matter of importance and/or urgency. This form is also used when a series of official reminders fail to elicit the information called for. A specimen form of the demi-official letter is given in Appendix 10.09.

a) Since demi-official letter is written in the first person in a personal and friendly tone, it should be addressed by an officer to another of similar level /rank as far as possible. In the event of non-availability of officer of same level at receiving end, the same may be addressed to an officer at one or two levels below the officer to whom such communication is addressed.
b) Demi-official letter may be used for communicating with officers in other public offices except chief of the Constitutional authorities. In such cases, communications are addressed to the Secretary of such authorities. A Minister may communicate with another Minister at Central or State Government or a Member of Parliament or State Legislature using D.O. letter.
c) Communications to non-officials may also take the form of a demi-official letter.

8) Office-order:

A specimen form of office order is given in Appendix 10.10. This form has got very limited use. It is used only as a means of communicating a decision internally among the members of a government office. It is used for issuing instructions/ intimation in routine internal administrative matters, e.g., grant of regular leave, distribution of work among officers and sections, internal posting, and transfers, etc. Therefore, there is, no salutation or subscription. Copies are endorsed to all the persons/authority concerned.

9) Press-Note:

A specimen form of the Press-Note is given in Appendix 10.11. Whenever any important decision of Government must be conveyed to members of the public, a press-note is issued in newspapers. The press-note should be worded very carefully, and it should indicate in brief but clear terms whatever decision is sought to be conveyed. When the press-note refers to certain formal amendments of rules made by issue of Government Notifications, a reference to the issue of such a notification should invariably be given in the press-note.

10) Unofficial references:

In addition to the various forms of communications mentioned above, there is another form of communication between two Mantralaya Departments or a Mantralaya Department and Head of Department under its administrative control viz., unofficial reference. There are, however, certain restrictions governing adoption of this method of correspondence. Details regarding manner of making inter-department unofficial references are given in CHAPTER 9 (Point 9.1 to 9.11)

11) Minutes of the Meetings:

A record of discussions is prepared immediately after the meeting and circulated to the concerned Ministries /Departments, giving date/ time/ venue of the meeting held, who chaired the meeting and list of participants, setting out the conclusions reached and indicating the Ministry(s)/ Department(s) responsible for taking further action on each conclusion. In case it is perceived by a participant of the meeting, that the minutes recorded are not as per the understanding/perception of the participant, the same may be immediately referred in writing to the authority which has issued the minutes. Minutes of the meeting shall be signed by all the members/ participants. Minutes of the meetings shall be issued generally within 3 working days.

E-mail, fax, speed post, registered post, telephonic communication etc.:

1. E-mail, fax, speed post, registered post, special messenger, etc. are modes of sending communication.
2. Appropriate use of the medium of telephone may be made by departments for intra and inter-Departmental consultation and for communication of information between parties situated locally, and in matters of urgency with outstation offices.
3. Telephonic communications, wherever necessary, may be followed by written communications for confirmation.

10.2 Correspondence with subordinate offices:

1) Senior Officers/ Head of a subordinate/ attached office under an administrative Ministry/ Department will correspond in respect of matters involving intervention/ approval of another Ministry/ Department in a note, E-mail and eFile form with their concerned Ministry/ Department.
2) Head of an autonomous body under an administrative Ministry will write in respect of matters involving intervention/ approval of another Ministry/ Department to the Secretary of the concerned Ministry/ Department in a letter form.
3) In both the cases, Ministry/ Department concerned, if required, will take up the matter with another Ministry.
4) An officer of a Subordinate office/ Attached office/ Autonomous body will not correspond directly with the Minister of another Ministry except the head of a Statutory Body/Regulatory Authority set up by an Act of Legislature.
5) Attached office/subordinate office may, however, seek information from another Ministry/Department directly.

10.3 References to Constitutional authorities:

1) Legislative Assembly and Council Mantralaya; - Communications meant for the Legislative Assembly and Council Mantralaya and requiring urgent or high-level attention shall be addressed to the Secretaries concerned and not to the Speaker and Chairman directly. Similarly, no communication is to be addressed to the Chairman of any Legislature Committee directly.
2) Attorney General of Maharashtra; - References are to be made only through the Law& Judiciary Department.
3) Comptroller and Auditor General of India (Mumbai & Nagpur); - References with C&AG on audit paragraphs are to be made through the concerned Department.
4) Maharashtra Public Service Commission (MPSC) References are to be addressed to Secretary, MPSC in the form of letter.
5) Other Constitutional/ Statutory Authorities; - Communications to constitutional authorities like, Election Commission of India, State Election Commission, and statutory authorities, like MERC, RERA, etc. will normally be made in the letter form addressed to Principal Secretary/Secretary. In no case an office memorandum will be sent to such authorities by the Ministries/ Departments.
6) Correspondence with Members of Parliament/VIP references/Ministers of Central Government and / MLA / MLC; -Communications received from MP, MLA / MLC / Other Ministers from State and Central Government should be attended to promptly. Where a communication is addressed to a Minister, it should, as far as practicable, be replied to by the Minister himself. In other cases, a reply should normally be issued over the signature of an officer of the rank of Secretary only. As far as possible, pre-printed replies should be avoided and follow the procedure directed by General Administrative Department (O&M)

10.4 Prompt response to letters received:

1) Each communication received from the MP /MLA / MLC, or a public body will be acknowledged within 15 days, followed by a reply within the next 15 days of acknowledgement sent.
2) Where (i) delay is anticipated in sending a final reply, or (ii) information must be obtained from another Department or another office, an interim reply will be sent within 15 days (from the date of receipt) indicating the possible date by which a final reply can be given.
3) If any such communication is wrongly addressed to a department, it will be transferred promptly (within 5 working days of its receipt) to the appropriate Department under intimation to the party concerned.
4) Where the request of a Member of the Public cannot be acceded to for any reason, reasons for not acceding to such a request should be given courteously.
5) As far as possible, requests from members of public, should be looked at from the user's point of view and not solely from the point of view of what may be administratively convenient.

10.5 Target date for replies:

In all important matters in which with related to departments of the Central/ State Government, or other offices, public bodies or individuals are consulted, time limit for replies may ordinarily be specified. On expiry of the specified date, orders of the appropriate authority may be obtained on whether the offices, whose replies have not been received, may be allowed an extension of time or whether the matter may be processed, without waiting for their replies.

10.6 Use of Official Language in Government communications:

The provisions stipulated in the Official Languages Act, 1963 and instructions issued from time to time by the Department of Official Language are to be scrupulously implemented.

APPENDIX 10.1

FORM OF LETTER TO GOVERNMENT OF INDIA, ETC.

No.

Government of Maharashtra,

_____ Department.

Mantralaya, Mumbai, the _____

From _____

_____

To _____

_____

Subject:- _____

Sir,

I am directed to refer to your letter No.

_____

dated the _____ and to state that

_____

Yours faithfully,

A. B. C.

Under Secretary to the Government of Maharashtra,

_____ -Department.

APPENDIX 10.2

FORM OF LETTER TO PRIVATE INDIVIDUALS, ETC.

No.

Government of Maharashtra.

_____Department.

Mantralaya, Mumbai, the _____

From :-

_____

_____

_____

To

_____

_____

_____

Subject _____

Sir/Ma'am,

With reference to your letter No._____ dated _____ __ I am directed to state that

_____

Yours faithfully,

Under Secretary to the Government of Maharashtra,

_____ Department.

APPENDIX 10.3

FORM OF LETTER ADDRESSED TO STATE GOVERNMENT OFFICERS, ETC.

Letter. No _____

Mantralay, Mumbai

To

_____

_____

Subject_____

Please refer to your letter No . _____ dated _____

on the above subject.

2. _____

Yours faithfully,

A. B. C.

Under Secretary to the Government of Maharashtra,

_____ Department.

APPENDIX 10.4

FORM OF MEMORANDUM

No.
_____-Department.
Mantralaya, Mumbai,
Dated _____

Subject.- _____

MEMORANDUM

The undersigned presents compliments to the *. _____
Maharashtra State, Bombay, and with reference to his letter No. _____
dated the- _____-is directed to convey the sanction of Government to the creation
of the post of _____ in the scale of
for the period ending _____

2. The expenditure should be debited to the head _____etc.

3. This memorandum issues with the concurrence of the Finance Department on its un-official reference No._____ dated_____

OR

3. This order is issued under the powers delegated to Administrative Department under Government Resolution, Finance Department No._____ dated_____

By order and in the name of the Governor of Maharashtra

_____

Under Secretary to the Government of Maharashtra,
_____ Department

To
_____
_____
___
Copy to A.G ., Maharashtra State ,Bombay .
_____

Head of Department or Officer addressed.

APPENDIX 10.5

FORM OF GOVERNMENT CIRCULAR

Subject _____

GOVERNMENT OF MAHARASHTRA

_____ -Department.

Circular No._____

Mantralay, Mumbai

_____

CIRCULAR

In modification of Government Circular, General Administration Department

No. _____dated the _____ Government of Maharashtra is pleased to direct that _____ By order and in the name of the Governor of Maharashtra, _____

Under Secretary to Government.

To

1) _____

2) _____

3) _____

APPENDIX 10.6

FORM OF GOVERNMENT RESOLUTION

Subject _____

GOVERNMENT OF MAHARASHTRA

_____ Department.

Resolution No.

Mantralaya, Mumbai.

Read.-Government Resolution, _____-Department No. _____

dated the _____

Letter No _____Dated the _____form _____

Resolution.-Sanction is accorded to the creation of the post of-_____

2. The expenditure should be debited to-

3. This resolution issues with the concurrence of the Finance Department on its non-officially reference No._____ dated _____

OR

3. This resolution is issued under the powers delegated to the administrative Department under Government Resolution; Finance Department No. dated _____

By order and in the name of the Governor of Maharashtra,

_____

Under Secretary to the Government of Maharashtra,

_____ Department.

To

1)_____

2) _____

APPENDIX 10.7

FORM OF GOVERNMENT NOTIFICATION

GOVERNMENT OF MAHARASHTRA

_____ Department

Mantralay, Mumbai

Notification No. _____In exercise of the powers conferred by Section- of the _____ By order and in the name of the Governor of Maharashtra, _____

Secretary to the Government of Maharashtra,

_____ Department.

[To be published in Maharashtra Government Gazette

Part _____ Section _____

APPENDIX 10.8

FORM OF GOVERNMENT ENDORSEMENT

(Below copy of Government of India, Ministry of _____
New Delhi's letter No. _____dated the _____ and its
accompaniments regarding _____]
No._____

_____Department,
Mantralaya, Mumbai

Forwarded for information/necessary action/remarks or
disposal etc. to _____

By order, etc.

A. B. C.
Under Secretary to the Government of Maharashtra,
_____ Department.

APPENDIX 10.9

FORM OF DEMI-OFFICIAL LETTER

Shri _____

Under Secretary

D. O. No. _____

_____ Department.

Mantralaya, Mumbai

Date _____

Dear Shri

Will you please refer to my demi-official letter No. _____ and _____

Yours sincerely,

_____

Shri _____

Under Secretary to Government

_____ Department

Government of Maharashtra,

Mantralay, Mumbai .

APPENDIX 10.10

FORM OF OFFICE ORDER

GOVERNMENT OF MAHARASHTRA

_____Department

Mantralaya, Mumbai

Office Order,

No._____ The Secretary has approved the following modification in the list of subjects dealt with by desks in the _____

Department _____

By order,

Under Secretary to the Government of Maharashtra,

_____ Department.

APPENDIX 10.11

FORM OF PRESS NOTE

PRESS NOTE

P-505

Vaishakh 9, 1880 (2-30 p.m.

April 29, 1958)

VILLAGE PANCHAYATS ELECTION RULES

The Bombay Village Panchayats Elections Rules, 1948, have been amended introducing a new Rule 36.

The new rule empowers the Collector to delegate to an officer, not below the rank of a Mamlatdar or Mahalkari, powers exercisable by him under the rules, subject to the general or special orders of the State Government.

CHAPTER 11

DRAFTING

11.1 When to be prepared

1) When the line of action on a case is obvious, a draft should be put up without obtaining orders.
2) In cases where a note is considered necessary, but approval is anticipated, a draft may be submitted simultaneously with the note.
3) In other cases, a draft will be prepared after orders have been passed by a competent officer.
4) An Assistant Section officer/Desk Officer or a higher officer may at his discretion him- self prepare a draft and authorize its issue or submit it to the next higher officer for approval.

11.2 Wording of a draft. -

1) A draft should convey the exact intention of the orders passed. The language used should be clear, concise, and incapable of misconstruction. Lengthy sentences, abruptness, redundancy, circumlocution, superlatives, and repetitions, whether of words, expressions or ideas should be avoided. Communications of some length or complexity should generally conclude with summary.
2) The various forms of communications and the circumstance in which they should be made use of are described in subsequent CHAPTER.

11.3 Authentication of Government Orders.

1) All orders or instruments made or executed by or on behalf of Government of the State shall be expressed to be made by or by order of or executed in the name of the Governor.
2) Every order or instrument of the Government of the State shall be signed either by a "Chief Secretary, Additional Chief Secretary, Principal Secretary, Secretary, a Joint Secretary, a Deputy Secretary, Under Secretary, Section Officer as may be specially empowered in that behalf and such signature shall be deemed to be the proper authentication of such order or instrument.

11.4 General instructions regarding drafting-

1) Drafts should, as a rule, be written or typed on separate sheets. Sufficient space should be left between successive lines to admit of a word, or a phrase being inserted, if necessary.
2) The names of persons or designations of the officers or groups of officers to whom a draft is to issue should be filled in before submitting it for approval. Whenever all the officers included under one group in the distribution list are to be addressed simultaneously, the widest possible collect- ive designation should be adopted. Care must be taken not to include officers who are not really concerned, and, in cases of doubt, orders should be taken. The officer to whom the draft is sub- mitted, will give attention to this point, and check any tendency to indiscriminate distribution.

3) The number and date of the communication replied to or of the last communication in a series of correspondence on the same subject should be referred to facilitate the linking of the correspondence or papers in the receiving office. The endorsement on a communication should also refer to the last communication on the subject received from or sent to the office to which the endorsement is addressed. Care should, however, be taken to avoid quoting references, unless they are likely to be of real assistance to the officer addressed and the meaning cannot equally well be expressed in plain language. When it is necessary to refer to more than one communication or a series of communications this should be done in the margin of the draft. The subject should be mentioned invariably in all communications including reminders and demi official letters.
4) Orders should, as far as possible, be self-contained and not be conveyed in terms of communications typed or printed in the preamble.
5) The copies of correspondence contained in a preamble of a resolution or Memorandum should be strictly limited to what is necessary to enable the proper understanding of the orders passed, and only the relevant extracts of the documents referred to should be reproduced. All drafts should be carefully edited to prevent the printing or typing of any unnecessary matter.
6) Enclosures intended to accompany a communication, or an order should always be entered on its draft with sufficient particulars. To draw the attention of the typist, the comparer and the despatcher, diagonal strokes should be made in the margin. The number of enclosures should also be indicated at the end of the draft at the left bottom of the page, thus- "Encls. Nos."
7) All drafts put up on a file should bear the number of the file. When two or more letters, memoranda, etc., are to issue from the Same file on the same date the serial number should also be given in addition to avoid confusion in reference, thus-STN-1059-5639(1)B, STN-1059-5639(ii)B.
8) A communication addressed to a government officer or department should bear the name and designation of the officer sending the communications; while a communication addressed to a non- official person or body should bear only the designation of the officer.
9) In communications addressed to the Public Service Commission, the name of the officer signing the communication should be typed below his signature also.
10) In the drafts of the letters, circulars, etc., which are to issue, the priority if any, assigned to the case should be indicated by the words "Emergency", "Immediate" or "Urgent" as the case may be, written on the left-hand top corner of the draft and under- lined.
11) A slip bearing the words "draft for approval" should be attached to the draft. If two or more drafts are put up on a case, the drafts as well as the draft for approval' slips will be numbered "D.F.A.-I", "D.F.A.-II", "D.F.A.-III" and so on.

11.5 Standard skeleton drafts

For communications of repetitive nature, approved standard skeleton form should be drawn up and typed or printed. They may be submitted to the officer concerned with a fair copy for signature.

11.6 Addressing communications to officers by name. -

No communication other than a demi-official letter or an unofficial reference will be addressed or marked to an officer by name, unless it is intended that the matter raised therein should receive the personal attention of the officer concerned, either because of its special urgency/importance or because some ground has already been covered by personal discussion and the officer to which the paper is being marked would be in a position to record his views or decisions straightaway. When a paper is so far marked to an officer by name, reminders, etc., pertaining thereto should also be sent to the same officer (or to his successor) by name.

CHAPTER NO- 12
MOVEMENT OF CURRENT CASES.

12.1. Object of keeping movement of cases.

It is necessary to keep track of a communication or a case from the time of its receipt in office till its final disposal. This should be done by keeping a written record to the movement of a case as it passes through various channels at different stages of action. The practice should help in keeping a systematic watch over on the progress of the case not particularly in :

1) tracing the case whenever necessary.
2) checking delays in submission, transit, typing, issue, etc.
3) issuing reminders punctually.
4) ensuring timely return of the case to the desk from other desk, departments, or from officers to whom it is referred or submitted.
5) expediting its final disposal.

12.2. Stages at which movement should be recorded-

The written record of the movement of a communication or a case should necessarily show

1) date of receipt in the Central Registry,
2) date of receipt in the desk,
3) date on which given to the noting assistant,
4) date on which submitted and to whom,
5) date on which received back in desk, and when and to whom given on return.
6) date on which sent for typing or issue
7) date on which sent out of the Department and to whom,
8) date of final disposal.

The movement at (1) and (2) will be recorded in the receipt diary in the Central Registry, the latter movement being recorded in the desk diary also. The desk dealing with the case will be responsible for keeping the movement at Stages (3) to (8) according as the case passes through some or all the stages.

12.3. Role of Clerk cum Typist in keeping movements of cases

1) The movement of cases will be kept by the Clerk cum Typist in the Desk. All cases coming in or going out of the desk will be routed through him at every stage, to enable him to keep complete and latest movement of every case.
2) He will record the movement of cases immediately on receipt from the Desk Officer / Section Officer / Under Secretary or the Assistant Desk Officer concerned and arrange to pass on the cases to their intended destination without loss of time. Immediate cases will be handed over personally to the concern officer or desk for whom they are intended.
3) If, for reasons of expediency or due to temporary absence of the Clerk cum Typist at the relevant time or for any other reason a case is passed on formally or informally to a destination outside

the Desk without the knowledge of the Clerk cum Typist, the person passing on the case will personally record the movement of the case in the relevant register.

4) A detailed description of duties of Clerk cum Typist is given in a separate brochure."

12.4. Under Secretary / Desk Officer / Section Officer in guiding the movement of cases-‘

(1) Under Secretary / Desk Officer / Section Officer / Assistant Desk Officer should give clear instructions regarding the intended destination of every case that passes through his hand and not leave it to the inference of the Clerk cum Typist. The instructions should be given on the docket sheet and in cases, where a docket sheet is not required to be attached, in the margin of the latest note or draft on the case.

(2) When a case is to leave the Desk, even temporarily, Under Secretary / Desk Officer / Section Officer / Assistant Desk Officer concerned will clearly indicate whether the previous papers or file etc. (if any) put up with the case are to accompany it. If only some of the previous papers are to accompany the case, it should be clearly indicated which of the papers are to be retained and which are to be sent. The particulars of the papers sent with a case will be jotted down on the case itself as well as in the relevant card.

(3) If papers belonging to a desk are to accompany an unofficial reference which is being returned to the originating department or being passed on to another department in succession, a note of the papers should be kept also on a separate sheet which should be kept with the cases in await to ensure that the originating department returns the papers after it has done with them. Under Secretary / Desk Officer / Section Officer / Assistant Desk Officer will see that this is done invariably.

Box-e. 12.1

In case of electronic file or receipt its movement is recorded in the system automatically, as, and when a user sends it to another. However, when a physical receipt or file is sent using eFile, the user must make sure that the physical receipt or file is sent along with a movement entry made in the system. The receiver must acknowledge the receiving of the receipt or the file in the system as well.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER NO- 13
ISSUE OF COMMUNICATION.

13.1 Issue.

The term "Issue" is used to signify the various stages of action after approval of a draft, namely typing of fair copy, the examination of the typed material, submission of the fair copy for signature and finally the despatch of the communication to the addressee. All these functions will be performed by the concerned Desk/Section.

13.2 Marking of files for issue

1) After a draft has been approved, the file will be received in the desk, typing work is done in Desk/Section. After the completion of typing work, immediately cases are to be sent for issuance and also follow-up of return.
2) If there is more than one draft for issue on the same file, the Assistant Section Officer will indicate in brackets on each of them the total number of drafts sent for issue, e.g., "Issue (3 drafts)".
3) Before labelling a final draft as "Issue," the Assistant Section Officer will confirm that it is flawless and accurately produced. Before handing the document to the Issue Section, he should check to see whether the authorising officer left any voids that the office should fill up. If so, he should go ahead and issue it.
4) Where a draft has been extensively altered and it is necessary to have a clean copy made for use as an office copy, the Assistant section Officer will give clear directions to that effect on the draft. He will also indicate the number of spare copies required, if any. In the case of Government Resolution or Circulars the Assistant Section Officer should indicate the class of the Government Resolution or Circular for distribution purposes and the number of spare copies required (i.e., "A" for orders of general interest, "B" for orders of limited interest, and "C" for Record).
5) If any papers are to be despatched by special messenger or issued under registered post or under postal certificate or as express necessary instructions should be given on the draft while marking it for issue. Cheques, bills, agreements, service books, notices or any other valuable documents should always be sent under registered post, acknowledgement due, and where necessary, in an insured cover.

13.3 Issue Dairy

All cases for issue will be sent directly to respective department/ official. Issue of a case whom it is sent will be automatically recorded in E-office.

13.4 General Instructions regarding despatch of communications-

1) All communications will bear the date on which they are actually issued. They will not be double dated.
2) All communications intended for the same addressee should be placed in a single cover as far as possible. Covers of suitable size should be used.
3) "Economy Slips" must be used for all covers containing ordinary (i.e., non-Confidential) communications except when the contents are bulky or when it is proposed to send the cover insured.

4) When, for any unavoidable reasons, an enclosure is sent separately, a note to that effect should be made on the communication itself and the enclosure should be accompanied by a slip indicating the number and date of the communication to which it relates.
5) The Peon attached to the Issue Section will close the envelopes and packets and, in the case of covers to be sent by post, also weight them and affix stamps of the required value under the direction of the despatcher.
6) Receipts for registered and insured letters, etc., should be checked carefully by the despatcher, filed properly, and preserved for at least three months.

13.5 Return of drafts after issue-

After issue of a fair communication, the despatcher will make over the office copy together with the relevant file to the concern clerk maintaining the issue diary. The latter will return the papers to the desk concerned after making an entry in the diary.

13.6 Issue of un-official cases:

When an un-official file is to be returned to the Department from which it was received, an entry regarding its return should be taken against the relevant inward entry in the Un-Official diary. The un-official despatcher will then enter the file number in a Peon Book and arrange to deliver the file to the department or office concerned.

13.7 Peon/ MTS Book:

Papers to be sent by hand should be entered in Peon/ MTS Book which should be checked by the Despatcher on return. While despatching "Immediate" communications, the time of despatch should be noted in the Peon/ MTS Book.

13.8 Service Postage Stamps:

1) Receipt and custody of Stamps- The Head of the Issue Section will obtain the requirements of service postage stamps from the cashier against requisitions to be made from time to time.
2) Stamp account Register- The Issue Section will maintain an account of the Service Postage Stamps received and expended in a register. The Head of the Registry will check the entries made on his register every day and append his, dated signature in token of his having done so.
3) Verification of stamp Accounts- The Head of the Registry will maintain a consolidated account of Service Stamp in separate register submit it to the officer in charge every month. Stamps received from the Cashier will be brought on to this register. The Officer-in-charge will inspect the register and note thereon the result of its inspection. He will also carry out surprise checks to satisfy himself that the registers are properly maintained.

13.9 Ordinary Postage Stamps

Ordinary postage stamps (and not service postage stamps) should be used for official correspondence.

CHAPTER NO- 14
ACTION AFTER ISSUE OF COMMUNICATIONS

14.1 Checking of Issued drafts-

1) Every morning the issue papers (called Issue Bundle) of the previous day will be sent by the Issue Section to the concern Officer.
2) If in any case the draft was sent for issue after detaching it from the case papers, the concern clerk will put it back on the case.
3) The Issue Bundle will then be circulated to the Assistant Section Officer who will give necessary instructions regarding keeping papers in await, filing, etc. If the papers are to be filed, they should be filed under the orders of the Section Officer / Desk Officer / Under Secretary.

14.2 Instructions on Issued drafts-

(1) Cases, if any, which are required to be referred unofficially to other departments after issue of drafts should be marked for the departments concerned without further submission, if orders to that effect were taken before issue and no further development calling for a different action has taken place during the intervening period.

(2) Cases which should be seen by higher officers for information or for confirmation of the action taken should be sent to them.

(3) Cases on which further action is necessary in continuation of the action taken (for example, on a side issue, etc.), should be resubmitted to the officer concerned.

(4) A case will be marked for "await" if-

a) a reply is expected to the communication issued.
b) further action is to be resumed at a later date.
c) Each case passing into await should be clearly marked with the date on which a reminder or any other action is due.
d) Cases on which no action needs to be taken except formally matching the implementation by a subordinate office or completion of a project or a recording of a certificate, should be classified as "dormant" and kept separately from await cases.

(5) A case will be marked for record if the communication issued constitutes final disposal of the "Paper under consideration". Care must be taken to see that no point in the case has remained out-standing and that final disposal has indeed taken place. The best guide will be found in answers to two questions, namely,

a) to my further action pending on the papers or papers under consideration on the case and
b) has a complete reply been sent to the source from which the paper under consideration emanated?

The person marking a case for 'await' or 'record' (the latter usually signified by the word 'file') will append his dated initials to the instructions which will be given on the docket sheet, as far as possible.

(6) After the noting hands have given instructions for 'await' or "dormant" or 'record', the Issue Bundle will be received back by the concern clerk who will take necessary movement of the files

in the Case Register Diary, as the case may be. The cases will then be kept by him in appropriate places or returned to the noting hands for being kept with them in await or for further action. Before doing so, he will remove all marks and slips such as "Paper under consideration", 'Draft for Approval', 'urgent', etc., except where it is necessary to retain them. Slips and pins thus salvaged will be put in use again.

Box-e. 14.1

In the eFile system, there is a provision for initiating a draft at any level in thehierarchy and getting it approved and signed by any level with a pre-defined approver and signatory role respectively.
There is also a provision to initiate a draft without a file in case of receipts received.
Once the draft is approved, no change can be made in the draft content by any authority.
There is also option for appending e-Sign/Digital Signature by the signatory.
If necessary, the file must be resubmitted for amendment of the approveddraft.

14.3 Select Files:

1) A copy each of every important order or letter or any other document issued from the desk will be kept in a separate collection called 'Select File'. The select file will remain in the custody of the concern clerk for reference by all members of the desk. A desk may maintain, more than one select file, if necessary. Where necessary, separate select files may be opened for copies of important notes, precedents, or legal opinions, etc., bearing on different subjects dealt with in the desk.
2) A separate select file should be maintained for data collected and supplementary notes prepared in connection with Legislative Assembly/Council questions and resolutions, cut motions, etc.,
3) A select file must be kept up to date and bear an index page in the beginning, containing particulars of the orders, etc., compiled in it. As soon as an order, etc., is issued, the concern clerk will keep a copy thereof in the select file and
4) As a rule, a select file should not be put up with cases. It should always be available for reference by the Desk itself. Copies of orders, etc., required for putting up with cases should be obtained from the stock of spare copies in the Desk or got typed, if the stock is exhausted. Under no circumstances a copy of an order be detached from the select file, in which it is compiled.

14.4 Digest of Important Orders-

1) Whenever an order is issued, a digest slip should be prepared by the Assistant Desk Officer concerned and orders of the Secretary or the Officer authorised by him should be taken as to whether or not the order should be included in the digest. A summary of the order should be put up at the same time for approval of the Officer.
2) If it is decided to include the order in the digest, the digest slip should be handed over to the Desk or the person entrusted with the preparation of the digest, a note indicating the date of sending the slip being kept on the office copy of the order.
3) These slips should form the basis for compilation of the digest of important orders of the department which should be got printed within three months of the close of the financial year.

14.5 Circulation of copies of orders, etc.-

The Additional Chief Secretary / Principal Secretary/Secretary to Government in each Department should-

a) Forward to the Governor and the Chief Minister, copies of all communications received from the Government of India (including those from the Prime Minister and other Ministers of the Union) other than those of routine and unimportant character and including those containing the views or orders of that Government on important matters or matters involving questions of policy, immediately on their receipt.

b) Every Month-

(i) forward (through the Chief Secretary) to all Ministers and State Ministers set of copies of all important communications received from and addressed to the Government of India, other State Governments and High Court.

(ii) forward to the Governor, a separate set of copies mentioned at (i) above, except copies of letters received form the Government of India which the Governor will receive under (a) above (i) forward to the Minister-in-charge a list containing copies of the orders issued in all cases, disposed of by the Secretary or the subordinate officers in the Department, without reference to the Minister-in-charge.

c) During the first week of every month- Prepare four sets of copies of all orders other than routine issued by his department during the preceding month and forward/circulate each set as indicated below:-

(i) Governor,

(ii) All Ministers and State Ministers,

(iii) All Secretaries to Government (through the Chief Secretary) and the Directorate General of Information and Public Relations.

14.6 Spare copies-

1) Copies of orders, letters, or other documents in excess of the number required for distribution or circulation, etc., should be arranged in yearly bundles in chronological order within each bundle. If too many orders are being issued from any desk the spare copies may be arranged in monthly bundles.
2) Each bundle will be kept between two pads and the number, date and subject of each order will be written on the top pad.
3) As soon as an order is issued, the concern clerk will place the spare copies thereof in the relevant bundle and add its particulars to the list of orders on the top pad.
4) If the stock of spare copies of any order is exhausted by frequent withdrawal from the bundle, a fresh stock will be got typed reprinted, if necessary. This will be necessary only if the copies are sent out of the desk on demand. Copies withdrawn by the desk for references, etc., should be replaced in the proper bundle.

CHAPTER - 15
PROPOSALS FOR LEGISLATION, SUBORDINATE LEGISLATION AND OPINION CASES.

15.1 Application of procedure of Maharashtra Government Rules of Business:

The provisions of Part IV of the Maharashtra Government Rules of Business shall be applicable for forwarding legislative proposals, statutory rules, notifications or orders and cases of opinion and interpretation of provisions of Act, etc., to the Law and Judiciary Department.

15.2 Enactment of new Act, amendments in Act, statutory rules, notifications:

Whenever it is proposed by any Administrative Department, -

1) to enact new Act or to make amendments in existing Acts.
2) to issue statutory rules, notifications, or orders by the Mantralaya Departments; or
3) to submit to the Central Government any draft statutory rules, notification, or order for issue by them, the draft shall be referred to the Law and Judiciary Department for opinion or vetting or revision, when necessary.

15.3 Cases of opinion, interpretation of provisions of Act, etc.:

1) All administrative Departments shall consult the Law and Judiciary Department for the following matters: -
   a) any general legal principle arising under Constitution of India, State and Central Acts, Rules, Regulations, Service Matters, etc.
   b) cases of opinions, interpretations of provisions of any Act and rules, Judgment or Order of the Court of Law, etc., except in cases which are simple and clear and where no point of law is involved.
   c) the institution or withdrawal of any prosecution at the instance of any administrative Department.
   d) for opinion on feasibility of filing of appeal/revision/review before appropriate forum.
   e) vetting of agreements where Government is party.
   f) for engaging services of special counsels in civil and criminal cases before court of law.

2) Every reference for opinion of Law and Judiciary Department shall be accompanied by an accurate Statement of the facts of the case and the exact law point or points on which the advice of the Law and Judiciary Department is desired.

   The procedure for referring for legal opinion is prescribed under Rule 7 of the Rules for the Conduct of the Legal Affairs of Government, 1984, and it is binding on all the departments of Mantralaya to refer to Law and Judiciary Department accordingly. As per the procedure laid down in the said Rule 7, the Departments are required to precisely state the point on which legal opinion is sought. Also, the references should clearly state all the facts, rules, court cases, etc. incidental to the said points. Prior to referring to this department for advice, it is necessary to take opinion of the other concerned administrative departments, at the first instance, on the said

relevant points on which legal opinion is sought. Similarly, the concerned department of Mantralaya' s should examine the case in accordance with the said points on merit, determine the perception of the department, and, thereafter, submit the case to the Law and Judiciary Department to confirm the said perception.

3) Before forwarding any proposal for filing appeal on behalf of State/opinion in civil matters pending litigation, the reference department is expected to examine its respective case on merit and arrive at a definite conclusion and only then can the file be referred to the Law and Judiciary Department for the confirmation of the conclusion so drawn by it. The query posed for the consideration of Law and Judiciary Department need to be clear and unambiguous. The Proposal moved to consist of the following:
   a) Memo of Writ Petition/Original Application.
   b) Reply/Written submission filed in the matter, if any.
   c) The impugned Government orders.
   d) Opinion of the concerned Government Pleader/Counsel who appeared for the State.
   e) Copies of the relevant statutes, rules, resolutions, etc.
   f) In cases involving policy decision, the opinion the concern department on its policy is mandatory. Likewise, matter involving financial implication, the opinion of Finance Department must be on record.

15.4 Consultation of Law and Judiciary Department before submission of legislative proposal to Chief Minister:

The proposals to initiate legislation shall not be submitted to the Chief Minister until the Department concerned has consulted the Law and Judiciary Department as to-

1) the expediency of the proposed legislation from a legal point of view.
2) the competence of the State Legislature to enact the proposed law.
3) the requirements of the Constitution of India as to obtaining the previous sanction of the President thereto; and
4) the consistency of the proposed legislation or amendment with the provisions of the Constitution of India, and those relating to the fundamental rights.

15.5 Procedure of forwarding file to Law and Judiciary Department:

The Administrative Department, before forwarding any statutory notification, rules, orders, etc., to the Law and Judiciary Department for vetting or scrutiny, shall-

1) obtain the approval of Secretary of the Department and, if appropriate, from the concerned Minister-in-charge.
2) if the proposal affects the policy of other Department or on administrative grounds, it requires the approval of other Departments, the originating Department shall consult all other concerned Departments.
3) follow the model of existing rules, notifications, or orders on the same or similar subjects to prepare the draft rules, notifications, or orders.

4) forward two copies of draft typed on half margin with double spacing along with the file for vetting or scrutiny.
5) forward up-to-date copy of the rules, notifications or orders proposed to be amended along with the file.
6) state the point or points, if any, in connection of the draft which requires special examination by the Law and Judiciary Department.

CHAPTER – 16

LEGISLATIVE ASSEMBLY AND COUNCIL BUSINESS

16.1 Legislative Assembly and Council Business:

It is necessary for all officers of the Mantralaya Department to remember that the work pertaining to the Legislative Assembly and Legislative Council, business should be done carefully and expeditiously. For this purpose, the Officers in the Mantralaya should acquaint themselves with the provisions of the Constitution relating to business in the Legislature and also with provisions of the Maharashtra Legislative Assembly Rules and the Maharashtra Legislative Council Rules. They should take care to ensure that instructions issued under these sets of rules are followed scrupulously, as far as they are concerned. Although a brief description of the main types of Legislative Assembly and Legislative Council business with which Mantralaya Departments are concerned is given below, it should be remembered that ultimately the provisions in the two sets of Rules mentioned above as amended from time to time should be treated as final authorities. Details given below are merely for general guidance of the officers and it should be treated merely as descriptive in nature. The descriptions mainly relate to the action to be taken by Mantralaya Departments and do not cover all the aspects which are described in the M. L. A. Rules and the M. L. C. Rules.

16.2 Different types of work to be done:

Normally Mantralaya Departments have to deal with the following main types of work pertaining to M. L. A. and M. L. C. business:

1) Legislative Assembly / Council question (starred or unstarred, short notice question).
2) Legislative Assembly / Council Resolution (Official).
3) Legislative Assembly / Council Resolution (Non-Official).
4) Official Bill in Legislative Assembly / Council
5) Non - Official Bill in Legislative Assembly / Council.
6) Cut motions.
7) Calling Attention Motion.
8) Assurances.

16.3 Legislative Assembly / Council questions:

1) The Maharashtra Legislature Mantralaya sends to the concerned Mantralaya Departments the Legislative Assembly/ Council question as admitted by the Speaker. The questions are of three types:
   a) Unstarred questions: Unstarred question are those to which replies are given but on which no supplementary questions can be asked.

b) Starred questions: Starred questions are those on which any supplementary question (which have got a direct hearing on the object under discussion) can be asked, not only by the member who has put the question but by any other member of the House.

c) A short notice questions: A short notice question is a question which relates to a topic of important and immediate nature, and the short notice question is to be answered as expeditiously as possible by giving it precedence over starred and unstarred questions.

2) When the questions are received in the Mantralaya Departments, the concerned Department should then proceed to finalise answers to various clauses of the question. It should verify whether the replies can be given on the basis of information available in the Department itself. If not, a reference to the Head of the Department concerned should be made and requisite information obtained from them immediately. A full note describing the present position in respect of each clause of the question should be put up and at the end of each paragraph the answer proposed should be given. A separate draft answer, clause by clause, should also be put up in the correspondence section on the basis of the note.

3) When the question is a starred question or a short notice question, additional information relevant to the subject which may be considered as likely to be useful to the Minister-in-charge at the time of answering the question in the Assembly/Council should also be given on a separate page under the heading "Notes for supplementary questions".

4) The note and draft reply should he submitted to the Minister-in-charge through the Secretary of the Department. All previous papers files, etc., quoted should be put up duly flagged. When the reply is finalised, the copies of the question, and answer in the form prescribed by Maharashtra Legislature should be sent to Maharashtra Legislature officially, by quoting reference to its previous letter. As soon as the reply is issued, the main papers (along with previous papers, files, publications, etc., quoted in the note) should be sent to the **Private Secretary of the Minister** with a request to make the papers available to the Minister-in-charge in good time for use while answering the question (and supplementary questions, if any) in the House. Special care should be taken to ensure that all relevant papers are quoted correctly and flagged properly and neatly, so that no time will be lost in locating a particular reference quickly. It is also the practice that a responsible officer from the Department concerned should be present in the House when the particular question comes up before the House.

16.4 Procedure for sending final replies to questions to Maharashtra Legislature Mantralaya:

The reply to a question should be sent to the Maharashtra Legislature before the prescribed date. In case it is not possible to send the reply in the prescribed time, an official reference to the Maharashtra Legislature should be made.

16.5 Legislative Assembly / Council Resolution (Official):

If a resolution is to be moved by Government, complete information asked for pertaining the subject matter of the Resolution should be made available in the note to be put up by the Mantralaya department concerned to the Minister-in-charge through the Secretary to that department. Instructions regarding

putting up all previous references, files, etc., relevant to the subject matter of the Resolution marking and flagging given in paragraph 14.3 above should be followed in this case also.

16.6 Legislative Assembly / Council Resolution (Non-Official)

The non-official Resolution as admitted by the Speaker is sent to the Mantralaya Departments concerned by the Maharashtra Legislature. **After receiving the copy of the non-official Resolution**, a detailed note giving the relevant information in respect of the subject-matter should be put up, along with previous papers and files duly marked, to the Minister-in-charge through the secretary of the department. At the end of the note, an indication should be given whether the resolution if moved should be accepted, with some modification or should be opposed.

16.7 Official Bills-

1) Whenever a decision to undertake a particular, Legislation (either new or in the nature of an amendment to some existing Act) is taken by Government, the Mantralaya department concerned should prepare a draft Bill for the purpose and also prepare a "Statement of Objects and Reasons" for the introduction of the Bill. The draft Bill should also be shown to the other Mantralaya department concerned, if any, and to Finance Department, if it involves any financial implications.

2) The draft Bill and the Statement of Objects and Reasons should be sent to the Law and Judiciary Department for scrutiny along with relevant files. After the Bill is returned by the Law and Judiciary Department, the papers should be submitted to the secretary of the department and the Minister in-charge for approval.

3) After the Bill is approved by the Minister-in-charge, arrangements should be made to obtain approval of the Council of Ministers. After approval of the Council of Ministers to the Bill, the Department should send the file along with draft Bill with a copy of Cabinet decision to the Law and Judiciary Department for further action regarding introduction of Bill in the House.

16.8 Non-Official Bills

1) The Parliamentary Affairs Department shall send the copy of the Non-official Bill received from the Maharashtra Legislature to the Law and Judiciary Department for examining the legal and constitutional feasibility of the Bill and also shall forward the copy to the concerned Mantralaya Department to which the Bill pertains, for information.
2) The Law and Judiciary Department shall examine the legal and constitutional feasibility of the Non-official Bill and shall send the opinion to the Parliamentary Affairs Department and copy to the concerned Mantralaya Department.
3) Parliamentary Affairs Department shall forward the opinion of the Law and Judiciary Department to the Maharashtra Legislature.
4) A detailed note giving the relevant information in respect of Bill, the subject matter of Bill should be put up by the Mantralaya Department to the Secretary and the Minister-in-charge.

5) The relevant papers should be sent to the Private Secretary of the Minister-in-charge for submitting them to the Minister at the appropriate time.
6) The concerned Mantralaya Department shall prepare the Cabinet Note and place the proposal of Bill for Cabinet approval when the Bill is selected in Ballet for consideration.
7) The final decision on action to be taken by the Council of Ministers.
8) If the Bill requires the recommendation of the Governor under Article 207 of the Constitution, the Parliamentary Affairs Department shall obtain the recommendation of the Governor.

16.9 Cut motions:

When voting of demands for the next financial year or of supplementary demands for the current financial year takes place in the Maharashtra Legislative Assembly, cut motions are tabled by members of the Legislative Assembly, with a view to discussing various aspects of the administration of the Department / Departments to which the demand relates. When such cut motions are received by Mantralaya departments, they shall prepare notes containing relevant information which it is considered will be useful to the Minister-in-charge, when the cut-motions are actually moved in the House. Care should be taken to ensure that such notes are prepared expeditiously and approved in time.

16.10 Calling Attention Matters:

The Maharashtra Legislature send Calling Attention Matter to the concerned Mantralaya department, as admitted by the Speaker. A Calling Attention Matter is any matter of urgent public importance and the Minister make brief statement in the house. Calling Attention Matter is to be answered as expeditiously as possible.

When the Calling Attention Matter received in the Mantralaya Department, the concerned Department shall then proceed to finalise the reply to the Calling Attention Matter. A full note describing the present position in respect of the Calling Attention Matter shall put up and additional information relevant to the subject matter which may be considered as likely to be useful to the Minister-in-charge at the time of answering in the Assembly/Council, shall also give on a separate note under the heading "supplementary notes for Calling Attention Matters". When the reply is finalized, the copies of reply to the Calling Attention Matters shall be sent to Maharashtra Legislature officially. As soon as the reply is issued, the main papers along with previous papers shall be sent to the private secretary of the Minister-in-charge with a request to make the papers available to the Minister-in-charge in good time for use while answering Calling Attention Matters in the house. Special care shall be taken to ensure that all relevant papers are quoted correctly and flagged properly and neatly so that no time will be lost in locating, the particular reference quickly. The responsible officer from department concerned shall remain present in the House when the Calling Attention Matters comes up before the House.

16.11 **Assurances**:

The Assurances given by the Ministers in Assembly/Council shall be approved by the Maharashtra Legislature Mantralaya. The Parliamentary Affairs Department shall send the approved Assurances to the concerned Mantralaya Department. On receipt of the assurance, the Mantralaya Department shall

take immediate necessary action for fulfilling it. When the assurance is fulfilled, the concerned Mantralaya Department shall send copies of assurance fulfilling report in a prescribed format to the Parliamentary Affairs Department for tabling it before the concerned House of the State Legislature during the session.

16.12 Time limit for disposal of legislature devices:

1) Mantralaya Department shall take review periodically (Fortnightly/Monthly) of pending Legislature Devices of which reply has to be submitted to the Maharashtra Legislature For this purpose, the co-ordination branch of the Mantralaya Department shall contact the Maharashtra Legislature periodically and shall tally their pending devices list with them. Mantralaya Department shall take initiative on priority to dispose of all the pending Legislature Devices expeditiously.
2) Mantralaya Department shall also fill up time to time correct and updated information of pending Legislature Devices on E-Samiksha Portal developed by the office of the Chief Secretary of Maharashtra Government.
3) It is mandatory for the Mantralaya Department to send reply of the Legislature Devices to the Maharashtra State Legislature within the time limit prescribed by them. Following is the general time limit for replying to the legislative devices. However, it is to be noted that the Mantralaya Department shall follow scrupulously the time limit prescribed in the Rules made by the Maharashtra Legislature, from time to time.
   a) **Starred question**:- Mantralaya Department shall answer starred question within the time limit prescribed by Maharashtra State Legislature.
   b) **Unstarred question**:- Mantralaya Department shall answer unstarred question within 30 days from the date of receipt.
   c) **Cut-Motions**:-The Mantralaya Department shall take care to send reply of Minister to the concerned Member of the State Legislature within 30 days.
   d) **Assurances**: - The Mantralaya Department shall submit after assurance fulfilling report in a prescribed form shall be submitted by to the Parliamentary Affairs Department within 90 days from the date of receipt.

16.13. General:

1) Mantralaya Departments are also required to put up notes on points relating to them raised in the general discussion of Budget. Such notes are generally put up to the Minister in charge through Mantralaya of the department and copies are sent to Minister (Finance) for his information.
2) Whenever any important business relating to a particular Mantralaya department is being conducted in the Houses of the Legislature a responsible officer from that department is expected to be present in the House with all relevant papers.
3) As the Legislature is the highest authority in the State, care should be taken to ensure that all Legislative business is handled in the Mantralaya departments with utmost care and speed.

CHAPTER - 17
RECORDS MANAGEMENT, CLASSIFICATION, WEEDING AND DESTRUCTION OF RECORDS

17.1 Activities involved in records management are:

1) Records management covers the activities concerning mainly recording, retention, retrieval and weeding out.
2) Recording – Recording is the process of closing a file after action on all the issues under consideration thereon has been completed.
3) Each record creating agency will nominate, in pursuance of provisions of the Maharashtra Public Records Act, 2005. The Record Officer who is not below the rank of a Desk Officer for overall records management of the concerned department.
4) Weeding and Destroying - Record review, weeding out and destruction of record shall be exercised according to the classification rules yearly in the month of April and May to declutter the office spaces. A list of records to be destroyed should be prior approved and later preserved.

17.2 Classification – General Principles:

1) All recorded files should be classified for the purpose of preservation having regard to their importance and the period up to which they are likely to be required for reference in connection with administrative needs. Every file which is likely to be required must be preserved and every unwanted file destroyed both to save space and to simplify searching. In interpreting administrative needs, due regard should be had to their extent. While there may be strong administrative necessity for preservation for a short period, that is a very different thing from preservation forever. It is equally necessary that the minimum period of preservation should be long enough to provide for any revision or reconsideration of the orders issued on a file. Even in respect of files to be preserved, weeding of unnecessary papers therefrom should be carried out to the full extent.
2) Care should be taken to see that file containing papers which are important or are likely to be important in future, however, indirectly, as sources of information on any aspect of history, whether political, military, social, economic, etc., or which are or may in future prove to be of biographical or anti-quatrain interest, are not destroyed.

17.3 A B C D List:

1) For practical purposes, records should be classified as under:
   a) **A Class –** To be preserved indefinitely. This class will be allotted to files in which important questions have been discussed or which contain order establishing important precedents or general instructions or rulings of a permanent importance.
   b) **B Class –** To be preserved for 30 years. This class will be allotted to files of the same category as above, but which are unlikely to be required for reference after a few decades.
   c) **C Class –** To be preserved for 5 years. This class will be allotted to files of secondary importance which it is desired to preserve for a very limited number of years.

d) **D Class –** To be destroyed as soon as the purpose is fulfilled and, in any case, not later than one year after the end of the year in which they are filed. This class will consist of files the contents of which are of a purely ephemeral nature.

2) The Classification of records into above categories is facilitated by means of an authorized A B C D list of subjects dealt with in a department should be grouped into A B C D Categories having regard to the nature and importance of each subject from the administrative and historical point of view. The O&M cum Establishment Officer of each department and get it approved by the Secretary. It should be reviewed every year and kept up to date. A copy of the list should be sent to the Director of Archives. Whose suggestions, if any, for revision of the list for historical purposes should be given due weight.

17.4 Procedure for making the classification:

1) Classification should be made on each case separately at the very time filing orders are given thereon. This should be done by the assistant section officer dealing with the case. The classification should be indicated on the docket sheet of the case or if there be no docket sheet on a case, the classification should be indicated on the last page thereof.
2) If there are any papers on a case which have already served their purpose or which are not fit to be preserved for more than a year, they should be indicated by the letter "W" on the top of each such paper (e.g., reminders, mere acknowledgements or letters of thanks, duplicates of the same paper, blank or nil reports, letters suggesting or postponing a meeting, etc.).
3) If a whole case or batch of file has served its purpose or is not to be preserved for more than a year, the whole of it should classified as 'D'.
4) At the stage of classification, opportunity should be taken of amending or revising the title of a case when it is necessitated by the development of the subject matter of the case since its start.
5) The cases should then be shown to the Desk officer/Under Secretary approval of the Classification, who, if in doubt regarding the classification of a case will take the orders of the senior officer. Every Assistant Section Officer or Desk Officer/Under Secretary or Officer who makes or approves a classification should put his dated initials below the classification mark.

17.5 Action to be taken by the Clerk:

The cases will then be made over to the Clerk who will act as indicated below: -

1) He should keep aside all papers which are classified as D in separate pads, each pad containing papers on which filing orders are given during a month. The pad will bear the label indicating the month.
2) He should weed out from cases marked for preservation, papers veering the letter "W" and keep them aside with other D papers.
3) He should renumber the pages on cases from which papers are weeded out and make consequential changes in the referencing done on notes and drafts in the case, whenever possible.
4) He should collect cases marked for preservation and veering one and the same file number of the same year and put them under a file cover. The cases should be arranged in a file in the chronological order of the date on which filing orders are given thereon and without disturbing

the noting and correspondence of each of them. The composite file will, therefore, be a collection of cases, each case being the composite of the noting and the correspondence section. It is unnecessary to give a running page number to the whole file. As a rule, cases should be compiled in the parent file as and when filing and classification instructions are given thereon i.e., this should be done day to day and no filing arrears should be allowed to accumulate.

5) If the number of cases veering one and the same file number of the same year are too numerous or bulky to be compiled in a single file, they may be compiled in more than one file, each file being given a part (i.e., I, II, III, etc.).
6) The title and the file number etc. of the file will then be written on the file cover in the relevant columns thereof. This should be done legibly and neatly the title being written in the same manner as on the Index Slip for the file. The file numbers of previous and later files and of files on allied subjects should also be written on the cover of the file and on the relevant index cards.
7) The file should thereafter be brought on the file Register in the form in Appendix 17. No current file should be brought on this register.
8) The File Register should be retained in the desk for a period of one year after the year to which it relates and then transferred to the Registry Section.

17.6 Custody of closed files:

1) The desk should retain in its custody, current papers, and files of the current and preceding year only. The rest of the file should be made over to the Registry together with the File register after obtaining receipt from that section.
2) The closed files which remain in the custody of the desk till their transfer to the Registry should be arranged in the alphabetical order of trilateral of their files number and kept in a cupboard.
3) Files and papers classified as ‘D’ should be destroyed by the desk itself as and when due for destruction. No note of destruction of ‘D’ files and papers need be kept. The Registry will retain the closed files transferred to it for a period of five years from the year in which they are closed.

17.7 Treatment of closed files in the Registry Section:

1) There shall be Record sub-section in the Registry consisting of a record Clerk and a Draft. The Record Clerk will receive the closed files from desk together with the File Register, verify the files with the particulars given in the File Register and keep them in deposit in the Record Room. The senior Assistant in charge of the Registry will be responsible for the overall control over the receipt. issue and return of the files.
2) Files of each desk will be kept in separate compartments so long as they are in the custody of the Registry Section.
3) The Registry will arrange to destroy files classified as ‘C’ as soon as five years have elapsed after the year in which they were closed and keep a note of their destruction in the File Register.
4) Files classified as A and B will be made over to the Mantralaya Record Office, as soon as 5 years have elapsed after they were closed. They will be put in boxes of suitable size after preparing a list of files contained in each box. A receipt will be obtained from the Mantralaya Record Office and kept in the File Register.

17.8 Review of Classification:

1) In January each year the Mantralaya at Record Office will send to the department concerned the files marked for destruction in that year. The Registry will submit them to be Desk Officers Concerned form examination Files which appear still to be use will be kept for a further period The remaining Files will be destroyed after keeping a note in the File Register.
2) Files Classified as 'A' and 'B' should be reviewed every ten years and the classification revised, if necessary. The revised Classification should be indicated in the File Register.

17.9 Obtaining recorded files from the Registry Section:

1) To get a recorded file from the Registry Section of the Department, a requisition slip will be handed over by the Desk Officer to the record clerk in the Registry. The record clerk will give the file and keep the requisition slip with him obtaining thereon the signature of the person to whom the file is given.
2) The Desk Officer will return the file as soon as done with but with- in a month any case. The record clerk will see that the files given to desk are not retained for more than a month without intimation to him. The Senior Assistant in charge of the Registry will obtain form the record clerk, monthly abstract of files issued but not returned by desk within a month of issue. Inordinate delays on the part of desk in returning the files will be brought to the notice of the officer in charge of the Registry.
3) When the file is to be returned, the desk clerk typist will take it to the record clerk, hand it over to him and see him destroy the requisition slip.

17.10 Obtaining recorded files from the Record Office:

1) To get file from the Record Office, a requisition slip will be prepared in duplicate, and one copy thereof sent to that office over the signature of the Desk officer and the other copy retained as office copy. The file number and subject of the case for the consideration of which the file is required should be invariably indicated in the requisition slip. If the files number and subject of the case for which it is required is not known, the requisition slip should clearly specify.
2) If the file required belong to another department, the requisition slip should be accompanied by a written consent of the owning department. Ordinarily it will suffice. If the requisition slip is got countersigned by the head of the Registry Section of the own Department.
3) A file obtained from the Record Office should not be retained for more than three months. If the however, it becomes necessary to retain it beyond that period, that Office should be informed of the further period for which it is likely to be required.
4) If a file obtained from the Record Office is also required by another department, it should not ordinarily be passed on direct the other department. should this become necessary for space reasons, the file should be passed on the Record Office to enable it to compile its record and to follow up the file in the other department.
5) If a file initially obtained for a case is subsequently put up with another case, a note of this should be kept on the office copy of the requisition slip kept in the desk.

17.11 Maintenance/transfer of records in the personal offices of Ministers:

1) The personal offices of Ministers shall maintain necessary records such as registration, dispatch, and file movement registers. The above records will be in addition to files and folders for papers of secret nature connected with the Cabinet meetings, etc. and for such subjects as considered necessary.
2) When a file or paper is given to the Minister for seeking orders or for any other purpose, informally, the PS to Minister will be informed. PS to Minister will on receipt of these particulars, will satisfy that such a file has been received by the Minister and watch its further movement. The file will be returned to the officer concerned as soon as the matter has received the attention of the Minister and the file has been disposed of.
3) For Record Management instructions under the Maharashtra Public Records Act, 2005 Should be followed accordingly.

Box-e. 17.1

In eFile, based on the category defined on the files, the list of files that are to be reviewed in a particular year is available in the system.
The Record Management System has provisions to take care of requisitioning of files from the department.
In eOffice, the system, Records Management System, provides all the facilities for recording of physically processed files in eFile, beginning with categorization, sent to record room for recording, keeping the location of recorded file(s) in record room.
Presently, all electronic files are retained in the eFile system as a permanent record.

17.12 Record Retention Schedule:

1) To ensure that files are neither prematurely destroyed, nor kept for periods longer than necessary, every department will:
    a) in respect of records connected with accounts, observe the instructions contained in Appendix 9 to the General Financial Rules, 2017.
    b) in respect of records, relating to establishment, housekeeping matters, etc. common to all departments, follow the `schedule of periods of retention for records common to all departments issued by the Department of Administrative Reforms and Public Grievances (Sl.No.15 in Table 4.2)
    c) in respect of records prescribed in this Manual, observe the retention periods specified in Appendix 17.1; and
    d) in respect of records connected with its substantive functions, Departments/Ministries may issue Departmental Record Retention Schedule vetted by the National Archives of India.

Box-e. 17.2

Closed e-files will be reviewed as per Record Retention Schedules and marked for weeding out/transfer to NAI as per accession procedure of NAI.

2) The following schedules should be reviewed at least once in 5 years.

Appendix 17.1

Sl. No.	Description of record	Reference to relevant para ofthe manual	Retention period (in years) from the date ofclosure.
1	*2*	*3*	*4*
1	Dak register	5.3	3
2	Standing guard files	11.4	Permanent. To beweeded out when therevised version becomes available
6	Section Dispatch Register	9.6(iii)	5
7	Messenger book	5.4	3
9	File register	6.4	Permanent
10	File movement Register	6.5	3
11	Register for watching the progress of recording	10.10(i)a	3
12	Precedent book	11.6	Permanent
13	List of files transferred to Departmental record room	10.8(iii)	25
14	List of files transferred too National Archives	10.8(v)	Permanent
15	Record review register	10.8(iv)	1
16	List of files received for review	10.10.(i)(b)	1
17	Record requisition slip (NAI)	10.13.(iii)	To be destroyed after thefile has been returned to NAI
19	Monthly Progress report on recording of files	10.10.(i)(a)	1
20	Register for keeping a watch on communications received from MPs /VIPs	12.3	3
21	Register of Parliamentary Assurances	12.6	3
22	Checklists for periodical reports	12.7	1
23	Inspection reports		I year after the ATN on that report is accepted

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CHAPTER – 18

KNOWLEDGE MANAGEMENT

Knowledge Management is a process of creating, sharing, using, and managing the knowledge and information of an organization. It refers to a multi-disciplinary approach to achieve organizational objectives by making the best use of the knowledge. Knowledge Management is, therefore, an enabler of organizational learning. A knowledge management dashboard shall be set up in the e-Office environment by every Section/Unit/ Desk which will provide access to aids to processing as indicated in this CHAPTER.

18.1 Aids to processing:

Aids to processing are tools of knowledge management used in the Ministries and Departments. Any mechanism that helps an officer to learn his/her area of work in examination and disposal of a case is an aid to processing. They are more effective if maintained electronically.

Examples of aids to processing are:

1. Note for the Successor
2. Standing Process Sheet
3. Standing Guard File
4. Standing Note
5. Precedent Book
6. Reference Folder

18.2 Transfer certificate:

Officer/employees who have been transfers from one department to another and under the same department of the Mantralaya are required to submit a transfer certificate as instructed and prescribed in Government Circular of General Administration Department, dated 25th August 2022.

18.3 Note for Successor:

1) Movement of officers from one post to another by way of promotions, transfers, deputation, etc. is a part of functioning in any organization. It is the responsibility of the organization to ensure that relevant induction material is provided to the new incumbent to enable him/her to perform duties to the best of his/her abilities.
2) Even though in Government organizations, all the required information is available in files, predecessors also play an important role in passing on institutional memory. Guidance provided by the predecessors needs to be documented to ensure easy and ready access.
3) Note for successor from his/her predecessor is an important tool to keep the work progress in a flawless manner. Such a note should be prepared in a structured manner in corporation all the inputs so that the successors could discharge their duties more efficiently.
4) The responsibilities may vary from one post to another post. The note for the successor generally must be of uniform format across the levels. A common template for a model Note for successor is given in Appendix –18.1

Appendix 18.1

LIST OF IMPORTANT DOCUMENTS

1. About the Ministry
2. Second Schedule of Transaction of Business Rules, 1961.
3. Relevant portion of the Allocation of Business Rules, 1961.
4. Annual Report.
5. Organization Chart.
6. Work allocation with details of work allocated to Officers & Sections.
7. List of attached offices, subordinate offices, autonomous bodies, CPSEs.
8. Delegation of financial and other powers and Departmental instructions fordecision making within the organization.
9. Citizens' Charter.
10. Parliamentary matters – A folder containing answers provided to Questions, Note for Supplementary for the last three sessions Question days of the Ministry/Department.
11. Court cases – status of court cases requiring attention:

Sl. No.	File No.	Subject of court case	Date of next hearing	Advocate handlingthe case with telephone No.

12. Projects/schemes completed and under process:

Sl. No	FileNo.	Subject of project/Schemes	Target date	Implementing Agency/Unit with contact details	Preset position

13. Level of ICT prevalent in the Ministries – List of important websites, eOffice andFile Tracking System.
14. Budget provision and the status of utilization of funds/budget. Action on additionalbudget requirement. Pending Audit paragraphs.
15. Pending RTI applications.
16. Important instructions on files from senior officers on which responses are pending.
17. EFC/SFC/Cabinet Note pending.
18. Important meetings during the next fortnight. Follow up action on previousmeetings.
19. List of periodic reports that are generated by the office and that are received bythe office.

LOGISTICS

The data available on the computer of the predecessor should be made available to the successor.

18.4 Standard Process Sheet:

1) A Standard Process Sheet is a standardized note or template. It is a mechanism used in an office to arrive at a decision. The Standard Process Sheet provides various checkpoints to process cases of repetitive nature. The various details or the facts and figures of each case are provided by the Dealing Officer. Apart from being a performance tool for the Dealing Officer, it ensures that no important point is overlooked by the seniors when the case is submitted. For the senior officers, it

also helps in saving time because relevant information needed is visible in a more conspicuous manner.

2) Some of the steps to be taken to devise Standard Process Sheet are:
   a) List the cases dealt with
   b) Check if any of them is of repetitive nature
   c) Prepare a list of points to consider while submitting the case
   d) Arrange those points in a logical sequence. The broad sequence to be adopted is:
   e) Facts of the case
   f) Rules/regulations to be applied
   g) Suggested course of action
   h) Indicate who the competent authority is
   i) Points on which decision is sought
   j) Design a format
   k) Get the draft standard process sheet cleared by Section Officer and Desk Officer
   l) Test-run the Standard Process Sheet in a few cases
   m) Revise, if necessary
   n) Finalize.

3) Standard Process Sheets are to be reviewed periodically with respect to standing instructions/orders/guidelines of the Government in force. It will be filed on the notes portion of the file. It is to be treated exactly in the same manner as a normal note sheet is treated.

Box e-18.1

In eFile, one may design and customize templates to process cases of repetitive nature like advance or withdrawal from GPF, etc.

4) Need to revise Standard Process Sheet may arise due to:
   a. change in the rules position or
   b. change in the procedure itself.
   For example, if the minimum notice period for resignation to be given by the employee is done away with. This would need a revision in the Standard Process Sheet to the extent that this checkpoint will have to be deleted.

18.5 Standing Note:

Standing Note is helpful in retrieval of important files on the subject to which Standing Note pertains as it contains reference to important previous files concerning the subject. By referring to Standing Note one can easily have access to important files on the subject and locate them without any delay. It's a continuing note explaining among other things, the history and development of the policy and procedure, designed to serve as:

1. A complete background material for review of the existing policy or procedure.
2. A brief for preparing replies to Parliament questions or notes for supplementary thereto; and

3. Induction or training material.

As and when there is change in policy or procedure, the Standing Note should be brought up to date by incorporating relevant changes.

18.6 Precedent Book:

1) It is a register in a prescribed format to keep note of important rulings & decisions having a precedent value for ready reference. While acting on receipts, the Dealing Officer examines cases with reference to the rules, regulations, or guidelines on the subject. There are, however, instances when one comes across cases where the rules, the regulations or the guidelines do not provide a clear and specific answer for the issue under consideration. Precedent Book is a valuable tool for quick retrieval of past files on the subject under consideration. It is a Register designed to keep note of important rulings or decisions having a precedent value for ready reference. If Dealing Officer and other officers in the hierarchy are unaware of precedent, they will have to seek advice from the nodal ministry concerned. Often this sort of references results in delay in disposal of cases. Precedent Book must be maintained in all Sections that are designated as a nodal section. Format of Precedent Book is in Appendix.19.2

   A perusal of index in the Precedent Book maintained by the section will help:

   a) to know whether there is any decision taken earlier on the issue presently under consideration.
   b) If so, to obtain details of the old file number in which the decision was taken.
   c) Helps in locating it and linking it with the current file.

2) Locate files with precedent value. It is difficult to define the term "precedent value". A rigid view on the entries in the Precedent Book should not be taken. Dealing Officer may also make entries relating to discussions on file leading to 'No Decision' also. 'No Decision' cases are those which are examined in a file for a decision, but the outcome is to keep it on hold. For example, a section receives a proposal for creation of posts. Concurrently, there is a proposal for cadre review. A view may be taken not to process the proposal for creation of posts till the cadre review is completed. If considered suitable, this 'No Decision' may be a fit case for entry in the Precedent Book. Similarly, dealing officer may examine a proposal to grant relaxation to one of the eligibility conditions provided in recruitment rules for promotion. After discussions on the file, the General Administration Department, the nodal authority in such cases, may not agree to the proposal. The precedent value is that no relaxation was granted.

   The criterion to decide whether a case should be entered in the Precedent Book is based on whether such a file is likely to be called up for reference in the future**.**

   Dealing Officer may consider taking photocopy of the relevant correspondence and the notes portions of the file with precedent value in a folder giving a fresh page number to the photocopied papers and keeping a record in the form of an index on the first page of the folder. He may also note the page reference in the Precedent Book. Between one set of photocopies of a precedent and another he may keep a blank-colored sheet as a separator. This folder should be kept along with the Precedent Book in a file board. This kind of an institutionalized system would obviate the need to locate the old file. The Precedent Book along with the folder-containing photocopy

of the relevant note/ correspondence portions should be kept in a safe place for easy retrieval. Desk Officer should assign the responsibility of maintenance of Precedent Book to a functionary in the section through a specific entry in the work-allocation chart.

An ideal time to make entries in the Precedent Book, therefore, is immediately after a decision of precedent value is taken. However, in any case, the entry must be made at least at the stage of recording the file.

APPENDIX – 18.2- Format of Precedent Book (para 18.6)

PRECEDENT BOOK	
Heading*	
Decision or ruling in brief	
Date:	File No.
Copy at page in the folder.	

Decisions with precedent value are indexed under various heads. For instance, a decision on "critical date for determination of eligibility of candidates for the post of Chairman, Maharashtra Public Service Commission" may be indexed under:

a) Maharashtra Public Service Commission
b) Chairman
c) Critical date
d) Eligibility, etc.

18.7 Reference Folder:

Reference folder is a folder maintained by individual officers. It contains such basic details as considered necessary by the officer, which are of immediate use for processing a case. Folder containing copies of various orders, rules, instructions, guideline, etc. on a specific topic, data pertaining to the subject dealt with, etc. Reference Folder is useful for the Dealing Officer or an officer during the discussions with the senior officers or while attending a meeting

Depending upon the need of the Dealing Officer or an officer, the Reference Folder will be created. Thus, it would depend on the needs of the officer concerned. The Reference Folder needs to be updated regularly on every updating of data and every amendment to the standing instructions, orders, and guidelines of Government.

18.8 Induction Material:

Every Department should prepare 'induction material' under the guidance of the Deputy Secretary/Joint Secretary, in charge of administration for the use of not only their officers but also for the convenience of other Departments in making inter-Departmental references. The `induction material' should clearly spell out the functions and structure of the organization, detailed work distribution among various divisions and sections with their names, room numbers, location, officers

in charge, telephone numbers, etc. The induction material' should be revised at periodic intervals to keep it up to date.

18.9 Master Circulars:

1. To improve the existing Knowledge/information Systems in Government, Departments may review the instructions issued by them on each subject from time to time and consolidate the instructions on a given subject into a self- contained single document in the form of Master Circular. References of source instructions and amendments thereto may be listed and hyperlinked at the end of Master Circular to facilitate a user to see changes/updating introduced over time.
2. Whenever new instructions/orders are issued, or modification/amendment is carried out in any existing instructions on a subject, the relevant Master Circular may be updated on the above lines. Such updated Master Circular shall supersede the previous Master Circular on the subject.
3. The Master Circulars may be published on the website with well thought out content design and positioned prominently on the website within the broad framework of Guidelines for Government Websites.
4. Departments may consider setting up a dedicated Cell for adoption of system of Master Circulars and for organizing, maintaining, and updating information on their websites on regular basis.
5. The progress of implementation of the above measures may be reviewed by Secretary of the Ministry/Department regularly in Senior Officers Meetings.

18.10 Responsibility Mapping:

Sr. No	Activity	Responsibility assigned to
1	Note for a Successor	The Officer concerned*
2	Standard Process Sheet	Desk Officer
3	Select File	Section Officer
4	Precedent Folder (Book)	The Officer concerned*
5	Reference Folder	The Officer concerned*

* The officer may ask the Dealing Officer and other officers to help.

Box – e. 18.2

In eFile, there is a provision for 'Remarks' in the electronic as well as physical filecover, which could be used to indicate the decision made using **key/catch words**.Subsequently, this could be indicated in the Precedent Folder.
It is possible in **eFile to have a single folder combining the features/utilities of Standing Guard File and Precedent Folder**. These tools of Knowledge Management are essential to be developed and updated regularly.

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18.11 NOTE FOR THE SUCCESSOR

1) List of key areas and responsibilities related to key areas

S No	Key performance area	Responsibility related to the key performance area
1		

2) Staff position at present

Sl. No	Nomenclature of the post	Sanctioned strength	Persons in position	Vacant posts	Date of vacancy	Remarks

3) A brief write-up on the sensitive matters being dealt with in the Section, Desk, Division, Wing or Department.
4) List of documents required by the officer for handling the responsibilities are in Annexure.
5) What were the predecessor's experience of working in the Ministry/Department and what steps need to be taken to improve the situation?
6) Challenges that he/she faced, and efforts made to overcome them.
7) What are the constraints under which the work had to be undertaken?
8) List of counterparts in various Ministries/Departments along with the subject matter.

Sl. No	Subject matter	Ministry concerned	Officer concerned	Office address, E-mail, and contact number

9) Pending matters like Court cases, Legislative matters, CMO, Cabinet, Mantralaya, e-Samiksha, etc. needing urgent attention.
10) Any other issues.

CHAPTER -19

SECURITY OF OFFICIAL INFORMATION AND DOCUMENTS

19.1 Communication of official information:

Every Government servant shall, in performance of his/her duties in good faith, communicate information to a person in accordance with the Right to Information Act, 2005 (22 of 2005) and the rules made there under:

Provided that no Government servant shall, except in accordance with any general or special order of the Government or in performance in good faith of the duties assigned to him/her, communicate, directly or indirectly, any official document or any part thereof or classified information to any Government servant or any other person to whom he is not authorized to communicate such document or classified information.

19.2 Treatment of classified papers:

The provisions contained in this manual apply primarily to unclassified papers. In handling classified papers, the official concerned will have to exercise special care and follow the provisions under the Acts and Rules. Since, according to these instructions, classified papers (other than confidential) are expected to be handled either by officers themselves or in sections designated as `secret' or `top secret', it is essential that in sections not so designated:

1) a separate set of registers and other records (e.g., Various Registers, Precedent Book, electronic media, CDs, pen drives, etc.) is maintained by Desk Officer/Under Secretary himself/herself; and
2) the recording of such files and their review is also undertaken by him /her personally, keeping in view the provision made under it.
3) Every classified file shall be reviewed once in five years for declassification. The declassified file considered fit for permanent preservation will be transferred to the Department of Archives.

19.3 Confidential character of notes/ files:

1) A file or note referred by a department to another will be treated as confidential and will not be referred to any authority outside the Mantralaya and subordinate offices without the general or specific consent of the Department to which the file belongs. If the information is in the electronic form, it will be handled by the authorized official only.
2) Where the general consent has been obtained under sub-para (1) above, such consent will, however, exclude classified files or files in which the officer to whom the file is supposed to be referred or shown to, is personally affected, or in which his official conduct is under consideration.
3) To attending meetings/discussions outside office an officer not below the rank of Section Officer/Desk Officer may carry confidential papers/ files or an officer not below the rank of Under Secretary may carry Secret papers/files in a special circumstance with the written authorization of concerned Joint Secretary/ Head of the Department. The authorization will be produced by the officer on demand. Instructions issued time to time shall be followed in this regard.

19.4 Communication of information to the press:

1) Official information to the press and other news media, i.e., radio and television, will normally be communicated through the Press Information Bureau and Directorate General of Information and Public Relations (DGIPR).
2) Only Ministers, Secretaries, and other officers specially authorized in this regard may give information or be accessible to the representatives of the press. Any other official, if approached by a representative of the press, will direct him/her to the Press Information Bureau/ DGIPR or will seek the permission of the Secretary of the department before meeting the Press.
3) Whenever it is proposed to release official information to the Press, or to hold a press conference or press briefing, or to give publicity to an official report, resolution or any other publication, the Department concerned will consult the accredited Information Officer in advance. The accredited Information Officer will meet the authorized officials from time to time and collect information worthy of publicity.
4) Detailed procedure in respect of matters mentioned in this para, as laid down by Directorate General of Information and Public Relations (DGIPR).

19.5 Use of restrictive classification for printed reports etc.:

1) The restrictive classification `For official use only' will not be assigned to any printed report, pamphlet, or compilation, unless it contains information disclosure of which would not be in the public interest. In doubtful cases, the test that may be usually applied is whether the publication, whose circulation is proposed to restrict to official use only, is such that the Minister would be justified in refusing to lay it before the Legislative Assembly.
2) No official publication (including in electronic form) will be marked `For official use only' except with the prior approval of the Desk Officer/Under Secretary, who will obtain the orders of the Secretary in case of doubt.

Box – e. 19.1

In eFile, the system allows movement of envelopes, receipts, and files with security grading among any / all users in the department.
Departmental instructions are to be issued by the Chief Vigilance Officer of the Department to restrict access to various categories of classified documents, to designated users.

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CHAPTER- 20

ANNUAL ACTION PLAN & CITIZEN'S/ CLIENT'S CHARTER

20.1 Annual Action Plan:

1) **Formulation** - In order that the programmes and projects undertaken by a department are implemented in a systematic manner, each of them will formulate an Annual Action Plan in the month of January. The Action Plan will reflect the manner and timeframe of action with month-wise break-up of targets to be achieved in respect of each of the activities to be performed during the coming financial year.

2) **Accountability** - The action plan will identify the levels of accountability, both direct and supervisory, for implementation of each action point. Achievement of targets in action plan will form an important element of performance appraisal of each employee.

3) **Review** - Each officer will review the progress made against action points pertaining to his/her charge every week and take appropriate steps for effective and timely implementation of the tasks assigned. Secretary of the Department will review the performance in respect of the Action Plan items in a monthly meeting with senior officers. Follow up action on the points minuted therein should be taken promptly.

20.2 Citizens/Clients Charter:

1) **Citizens Charter** is an instrument which seeks to make a department transparent, accountable and Citizen friendly. A Citizens Charter is basically a set of commitments made by them regarding the standard of service delivered. The objectiveof framing a Citizens Charter is to build bridge between the citizens and the administration and to streamline administration in tune with the needs of the citizens.
2) Citizen's /Client's Charter is intended to empower citizens and clients so that they can demand committed standards of service and avail remedies in case of non-compliance by service provider organizations. The basic thrust of the Citizen's/Client's charter is to render public services citizen centric by making them demand driven rather than supply driven.
3) **Citizens** are common public at large comprising of individuals (companies, trusts, associations, unions, etc.). They are not part of the Government and are generally referred to as external clients. Being outside the Government machinery, general assumption is that they do not have sufficient knowledge of the Government's internal processes. Therefore, the onus is on the service provider to ensure that citizens are well aware of the service standards and the expectations from service recipients. It cannot be presumed that all citizens are literate or understand the official language, and it may be necessary to communicate with them in the local language also.

4) **Clients** are part of the government and are generally referred to as internal clients. Being part of the government machinery, the general presumption is that clients have sufficient knowledge of the government's internal processes. Therefore, the onus of ensuring that clients who are also part of the government are aware of the service standards and the expectations from service recipients is equally divided between the service provider and the service recipient. It is presumed that all clients are literate and communicating with them in the official language of the service provider agency is sufficient.
5) **Clients** could be Government agencies and Government employees availing the services from another Government agency. Services here will exclude administrative control activities, references, and opinions to be provided on policy related matters which cannot be disposed of within a predefined timeline.

6) **A Citizens Charter comprises of the following components:**
   a) Cover page (Appendix 21.1)
   b) Vision Statement
   c) Mission Statement
   d) Details of Business transacted by the Department/ Offices (indicates services offered, specifies timelines, for service, indicates service standards, identifies levels/ information about contact points and conditions for delivery of services)
   e) Details of beneficiaries/ Costumers / Clients (identifies beneficiaries/ client group /stakeholders/users)
   f) Statement of services provided to each citizen/client group separately (information about processes / procedures to access service benefits)
   g) Details of Grievance Redressal Mechanism and how to access the same incase of deficiency in services.
   h) Information about facilitating implementation of Right to Information Act,2005 and Right to Services Act, 2015
   i) Expectation from the citizen / client for smooth service delivery.
   j) Date of Issue of Citizens Charter and Date of next review of the same.

Appendix 20.1

NATIONAL EMBLEM

STATE LOGO

CITIZEN'S/CLIENT'S CHARTER NAME OF THE DEPARTMENT/ OFFICE

(NAME OF THE OFFICE TO WHICH THE DEPARTMENTBELONGS)

ADDRESS WITH WEBSITE ID

MONTH AND YEAR OF ISSUE

7) **Each Department/ Office shall appoint a 'Contact Officer on Citizens Charters'** responsible for formulation and implementation of the Citizens Charter. The Contact Officer or Nodal Officer for Citizens Charter will be responsible for various activities involved in formulation and implementation of the Citizens Charter.

8) **A comprehensive website of Citizens Charter in Government of Maharashtra:** The website https://gad.maharashtra.gov.in/citizencorner contains the Citizens Charters issued by various State Government Departments and Offices. They are required to upload their respective updated Citizens Charters on the above link as and when their Citizens Charters are reviewed and revised.

9) **Activities relating to the Citizens Charter required to be included in the Annual Report of the Department / Offices are as under:**

a) Action taken to formulate the Citizens Charter for the Department / Offices and its subordinate formations.
b) Action taken to implement the Citizens Charter.
c) Details of Training Programmes, Workshops etc., held for proper implementation of the Citizens Charter.
d) Details of publicity efforts made, and awareness campaigns organized on Charter of the Citizens/Clients.
e) Details of internal and external evaluation/implementation of Citizens Charter in the Department/ Offices and assessment of the level of satisfaction among Citizens/Clients.
f) Details of the revisions made in the Citizens Charter on the basis of internal and external review.

20.3 Public Grievance Redressal Mechanism:

a) Grievances are expressions of resentment against specific acts of omission or commission that are wrong or perceived as wrong thus requiring corrective action to be taken. In other words, if a grievance is received, it needs to be redressed. Grievance includes complaints by service recipients against non-delivery of services as expected but does not include requests for service delivery in

normal course.

b) In the State, Aaple Sarkar is the Grievance Redressal Portal in the following link http://grievances.maharashtra.gov.in/en

c) Grievance Redress Mechanisms (GRMs) are the processes set up by Department to receive, record, investigate, redress, analyse, prevent, or take any other appropriate action in respect of grievances lodged. GRMs in Ministries/ Departments/ Offices include grievances received by them from the public and clients/ service recipients as well as from their own employees. As such, these include issues related to service delivery as well as employment related matters (e.g., Service delivery, schemes, transfers, promotions, pensions, pay fixation, etc.). A Citizen can lodge a grievance in Official languages.

d) The guidelines on GRMs (GR, Circulars) are issued by General Administration Department. Any complaint sent by E-mail will not be attended to / entertained as the public grievance . Grievance is to be lodged on the website, the tracking of the same is possible through a Unique Registration Number generated by the system at the time of lodging of the public grievance by the citizen.

20.4 Central Public Grievance Redress and Monitoring System (CPGRAMS) based on web technology was established in June, 2007 with the aim to enable/ facilitate an aggrieved Citizen to lodge a grievance from anywhere at any time (24x7) on www.pgportal.gov.in. The CPGRAMS enables a Citizen to lodge a grievance to any of the Ministries/Departments or State Governments/UTs on www.pgportal.gov.in. The functioning and various features of the CPGRAMS are as under:

1) The PMO, President's Mantralaya, Directorate of Public Grievances, Cabinet Mantralaya, DARPG and the Pensioners portal are integrated through CPGRAMS.
2) CPGRAMS interlinks all the 87 Central Ministries/Departments / Organisations existing as on date as well as all the 36 State Governments and UT Administrations.
3) On lodging of a grievance online, a Unique Registration Number is generated to the Citizen through CPGRAMS to enable online tracking of the grievance, giving reminders or comments by the Citizen.
4) The acknowledgement with the Unique Registration Number of the grievance registered online is sent via E-mail to the E-mail address indicated or by SMS on the phone number indicated by the citizen while lodging the grievance.
5) In case the grievance is lodged offline by post, the same is uploaded on CPGRAMS and an acknowledgement letter is generated through the system which is sent to the Citizen by post.
6) The first five alphabets of the registration number denote / indicate the Ministries/Departments to whom the grievance had been lodged.
7) There is a provision of lodging a grievance which will be automatically forwarded to field level directly.
8) The system enables Ministries/Departments to take appropriate action and upload the Action Taken Report (ATR) to be filled mandatorily by GrievanceRedressal Officer on the system, which can be viewed by the citizens onlinewith the help of the Unique Registration Number.
9) The system enables Ministries/Departments to declare their respective subordinate organizations for Grievance Redressal.
10) CPGRAMS generates various reports for monitoring of Public Grievances which facilitate

identification of grievance prone areas and enables systemicchanges / reforms.

11) Citizen satisfaction feedback rating mechanism is available on CPGRAMS.
12) Public Grievance records on CPGRAMS are archived after a period of five years.

20.5 Aaple Sarkar Portal:

1) It is a One-stop platform for citizens of Maharashtra to seek redressal of their grievances.
2) The grievances can be filed under appropriate category (District Administration/ Mantralaya departments). Once grievance has been submitted, a tracking number will be generated.
3) Citizens can track the status of the grievance with the help of the tracking number.
4) The grievance will be addressed by the competent authority within a period of 21 working days.
5) Citizens can provide feedback for the quality of resolution of grievance through a "Satisfied" / "Dissatisfied" option.

20.6 Issues not taken up for Redressal of Grievances are as under:

1) Sub Judice cases or any other matter concerning judgement given by court.
2) Personal and Family Disputes.
3) Right to Information matters.
4) Anything that impacts upon the territorial integrity of the country or friendlyrelations with other countries.
5) Suggestions.
6) Any complaint sent by E-mail will not be attended to/ entertained as the public grievance is to be lodged on the website.

20.7 The machinery and work relating to public grievances and the statistics relating to receipt/disposal of public grievances shall form a part of the Annual Action Plan and Annual Administrative Report of the Ministry/Department.

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e-office_User_Manual7.pdf (maharashtra.gov.in)

CHAPTER - 21
CHECKS ON DELAYS

21.1 Weekly arrears list, and abstract of arrears lists-

On every Month, Assistant Section Officer / Desk Officer / Section Officer / Under Secretary should take a review of the entries made in their worksheets maintained by them. An abstract showing the number of cases received and disposed of during every month and the breakup of number of cases which remained undisposed of should be prepared. Such abstracts should be shared to desk as a Collective work. Abstracts received from desk should be consolidated in one statement the department as a whole and such consolidated statement should be submitted to all officers and the secretary of the department by end of the Month following that to which the statement relates. One copy of the consolidated statement should be sent to the O. & M. section of the General Administration Department, on the same day.

1) Besides the weekly arrears statement, information regarding the total number of cases pending with officers for more than 7 days mentioned in "*Maharashtra Government Servants Regulation of Transfers and Prevention of Delay in Discharge of Official Duties Act, 2005"* also be sent to the General Administration Department (O. & M. Section) along with the weekly arrears list.
2) In addition to the arrears lists, a quarterly count of cases pending in the Departments should be taken on 31st January 30th April 31st July and 31st October in accordance with the procedure prescribed below-
   a) For the purpose of taking a count, a 'case' would mean a batch of papers on which final action has not been taken and which cannot be filed. The period of pendency of such case should be taken as from the date of the earliest communication in that batch of papers (on which final action is not taken).
   b) The quarterly count is to be taken on an appointed day in all desks in all Mantralaya Departments. The count is to be taken both in respect of cases belonging to the department and also in respect of cases (unofficial references) which have been received from other Mantralaya Departments.

21.2 Periodical checking of diary by the Desk Officer-

Every Desk Officer should also check the diaries maintained by the Clerk cum Typist in his desk every week and verify whether entries in the diary are being taken correctly. He should put the initials and dates immediately after entries of the week ending Saturday in the diary, in token of his having checked it.

21.3 Register of Legislative Assembly/Council questions-

In every desk, a register of Legislative Assembly and Legislative Council questions should be. This register should be scrutinised by the Desk Officer once a week when the Legislature is not in session and twice a week when the Legislature is in session.

21.4 Monitoring of Timely Disposal of Cases:

Every Government servant shall dispose off cases in accordance with the Time Limits specified in the *Maharashtra Government Servants Regulation of Transfers and Prevention of Delay in Discharge of Official Duties Act, 2005.*

21.5 Watch on disposal of communications received from Members of Parliament /Legislative Assembly / Council and VIPs:

1) Desk / Section shall maintain a separate register of communications received from Members of Parliament /Legislature and VIPs
2) To keep a special watch on speedy disposal of communications received from Members of Parliament /Legislature /VIPs, each section shall.
   a) maintain a register; and
   b) mark out prominently those communications finally disposed of by circling the serial numbers in the register in red ink.
3) On the first working day of each month, each section shall submit the register, along with the report to the Under Secretary/Deputy Secretary. The report, with the remarks of the Under Secretary/ Deputy Secretary, shall be submitted to the Secretary and register shall be returned to the section.
4) The Secretary shall check whether all the communications entered in its register figure in the reports sent by the sections. If any discrepancy is found, it should be reconciled.

21.6 Monitoring of Court/CAT/MAT cases and implementation of Court/CAT /MAT Orders:

1) Desk / Section will maintain a separate register of Court/CAT/MAT Cases from the date of filing the petition/application in Court/CAT/MAT in the form given in the serial number at which a petition is entered in the register will be prominently marked on the petition/application together with its date of registration
2) To keep a watch on status of Implementation of Court/CAT/MAT judgments/orders, each section will:
   a) maintain a register**;** and
   b) mark out prominently those Court/CAT/MAT cases finally implemented /disposed of by rounding off the serial numbers of the register in red ink and give date of implementation of Court/CAT/MAT orders.
3) Each month, each section will submit to the Under Secretary/Deputy Secretary. The report, with the remarks of the Under Secretary/Deputy Secretary, will be submitted to the Secretary and register will be returned to the section.
4) The Secretary will check whether all the Court/CAT/MAT cases entered in its register figure in the reports sent by the sections. If any discrepancy is found, it should be reconciled.

21.7 Checklist of periodical reports:

1) To ensure timely receipt, preparation and dispatch of periodical reports, each section shall maintain two checklists, one for incoming reports and the other for outgoing reports, all periodical reports

shall be listed in column 2 of the appropriate checklist in the order of their frequency, weekly reports being entered first, fortnightly reports next, and so on.

2) The checklists shall be prepared at the commencement of each year, approved by the Section Officer/Desk Officer / Under Secretary, and shown to Deputy Secretary / Joint Secretary.
3) The Section Officer shall go through the checklists once a week to plan action on items requiring attention during the following week or so. After a periodical report has been received or dispatched the relevant entry in the date column of the appropriate checklist shall be circled in red ink.

21.8 Review of periodical reports/returns:

All periodical reports and returns relating to each section will be reviewed at the level of Joint Secretary or above, with period of three years as per following objectives.

a) to eliminate unnecessary report and returns.
b) to redesign reports and returns which do not provide information/data in usable form.
c) to rationalize/simplify the essential ones by combining two or more of them, if possible; and
d) to revise the frequency in relation to the need with due regard to constraint of time required for collection of information/data from field levels.

21.9 Monitoring of Websites:

All State Government Ministries/Departments/Offices/PSUs should have a website containing updated data/information in compliance with the Guidelines of Government of India Websites (GIGW) available on the websites of Ministry of Electronics & Information Technology (www.meity.nic.in). A nodal officer of the concerned administrative department should be appointed for the purpose and the Website updated regularly.

21.10 Disposal of Pending Matters:

1) With the objective of disposing of references from M.L.A. /M.L.C., Legislative Assurances Grievances, and references for Inter-Ministerial Consultation, the Department of Administrative Reforms and Public Grievances has been advocating the Ministries/Departments to undertake Special Campaign covering all Ministries/Departments of Government of Maharashtra, their Attached/Subordinate Offices, Autonomous Bodies and PSUs.
2) As a sequel to the month-long Special Campaign, Ministries/Departments shall undertake the following actions on a regular basis to reduce pending matters to the minimum possible: -
   a) Dedicate three hours every week for the special campaign.
   b) Designate Nodal Officers (not below the rank of Joint Secretary), who will be responsible for identification of pending matters and monitoring disposal on weekly basis, and to collect data, on the first day of every month.
   c) Secretaries shall monitor progress on monthly basis.
   d) The Campaign shall also be implemented in all outstation offices of Ministries/Departments and autonomous organizations/subordinate offices/attached offices.

21.11 Register of Legislature Assembly/Council Resolutions-

A similar register should also be maintained in every desk showing the latest position in respect of Legislature Assembly/Council Resolutions pertaining to it. The register may be maintained in any form considered suitable.

21.12 Register of periodical returns to be received-

Every desk should keep a register of periodical returns, clearly showing the names of officers from whom the return is to be received; the expected date and the date on which it is actually received. Ordinarily one page may be reserved for each type of return so that information about all returns expected to be received, will be available in that register only.

21.13 Register of periodical returns to be sent-

Every desk /Section should keep a list of periodical returns which it is expected to send. The description of the periodical return, the date or day on which it is to be sent, and the officer/desk to whom it is to be sent should be mentioned clearly. One copy of such list should be displayed prominently in each desk/ section.

21.14 Reminders in respect of cases in await:

Desk Officer / Section Officer / Under Secretary should see that cases kept in await are arranged in chronological order and that unofficial cards are also arranged properly. He should ensure that reminders on cases kept in await and reminders based on unofficial cards are issued promptly on due dates.

21.15 Register of references from and to Government of India, which are pending-

Every desk should maintain a register showing references sent to the Government of India and another register showing references received from Government of India which are not finally disposed of. At the end of every month, a list of references sent to and received from Government of India to which final replies have not been sent for over three months should be prepared and sent to the section concerned for consolidation. Every Mantralaya department should consolidate all such lists received from desk and one set of the consolidated report should be sent to the O. & M. section of the General Administration Department, to reach it by the 15th of every month.

21.16 References pending with the Finance Department-

A list of references, if any, which are pending with the Finance Department for more than three weeks should be drawn up every fortnight and such consolidated list from each department should be sent to Finance Department every fortnight.

CHAPTER- 22
INSPECTIONS, STAFF MEETINGS, ETC.

22.1 Inspection of Desk / Section:

The purpose of carrying out inspections in two-fold, vis.

a) to verify whether the procedure prescribed is being observed in practice,
b) to give suitable guidance to the desk inspected to raise its standard of efficiency.

The object of the inspection is not merely to find faults in the works of the desk but also to give practical guidance as to how defects in the working can be remedied.

22.2 Process of Inspection with teams / authority:

1) Each section and Desk shall be inspected by an officer not below the level of Deputy Secretary not in the hierarchy of that section or desk.
2) Each personal section/ staff shall be inspected by the officer concerned, including Secretary of the Department, in respect of his/her personal section.
3) The Central Registry Unit shall be inspected based on input given along with the representatives of DIT and NIC, once in each quarter till Departmental Instructions are issued.

22.3 Simplification of the process of Inspection:

The Central Registry Unit and the Departmental Records Room are the key areas to be focused upon at the highest level to aid and facilitate switchover from the manual or transition stage to the complete e-Office stage. Therefore, inspection should be done through questionnaire for e-Office /Registry / Records Room /Desk.

22.4 Frequency of inspections:

The inspection of the desk should be carried out by the in charge of the desk. Each Section / Desk Officer, Under Secretary should inspect every desk under his control once a month. He should also inspect the Quarterly detailed inspections, which should be carried out in the months of January, April, July, and October.

22.5 Inspection by higher officers. -

Officers at higher level, i.e., Deputy Secretaries should occasionally carry out the inspection of desks with special reference to the question of disposal of delayed cases.

22.6 Dafter Inspection

In case it is noticed that the work of a desk or a particular noting assistant shows a marked deterioration, the officer in-charge of the desk may undertake a dafter inspection. The inspection should be done by using the prescribed- form (Appendix 22.5)

22.7 Reports of desks and daftar inspections-

Desk / Section Inspection and dafter inspection reports should be submitted to the officers in charge of the desk and the Secretary to the Department Copies of these reports should also be sent to the O. & M. section of the General Administration Department.

22.8 Compliance with previous inspection reports-

Desk Officer / Section Officers should also occasionally verify whether suggestions made in the previous inspection reports are complied with or not.

22.9 Periodical meetings of Officers-

Officer's meetings in each Mantralaya Department should be held at regular intervals. In these meetings, problems concerning the working of the department should be discussed, and efforts should be made to find out ways in which improvements in the working of the department can be made.

22.10 Conducting staff meetings-

Officers should also make it a point to meet members of staff working under them by holding their meetings periodically. At these meetings suggestions made by members of the staff to improve the working should be given careful consideration. Members of the staff would also get an opportunity to give expression to their difficulties, if any, which affect their work adversely. These meetings should be conducted in such a manner that members of the staff also should feel that they have a share in shaping decisions which are aimed at improving the standard of efficiency. In these meetings, opportunity should be given to everybody to express his views so long as they are relevant to the question under discussion.

22.11 Simplification of the process of Inspection:

CRU and the Departmental Records Room are the key areas to be focused upon at the highest level to aid and facilitate switch over from the manual or transition stage to the complete eOffice stage. Therefore, shorter versions of questionnaire for use during inspection have been provided below.

Details of inspection questionnaire

Appendix No	Title of the questionnaire
23.1	Inspection questionnaire for Departments on Implementation of eOffice
23.2	Inspection questionnaire for CRU where e office has commenced
23.3	Inspection questionnaire for Departmental Records Room
23.4	Inspection questionnaire for sections / desks
23.5	Inspection questionnaire for personal section / staff

APPENDIX – 22.1.

Inspection questionnaire for Departments on implementation of e-Office

Sl. No	Questions	Status	Remedial action required, if any, for improvement
1.	Has e-Office been commenced? If so, date of commencement?		
2.	Section/Desks and personal section / staff where e-Office is yet to be introduced?		
3.	Has budget requirements been worked out?		
4.	Has adequate budget been provided for during the current financial year?		
5.	Has responsibility mapping done to implement e-Office?		
6.	Has timeline been finalized?		
7.	Has action been initiated to procure hardware (with the required specifications) for the e-Office?		
8.	Has action been initiated to procure software for the e-Office?		
9.	Has action been initiated to post personnel in CRU?		
10.	Is monitoring done on a monthly Basis in the senior officers meeting?		
11.	Is a quarterly/fortnightly report being sent to DAPRG on the status of progress?		
12.	What efforts are made by DARPG to facilitate the Department to introduce e Office?		
13.	Any other issues?		
14.	Any other observations of the Inspecting officer / team to expedite implementation of Office?		
15.	Is capability building being imparted to the users of e-Office?		

16.	Is there any Central Help Desk to cater to the queries of e-Office?	

APPENDIX – 22.2

Inspection questionnaire for CRU where eOffice has commenced

Sl. No	Questions	Status	Remedial action required, if any, for improvement
1.	Is the location of CRU conducive for efficient performance?		
2.	Are the personnel posted in CRUadequate with reference to the workload?		
3.	Does the CRU have: a) Efficient PC systems? b) Latest eOffice applications? c) Efficient scanner? d) Efficient printers? e) Any others (specify)		
4.	Do the personnel posted in CRUhave adequate IT proficiency? a) In operating the PC systems. b) In using the eOffice applications?In operating the scanner. c) Are the seating arrangements conducive? d) Any other associated equipment?		
5.	Are the personnel sent on periodic training to operate the latest versions?		
6.	Is CRU under the direct charge ofa SO level or higher-level officer who is proficient in IT tool used in CRU?		
7.	Is the CRU under the overallcharge of a Deputy Secretary or equivalent officer?		
8.	Any other issues?		
9.	Any other observations of theInspecting officer / team to improve the efficiency of CRU?		

APPENDIX – 22.3

Inspection questionnaire for Departmental Records Room

Sl. No	Questions	Status	Remedial action required, if any, for improvement
1)	Is the location of Departmental Records Room conducive for maintenance of physically processed records?		
2)	Does the Departmental RecordsRoom have? a) Compactors? b) Almirahs? c) Other storage facilities (Specify)? d) Efficient PC systems? e) Latest e Office applications? f) Efficient scanner? g) Efficient printers? h) Any others (specify)		
3)	Is the Departmental Record Roomproperly maintained to preserve the records?		
4)	Any other issues?		
5)	Other observations of the Inspecting officer/team toimprove the efficiency of Departmental Records Room?		

APPENDIX – 22.4.

Inspection questionnaire for a Section / Desk

Sl. No	Questions	Status	Remedial action required, if any, for improvement
1)	Is the location of Section/ Desk Conducive for efficient performance?		
2)	Are the personnel posted in Section/Desk adequate with reference to the workload?		
3)	Does the Section / Desk have: a) Efficient PC systems? b) Latest eOffice applications? c) Efficient scanner? d) Efficient printer? e) Any others (specify)		
4)	a) Do the personnel posted in Section/Desk have adequate IT proficiency? b) In operating the PC systems. c) In using the eOffice applications? In operating the scanner. d) Are the seating arrangements conducive? e) Any other associated equipment?		
5)	Are the personnel in the Section/ Desk sent on periodic training to operate the latest versions?		
6)	Is data for monitoring of the pendency of the following generated by the Section/Desk automatically: a) Fulfilments of Assurances? b) Action on Court / CAT/ MAT cases? c) Action on Note for the Cabinet /Cabinet Committee / Cos? d) References from MLAs/ MPs and other VIPs? e) Action on formulation/review of policy? f) CPGRAMS/ Aaple Sarkar? g) RTI? h) Any others (Specify)?		
7)	Are the files kept properly in the almirah / racks?		

8)	Mechanism for brainstorming todevelop innovative ideas with interactions with the stakeholders?		
9)	Any other issues?		
10	Any other observations of the Inspecting officer / team to improve the efficiency of Section / Desk		

APPENDIX 22.5

FORM OF DEFTAR INSPECTION OF SUPERINTENDENT/ASSISTANT

1.

a. Name of the Branch ..
b. Name of Assistant/ Desk Officers. ..
c. Date of last inspection ..
d. Date of present inspection ..

2. (a) See whether the Assistant has maintained a file of Daftar Inspection reports.

(b) Check-up whether the Assistant has complied with all the instructions given during the last inspection

(Appendix "A")

Instruction No. (i) ..

Instruction No. (ii) ..

Instruction No. (iii) ..

Instruction No. (iv) ..

Instruction No. (v) ..

3. (a) See whether the references marked for the Assistant in the Branch Diary during the six days immediately preceding the date of inspection are correctly entered by him in the worksheet on appropriate days. (Check up at least 10 entries with reference to the Branch.

Diary (Appendix "B")

File No. Date of entry Date of entry and Sr. No. in the Branch in work sheet of the Diary.

reference.

(b) See whether "resubmission" cases and "through" cases requiring noting have been entered in the worksheet.

4. See whether the weekly summaries are correctly drawn in the worksheet both with regard to the number of cases pending and the particulars of the pending cases. Check-up whether the pending balance tallies with the closing balance of the previous week.

5. See that the actually pending cases are shown as pending in the works-Sheet (Make a test check of at least 10 entries).

6. See that the cases shown as pending in the worksheet are actually available in the pending bundle. (Make a test check of at least 10 entries)

7. See whether the Assistant has arranged the pending cases in chronological order subject to urgent cases.

8. See whether the cases are actually being submitted in the chronological order.

9. See any 10 cases submitted during the six days preceding the date of inspection and check-up whether the date of submission tallies with the date of submission shown in the worksheet.

10. Take a physical check of cases pending submission on the date of inspection and given details of outstanding:-

(a) Less than I week
(b) Over 1 week
(c) Over 2 weeks
(d) Over 3 weeks
(e) Total

Give the list of cases pending over a week with reasons for each as given by the Assistant and with your remarks. See the disposal for the period and offer remarks regarding the quantitative performance of the Assistant having due regard to his workload.

(Or over two weeks or three weeks as may be decided by individual Departments).

11. See any 10 cases on which the Assistant has given 'await' instructions for 3 months preceding the month of inspection and check-up whether the instructions were given correctly.

12. See any 10 cases on which filing instructions had given by the Assistant for 3 Months preceding the Month of inspection and Check-up whether the instructions given correctly.

13. a) See whether periodical returns, if any with which the Assistant is concerned are watched and dealt with in good time . b) See whether the periodicals are properly tabulated and put up to the officers concerned regularly.

14 . See whether the Digest slips are prepared and submitted simultaneously with the issue of orders and passed on to the Branch entrusted with the pre parathion of the annual digest of important orders issued by the department

15. See whether unnecessary files and papers are littered on the Assistant’s table

16. See any 5 applications dealt with by the Assistant for 30 days preceding the date of inspection and check- up whether acknowledgements were issued immediately on receipt.

17. Pick up at random 5 cases closed for 30 days preceding the date of inspection and examine the causes of delay, if any, in their final disposal. See in particular-

(a) Whether the important references and telegrams and reminders, if any from other quarters were submitted to the concerned officer in post.
(b) Whether reminders, where necessary, were issued on due dates.
(c) Whether the time limit for submission was observed at each stage of disposal
(d) Whether discussion was resorted to, when necessary, in preference to noting.
(e) Whether noting was to the point and not repetitive or instructions.

18. Any other special point which may come to the attention of the Inspecting Officer General remarks.

APPENDIX – 22.6.

Inspection questionnaire for a personal section/staff

SrNo	Questions	Status	Remedial action required, if any, for improvement
1.	Is the location of personal section /staff conducive for efficientperformance?		
2.	Does the personal section / staff have? a) Efficient PC systems? Latest eOffice Efficient scanner? b) Efficient printer? c) Any others (specify)		
3.	Do the personnel posted in personal section / staff have adequate IT proficiency? a) In operating the PC systems. b) In using the eOffice applications?In operating the scanner. c) Any other associated equipment?		
4.	Are the personnel in the personal section / staff sent on periodic training to operate the latest versions?		
5.	Is data for monitoring of pendency of the following generated automatically by personal section/staff a) Reminders for the meetings to be attended by the officer. b) Reminders to prepare / obtainbrief for the meetings? c) Approval for tour programs of the officer? d) Arrangements for the tour? Submission of tour report, if any? e) Any other issues?		
6.	Any other issues?		
7	Any other observations of the Inspecting officer/ team to improve the efficiency of Personal Section/ Staff:		

CHAPTER - 23

e-OFFICE DIGITALIZATION FRAMEWORK

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)

23.1 eOffice is aimed to bring in more transparency, efficiency and accountability in the Govt. transactions leading to increase productivity. One of the key areas of importance is to bring in the required transition to electronic mode of working on files and documents. Moving from a manual document, file and paper-based functioning to an "electronic" environment requires effective management to implement the transition. This involves digitizing and storing existing physical files and records and also in managing the newly created electronic files and records.

1) The key areas in the Digitization Strategy Framework are:
   a) Approach to be followed for digitizing the existing documents and files,
   b) Identification of files and records and their storage after the digitization,
   c) Roles and responsibilities of the various stakeholders involved in the transitionprocess,
   d) Setting Standard Procedures and Guidelines to be followed,
   e) Establishing a long-term retention policy.
2) Before the digitization process is started, it is important that:
   a)The approach adopted ensures the integrity of official records to provideauthentic, complete, and accessible information.
   b) Decisions need to be made about the mode and process for the transformation, equipment needed, and technical standards in storage adopted.
   c)Quality assurance measures need to be defined and implemented. Effective storage of physical files is important for their retrieval for any reference purposes.
   d) The required training needs to be imparted so as to enable Department officials meet the responsibilities as per the guidelines laid down.

23.2 Digitalization Framework:

Digitalization of documents and files play a key role for overall transition to eOffice. Framework for digitization is, thus, critical for transition to an electronic mode of functioning. It helps to build an integrated approach in preparing the user Department for making the transition. The framework includes the Standards, Policies, Guidelines and Best Practices. It has been designed to be in sync with the overall eOffice Implementation. The overallframework includes the following areas:

1) Governance Structure
2) Digitization Approach
3) Digitization Process
4) Integration into eOffice

1) E-Governance Structure

For the successful implementation of eOffice, the commitment of the top management in the Department is essential, combined with the distribution of responsibilities across the department by designating clear roles and responsibilities. The implementation of eOffice must be driven and monitored by a well-defined Governance Structure. Some of the important functions include notifying the required Policies, Guidelines, Best Practices and Standard Operating Procedures (SoPs) for eOffice such as:

a) Ensure meeting the Legal requirements of eOffice: Compliance to Open Storage Formats, Prescribed e-Governance Standards, IT Act 2000, and its amendments.

b) Ensure that the Standard Scanning Guidelines are followed with Quality Control.

c) Ensure that the digitized records are stored in open standard format.

d) Adherence to the Policies and Guidelines of the "Strategy Framework Document".

2) Digitalization Approach:

The phased approach to be adopted is detailed in the following sections:

- Phase 1: Plan
- Phase 2: Prepare
- Phase 3: Implement

Phases of Digitisation Process



Step 1: Identification of Department Nodal Officer and Nodal Coordinators as per the Governance Structure

Step 2: Identification of Documents for Digitization

Phase 1: Plan

This is the first step to be carried out in each unit of the Department by the designatedDigitization Coordinator as per the Governance Structure.

i. Documents
   - Acts, Office Memorandums, Circulars, Annual Reports, Policies

ii. Files
   - All the files that are likely to continue beyond six months in the open statusshould be selected
   - For the files that are likely to be closed within six months, the files should beselected on the following criteria:
   - The files that may end up as permanent records
   - The files that are involved in issuing or likely to be issued in futureimportant instructions and directions
   - The files that have gone or likely to go before the Cabinet
   - The files that are likely to be added to the Standard Guard File or Precedent Book
   - Any other files identified as important for reference by the concerned Digitisation Coordinator
   - Disposed of files and the files which will be disposed of in the next threeto four months' time will not be scanned unless they are candidates for the record room
   - Any other records identified as important for reference by the Digitisation Coordinator concerned.

Step 3: Selection of the data that need to be digitised within the selected documents

It is important to ensure that the digitization activity is undertaken in a meaningful manner and not merely as a scanning exercise. It is not necessary to digitize all the pages or the content in the identified files and records. There are several pages in afile that will not have significance for future reference. Therefore, it is necessary to identify only those pages which have value for future references and these needs tobe digitized. Papers in Closed or Recorded files need to be digitized selectively. Forinstance, extra copies, any correspondence, or notes portion for which soft copies, are available need not be digitized. Apply the Record Retention Schedule and Policies for old and legacy files to minimizedigitization efforts.

The final decisions will need to be taken by the designated Digitization Coordinatorin consultation

with the Unit.

Step 4: Decision on the Phasing and sequencing manner to be adopted

Decide on the phasing of digitization of the identified documents, files, and records, especially when there is a large number and volume. The outcome of this decision will become an input for the Step 8 of Phase 2: Digitization Timetable.
Suggested approach to select files to be digitized and its order is:

a. Digitize all files which are not in circulation.
b. Closed and Recorded files from the current to the older could be digitised first.
c. Closed Files that are referenced in the Active or Current Files.

Active files should be done as per the transition decision. The active files belonging to the category decided to be taken up for converting to electronic mode in the first phase of the Transition Timetable. This can be done by the Sections themselves and do not need any advance preparation.

Step 5: Current State Assessment of Volume & Efforts

Volume Estimation: Based on the selection done in Steps 1 and 2, the expectedvolume of documents is calculated.
Effort's estimation: This is done based on the following activities:

- Pre-Processing activities
- Scanning
- Entry of metadata which must have keywords of the document content andkeywords for searching.
- Storage of the digitised documents
- Uploading to eOffice

Step 6 Decision on the model of Digitization: In-house, outsourced, mixed mode

The recommended approach is:

(i) Active and Current files

All active and current files will not be converted to electronic file from day one. Files taken up for transition to electronic file will depend on the Transition Approach adopted and finalized by the organization and the finalized Transition Timetable.

The Digitisation activity of Active/Current files is normally best undertaken by the section concerned.

(ii) Record Room and Legacy Files: Out- sourced to external empanelled agencieswho can take up the activity.

Scanners

A high level of clarity is required within the Department of the technical aspects of scanning. There are many types of scanners with different features and most modelsinclude the in-built software or drivers for Optical Character Recognition (OCR), image manipulation, support for multiple formats. The scanners are to be selected based on the requirements depending on the various parameters such as:

- Volume of documents to be scanned
- Quality of documents and subsequent scanned images
- Speed of scanning required
- Type of documents (file, book, letter etc.)

Parameter	Description	Type
Volume of Documents	High	High end scanner that can scan up to100 pages /minute
Type	Good Quality Laminated Documents Books	Automatic Document Feeder (ADF) scanner Flat Bed Scanner Book Scanner

Phase 2: Prepare

Step 7 Preparation of digitisation timetable for the Department

The Digitization Timetable provides the detailed calendar of digitization activity thatneed to be carried out, both for in-house as well as outsourced.

Step 8: Procurement of resources estimated in Phase 1

The resources can be procured following due procedures.

Step 9: User education and training

- Training for Document identification, indexing, Preparing metadata, etc. at firststage
- Implementation and Execution Plan (scanning) with Handholding support
- Continued Training for different activities

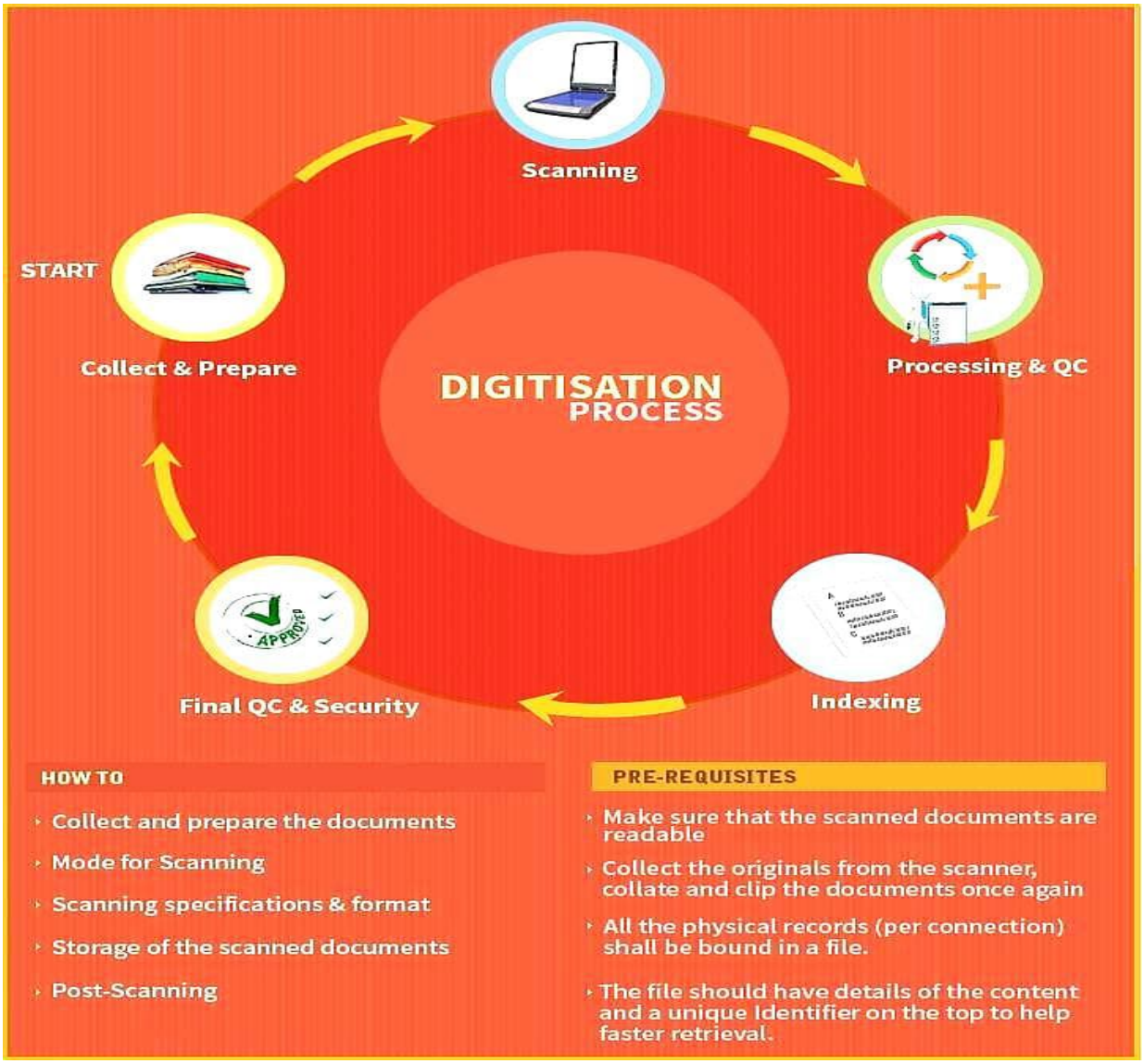
Phase 3: Implement

The implementation follows the steps and methodology outlined in the followingSection:

Step 10: Implementation as per the suggested points.

- Digitization Timetable
- Digitization Process
- Guidelines for Scanning, storage

Digitization Timetable (Format):



Serial	Actions	Activities	By whom	Timeline

3 Digitisation Process

(a) Collect and prepare the documents: The documents identified by individual unitsare collected. The involvement of the section concerned is considered important as the knowledge of the files, documents will be required.

- Documents must be carefully separated. If stapled, pins need to be carefully extracted. Page separators or post-it notes can be placed for separating the categories.
- Any external annexure like photographs is to be fixed carefully and neatly, if required with glue.
- Proper dusting of the document is required as it may affect the quality of the image.
- Ironing and smoothening of the document. This is done in the case of documents that are folded at the edges.
- Page Numbering- each page of the document is numbered on the corner. Thishelps in maintaining the count and also in avoiding any misplaced sheets of anydocument during the course of file movement.
- Clip the document set.

Important Points to Take Care:

Make sure that the scanned documents are readable.

Collect the originals from the scanner, collate and clip the documents once again.

All the physical records (per connection) shall be bound in a file. The file should have the details of the content and a unique identifier on the top of the file to help faster retrieval.

If DPI (Dots Per Inch) **is more, the photo is sharp, but the size of the file is more. If** DPI **is less, the photo is dull, but the size of the file is less.**

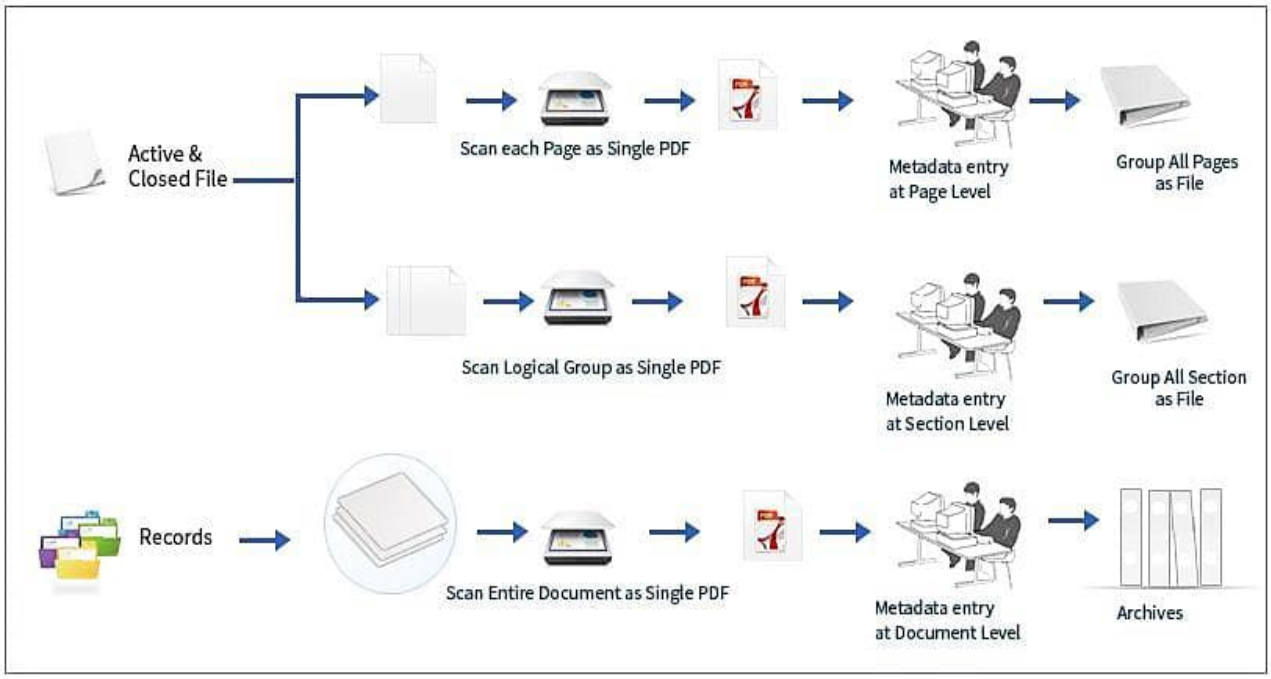
(b) Mode for Scanning:

There are various modes and options available for scanning files and records. Depending on the contents and complexity of the file, it can be scanned as a single pdf, or each page can be scanned in the file as a separate pdf. Different methods can be applied to different components of the same file as well. For example, all correspondence may be broken into logical sections and scanned such that there is one pdf for each section. At the same time notes in the file can be scanned page by page as each note is a significant component of a file.

The contents of an active file, i.e., Correspondence, notes, issues, Drafts, etc., may be scanned in either of the two ways:

i. **Page-by-page:** Each correspondence is scanned as a separate image and a separate PDF file. This is more time consuming but leads to easier indexing ofthe images.

ii. **Bulk scanning:** All documents are scanned into the same image and the samefile. In this case each page needs to be identified and indexed separately as per its type and use.



Closed files can be digitized in the same way as active files with some differences inscanning and indexing.

(c) Scanning Specifications & Format:

Document Type/ Condition	Color & DPI
Regular text	100 dpi B/W
Text with images	300 dpi gray scale
Very damaged /Tarnished/Clouded	450 dpi B/W-
Seriously damaged / Tarnished/ Clouded	600 dpi B/W-
Documents with Photograph	600 dpi gray scale/Color

The choice of storage format for electronic documents can have significant and far-reaching consequences.

Entry of the Metadata

The required metadata is entered against each document. The indicative metadata isas follows:

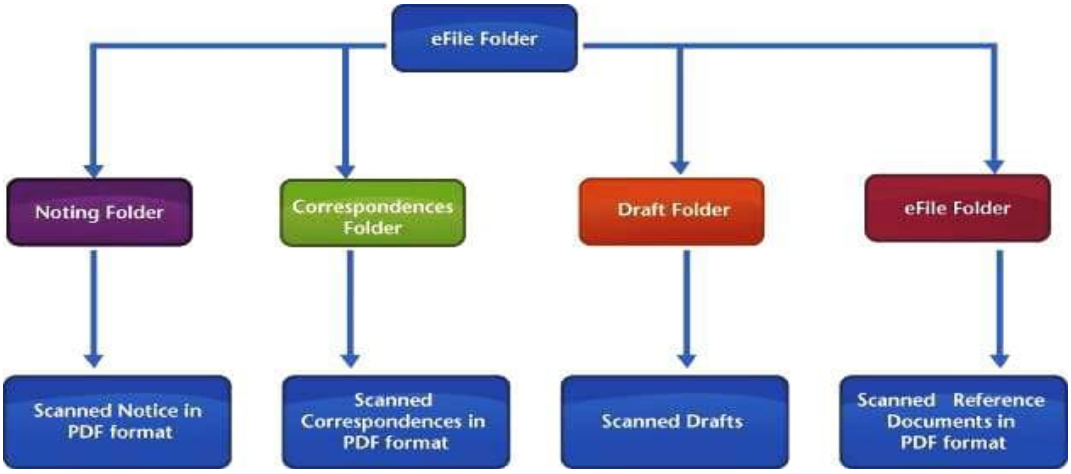
Active Files	Closed Files	Recorded files
• File no.	• File no.	• File no.
• Subject Description	• Subject Description	• Subject Description
• Subject Category	• Subject Category	• Subject Category
• Subject Subcategory	• Subject Subcategory	• Subject Subcategory
• Language	• Language	• Language
• Remarks	• Remarks	• Remarks
• Previous Reference	• Previous Reference	• Previous Reference
• Next Reference	• Next Reference	• Next Reference
• Created on	• Created on	• Created on
	• Closed by	• Closed by
	• Closed on	• Closed on
	• Closing Remarks	• Closing Remarks
		• Recorded By
		• Recorded On
		• Recording Remarks

(d) Storage of the scanned documents:

Temporary

- Scanned copies of Noting's are saved in the **Noting's** folder under the eFile folder.

- Scanned copies of correspondences are saved in the **Correspondence** folder under the eFile folder.



Permanent

Once the physical files have been successfully scanned and indexed, their storage must be done effectively so that it is clearly linked with the corresponding e File. The e File number must be clearly mentioned on the physical file at the right-hand corner and the physical file can be stored in the following manner:

- A record room must be assigned in the section where the file is to be stored.
- Staff must be clearly assigned responsibility for lock & key to the record room. In case of confidential files, separate lockers must be assigned for each file (these lockers could be placed in the office of the concerned officers) whose lock & key will be assigned to the officer to whom the file is addressed.
- Care must be taken to clearly label the physical files in serial order or through some other customized labelling convention so that they can be clearly linked to the e Files.
- A register must be maintained for tracking the issuance and return of these physicalfiles. Each time the physical file is issued and returned; an entry must be logged inthe register.

Accurate labelling of stored files is critical for the success of the digitization process as active physical files should be readily available for reference from time to time.

(e) Post Scanning :

Processing & Quality Control- The scanned images need to be processed for removalof punch holes and shadows, checking of pixilation, sharpness, and skew etc.

Indexing is one of the most critical steps of the digitization process as it establishes the identity of the scanned files so that it can be referenced/linked and retrieved with ease at a later stage.

Guidelines, Standards & Procedures :

Guidelines, Standards and Procedures for managing digital records are an important element of the Strategy framework. It aims to define the organization's approach to managing digital records and provide the necessary senior management authority for the implementation of the framework.

Procedures outline how the guidelines and Standards will be implemented.

(i) Guidelines for Metadata

Metadata is the data describing the context, content and structure of records and their management over time. It allows users to control, manage, understand, and search records over time through a set of pre-defined parameters that can be captured for every scanned document. Structured and comprehensive metadata captured can helpto:

- identify, authenticate, and categorize the records
- enabling topic-based references and retrieval of specific files/ records
- ensure accessibility and accountability of files/ records by defining the accessprivilege metadata

Metadata can be of various types depending on the level of information to be capturedand the intended use and can be classified as follows:

Regular metadata – contains information about the file's contents

- the title of a record
- the subject it covers
- its format
- the date the record is created
- the history of its use
- details of its disposal
- keyword must also be captured while preparing metadata

Administrative metadata contains information such as sender address and location ofscanning.

Structural metadata contains information pertaining to the structure of the file/document such as size of page, type of document, etc.
For appropriate creation and maintenance of metadata, it is important to consider thevarious types of files/ records that are used in the departments/ ministries.

23.3 Guidelines and procedures that may be employed are:

- identify the metadata elements to be captured.
- establish when and how metadata is to be captured.
- ensure that the metadata needs to be retained.
- detail the need to store metadata along with the scanned record to maintain thelinkages
- assign roles and responsibilities for capturing and managing metadata.

(ii) Guidelines for Storage and Storage format :

Guidelines for storing the scanned files need to be evolved. For active files, the storagecan be in the respective client system of the user who is performing the scanning as these are normally migrated using the Migration Module. For files that are identified tobe outsourced, the storage can be on a

Central File Server identified by the department so that systematic and periodic back up can be taken. Accurate labelling of stored files is critical for the success of the digitization process as active physical files should be readily available for reference from time to time.
Open Standards Storage format is to be adopted for storage. Technology Standards prescribed for e Governance as per the e Governance Standards and Digital preservation policy is to be followed.

(iii) Guidelines for maintaining Quality Control :
Most software and hardware that will be used in a digitization program will provide a range of variable parameters such as image resolution and output file format, and informed choices need to be made on each of these.

(iv) Security Guidelines
The security guidelines of the digitized documents before they are uploaded and migrated to eOffice is mentioned in the section. Once the digitized documents are on the eOffice, the security of eOffice as applicable prevails.

(v) User Training
Training on how to convert the physical files to electronic files and its migration to eOffice needs to be imparted to the section users. This is normally undertaken by theDigitization Coordinator of the section. Need for adherence to the following factors need to be emphasized to the users performing the conversion:

- Scanning guidelines
- Storage formats
- Security

23.4 Integration into eOffice:

For Integration with eOffice, digitization strategy must be followed with migrationas follows:

Guidelines for Migration Process:

Step 1**:** Create main folder with the name of the "Folder" same as that of the "PhysicalFile" in the local system.
Step 2: Create sub folders inside the main folder for Notes, Receipts, Issues, andReferences
Step 3: All files (Active/Closed/Legacy) are scanned along with their respective Notes,Receipts, Issues, References and stored in separate folder/sub-folders.

Example: If the Physical file number is A-21001(3)/5/2008/DFG**,** then user mustcreate the main folder along with their respective sub folders as depicted below:

Main Folder Name	**Sub Folder Names**
A-21001(3) _5_2008_DFG (Name of the folder should be same as that of the Physical file number, following certain conventions	For notes, Notes For receipts, Receipts For issues, Issues For references, References

Step 4**:** Scanning Process:

All Notes, Correspondences (Receipts/Issues), References are scanned and saved inpdf format in FTP client.

- Notes are scanned into a single pdf, if possible. Otherwise notes can bescanned one by one.
- Correspondences (Receipts/Issues) should be scanned, one at a time,as a single pdf.
- References should be scanned one at a time, as a single pdf.
- Issues should be scanned one at a time, as a single pdf.

Step 5: Uploading scanned files from FTP Client to the eOffice Server

The e-Office Migration Module facilitates to upload the files from local system (client)to the eOffice server.

e-Office User Manual-

The complete working procedure and guidelines of e-Office is aforesaid mentioned in the link below. This link is also published on Maharashtra Government's Website landing page.

The complete version of e-Office User Manual is available at:
e-office_User_Manual7.pdf (maharashtra.gov.in)



महाराष्ट्र शासन

ADMINISTRATIVE REFORMS, ORGANIZATION & METHODS

DEPARTMENT OF GENERAL ADMINISTRATION,

GOVERNMENT OF MAHARASHTRA.